

THE NAMELESS MAN

NATALIE SUMNER LINCOLN

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*** START OF THE PROJECT GUTENBERG EBOOK THE
NAMELESS MAN ***



By Natalie Sumner Lincoln

The Nameless Man

I Spy

The Official Chaperon

C. O. D.

The Man Inside

The Lost Despatch

The Trevor Case

D. APPLETON & COMPANY, NEW YORK



**“There—look!” he cried, and his excitement communicated
itself to Ethel.**

[\[PAGE 136\]](#)

The
NAMELESS MAN

By NATALIE SUMNER LINCOLN

AUTHOR OF "I SPY," "THE OFFICIAL CHAPERON," "C. O. D.,"
"THE MAN INSIDE," "THE TREVOR CASE," ETC.



ILLUSTRATED BY
H. R. BALLINGER

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INTEREST INSURED ITS PRODUCTION,
THIS BOOK IS AFFECTIONATELY
DEDICATED

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“There—look!” he cried, and his excitement communicated
itself to Ethel

[*Frontispiece*](#)

FACING PAGE

“Come, come, Julian, this won’t do,” he said

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“I will give you twelve hours to leave Washington or
I will expose you,” he announced

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“Go back, Ethel,” Patterson commanded. “The fire
is spreading and you may be injured”

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THE NAMELESS MAN

CHAPTER I

SHADOWS

THE invigorating breeze, stirring the leaves of the vines and rambler roses which grew in profusion over the trellis-covered veranda, carried, apparently, no comfort to the man seated there. He stared ahead of him, oblivious to his surroundings, the handsome rugs covering the veranda floor, the out-of-door furniture, the well-kept lawns and flower beds. He was only conscious of a growing distaste for the brilliant California sunshine, the blue of the heavens and the vivid colors of the foliage; they did not match his brooding discontent.

A sudden stronger puff of wind carried a paper, loosely held in his fingers, to the floor, and too indolent to move, he planted his white-shod foot on it, leaving exposed the words: "By order of the Court."

"Oh, here you are," exclaimed a voice from the direction of the living room, and a middle-aged man stepped through the open French window on to the veranda and sat down heavily in one of the lounging chairs. "Seen these?" tossing several newspapers on the table.

"Yes," answered his companion. "Washington doesn't appear to have taken kindly to your speech."

Colonel Calhoun's florid face turned a deeper red.

"The truth isn't always pleasant," he growled. "It's not nice to read that fancied security is fancy and nothing more. Japan has our measure, and has spent years preparing to become mistress of the Pacific Ocean."

"So they say—*here*," and the slight emphasis on the last word caused Calhoun's eyes to flash with pent-up indignation.

"That's Washington's game, trying to make it a local issue," he explained heatedly. "Whereas, the control of the Pacific affects every business man, every farmer in America. For the sake of our millions invested in commerce we must guard this ocean; keep uninterrupted our trade with China and the Orient; guard the waterway to Alaska, a country of

still undeveloped riches; keep the path clear to the Philippine Islands, Guam, and Hawaii. Trade supremacy can sometimes only be maintained by war. We shall have to fight for it.”

His companion nodded. “Shouldn’t wonder if we did,” he agreed listlessly, “when Japan says the word.”

“Yes, and when she strikes she will strike quickly. Look,” Calhoun indicated a map lying across a chair. “We have well-fortified harbors, yes, but an *undefended* coast line easily accessible to an enemy. Japanese spies have been caught with reports of these fortifications, with plans of the forts guarding the Golden Gate; and caught taking soundings of the unfortified harbor of Monterey. It means that some day the ‘Yellow’ man hopes to supplant the white American, as we, in our time, supplanted the American red Indian.”

Calhoun’s companion laughed. “It’s not surprising that the cartoonists caricature you as a saffron-hued jingoist.”

“Let them,” Calhoun shrugged his broad shoulders. “They’ll reverse themselves, as did the Administration in the matter of the Panama Canal tolls,—the price of our coastal rights being the sop thrown to England to keep us out of war with her ally, Japan.”

“Well, what England did once she may do again,” retorted the other lazily.

“With America prepared we will require no nation’s intervention in our behalf,” declared Calhoun proudly. “But until we are——” The speaker rose and paced back and forth. “Dreaming of vast empire, the foremost men of Japan are planning and scheming for that nation’s territorial advancement.”

“You’ll have some difficulty convincing America of that fact,” said his companion skeptically.

“True.” Calhoun struck his clenched fist into his left hand. “The majority of Americans think me a dreamer, or, at worst, a war-mad jingoist. Yesterday a high government official declared: ‘If Calhoun had half the brains he thinks he has, he’d be half-witted.’ The fools!” added Calhoun bitterly. “It’s cheap to ridicule me, cheaper even than burying dead Americans in trenches. Japan is crouching for the spring; racial hatred is

fanning the flame, and her emissaries are everywhere. I'd willingly give \$10,000 to the man who will unearth and expose the Japanese cabal which, I believe, as I believe in God, is being conducted in Washington City today right under the nose of our government officials."

His companion laid down his unopened cigarette case, his eyes for a second seeking the paper still held on the floor by his foot—"By order of the Court"—a sudden movement and his other foot covered the words.

"Get out your check book, Calhoun," he said. "I will go to Washington."

CHAPTER II

THE MAN FROM CALIFORNIA

JULIAN BARCLAY scanned the total of a column of figures with a wry face; his card game of the night before had been costly, and with an inward resolve to forego another, he looked out of the smoking-car window. But the flying landscape did not hold his attention, and his eyes wandered back to his fellow passengers, the majority of whom were well-to-do tourists, several commercial travelers, and a few professional men. Not far from him sat Professor Norcross in animated conversation with Dr. Shively who, with Barclay, had boarded the fast California express at New Orleans. Barclay's glance traveled on until it reached the man who had made the fourth at the card game. He had taken a dislike to Dwight Tilghman, for during the game he had received the impression that he was being quietly watched. The belief had grown upon him as the play progressed, and the quiet espionage had bred resentment. Tilghman's indolent slowness of movement had been in direct contrast [Pg 7]to his intent watchfulness, and Barclay had wondered if Dr. Shively and Professor Norcross had thought Tilghman's manner peculiar. Richard Norcross, known to Barclay by his fame as a naturalist but met for the first time in the train the night before, had been Tilghman's traveling companion for some days.

Barclay, sitting back in his chair studying Tilghman, saw him start, lean forward, and look down the car. A newcomer stood just within the entrance surveying the car and its occupants, then moved up the aisle. With a smothered ejaculation, Tilghman sprang into the aisle, hand upraised, only to stumble forward, swaying like a drunken man.

The sound of the scuffle echoed down the car above the noise of the rapidly moving train. In an instant the passengers were on their feet, some intent on reaching the struggling men and others only desirous of obtaining a closer view. But the intervention of the more venturesome was not required, and a second later Barclay was bending over Tilghman, who measured his length in the aisle, while the conductor and several passengers collared his small opponent. A pull at Barclay's hastily offered flask, and

Tilghman somewhat shakily regained his feet, as the Japanese passenger strove to explain the situation to the indignant conductor.

“A meeting, honorable sir, in this just too small space and a loss of balance.” The Japanese with some difficulty kept his footing as the train rounded a sharp curve. Clicking his heels together, with shoulders and elbows drawn back, finger-tips touching, he drew a long hissing breath as he bowed in salutation to the men grouped about him. “Pardon, honorable sirs.”

“How about it, Mr. Tilghman?” demanded the conductor, and all eyes turned toward the disheveled American.

“A little congestion and, eh, hasty action,” he drawled. “The train took a curve on the high, and as I fell I saw our friend here”—indicating the Japanese—“mistook him for a yellow nigger standing in my way and lashed out——”

Barclay looked sharply at the Japanese. Did he understand the insult implied in the apology, or was his knowledge of English too limited? But he learned nothing by his scrutiny, for the parchment-like face was as inscrutable as the Sphinx, and Barclay turned his attention to Tilghman. He had distinctly seen a paper pass between the two men; why then had Tilghman and the Japanese staged the opéra bouffe affair?

The conductor, much perturbed, scratched his head as he gazed at first one man and then another.

“Well, seeing as how you both call it an accident, I reckon there’s nothing more to be said,” he grumbled. “But recollect, gentlemen, this railroad does not permit quarreling.”

The Japanese, bowing gravely to the silent men, departed into the forward Pullman, and the group about Tilghman dispersed. Julian Barclay having resumed his seat and his contemplation of the scenery through the car window, was in the act of lighting a cigarette when he became aware that Dwight Tilghman was standing at his elbow.

“Can I share that flask you offered me when I was lying on the floor?” he inquired. “The fall shook me up more than I realized.”

A look at Tilghman's white face convinced Barclay that he was telling the truth, and his interest quickened; the scuffle had not been entirely opéra bouffe after all. Drawing out his flask he passed it to Tilghman.

"It hurts my pride," went on Tilghman, seating himself in the next chair, "to be licked by a little slip of a man in such a rough and tumble encounter."

"Muscle doesn't stand much show against jiu-jitsu." Barclay declined the other's offer of a cigarette. "Better think a second time before tackling a Jap," he cautioned.

"A Jap!" echoed Tilghman, and he smiled queerly as he selected a cigarette. "The color line is so closely drawn in this section of the world I'm surprised the railroad officials permit a yellow man to travel on the San Francisco, New Orleans, and Washington Express except in the 'Jim Crow' car."

"That sounds like insular prejudice," smiled Barclay. "Except for your name and accent, which proclaim you a Marylander, I should hail you as _____"

"A Californian?" Tilghman nodded. "It's the state of my adoption. We manage everything better out there."

"Well, why not stay in California?" Barclay rapped out the abrupt question, never taking his eyes from his good-looking companion, whose white cheeks were regaining a more healthy hue from the stimulant he was slowly sipping.

"I had to come east to protest against government ownership of oil lands in California. I'm one of the unfortunate devils who invested money there before the public land was withdrawn from entry by executive order. Congress is to legislate on the question shortly. I believe Navy Department officials are chiefly responsible for the deadlock."

"I take it your sympathies are for a little navy?"

"That doesn't necessarily follow," protested Tilghman, with more warmth than the occasion seemed to justify. "Just because I don't believe in government ownership of oil lands."

"I'm not so sure of that," argued Barclay. "Oil is the fuel for future battleships; we are exporting thousands of gallons of oil; it's time we

conserved our resources.”

“But not by government ownership,” retorted Tilghman. “Let the government get oil concessions in Mexico and *keep* them. What’s our Monroe Doctrine for but to make us a protectorate over most of the western hemisphere? We can drive out the other Johnnies when they try and tap our foreign resources.”

“With an adequate navy, yes,” laughed Barclay. “But you have a curious conception of the meaning of the Monroe Doctrine.”

“Not at all!” Tilghman warmed to the subject. “The Monroe Doctrine is just another definition of ‘dog in the manger’—we won’t let other nations have what we won’t take. It’s a shameful waste of opportunity for territorial advancement.”

“At the expense of smaller nations?” dryly.

“Ah, well, the battle goes to the strong.” Tilghman turned languidly and beckoned to the porter. “Is this Atlanta we are approaching?” he asked the negro.

“Yessir, an’ ’pears like we’ll be hyar mos’ two hours, ’cause there’s a washout ahead. De conductor says as how de passengers can go off an’ see de city, but dey mus’ be back hyar widdin an hour an’ a half.”

Barclay rose and stretched himself. “Think I’ll go and take a run around the block,” he announced, smothering a yawn. “Come along?”

But Tilghman shook his head, and watched Barclay’s tall, erect figure pass down the aisle with a touch of envy. The other men in the smoker, pausing to exchange a word with him, filed out of the car, and Tilghman, left to his own resources, placed his tickets in the band of his hat, pulled the brim over his face; lowered the window shade, braced his legs on a convenient ledge, poured out a liberal portion of raw spirits in the silver cup of Barclay’s flask, and holding the cup in his hand, settled back in his chair and, closing his eyes, sipped the brandy at intervals.

Julian Barclay, whistling cheerily, was making his way out of the station at Atlanta when the crowd ahead of him parted, and he caught a glimpse of a familiar face. Wheeling about with an abruptness that brought him into

violent collision with the Japanese whose behavior in the train had so excited his interest, Barclay, never glancing at him, raced back to the train.

Two hours later Barclay stood in the vestibule of his Pullman as the train pulled out on its long trip northward, and debated whether to enter the smoker or return to his section. The stronger inclination won and, nodding in a friendly fashion to the Japanese who stood on the opposite side of the vestibule, Barclay entered the car on his way to the smoker.

Except for Dwight Tilghman sitting at the further end, Barclay found the smoker deserted, and dropped into the nearest chair, lighted a cigar, opened a newspaper and soon became immersed in its contents. Some time later the conductor paused before Tilghman, removed the tickets from his hatband and, refraining from waking him, passed on up the car collecting fares.

The shadows of the winter day were lengthening when the dining car steward's announcement: "First call for dinner," aroused the half dozen men in the smoker.

Professor Norcross, who had been chatting with Julian Barclay, broke off to ask: "Where's my dinner partner? Here, porter, go tell Mr. Tilghman it's time for dinner. Won't you sit at our table tonight?" he added, addressing Barclay. "Dr. Shively will make the fourth."

"Thanks, I'll be very glad to do so," and Barclay rose with alacrity; he had not lunched at Atlanta, and his appetite was sharpened by the fast. Further speech was cut short by a shout from the porter.

"I can't wake Mister Tilghman," he called, his eyes rolling in fright. "He musta had a stroke."

"Nonsense!" Dr. Shively dropped the book he was reading, and hastened down the aisle. But his air of skepticism disappeared as he bent over Tilghman who, owing to the vigorous shaking administered by the porter, was sprawling half out of his chair. The physician lifted the hat which had slipped over Tilghman's face, and pulled down an eyelid. One glance at the glazing eyeball, a touch of the pulse, and Shively faced toward Julian Barclay and Professor Norcross who had followed him down the aisle.

"Dead," he announced. "Stone dead."

CHAPTER III

WAYS THAT ARE DARK

A^N awed silence followed Dr. Shively's announcement.

Barclay was the first to speak. "Apoplexy?" he inquired, looking pityingly down at the still figure. His question received no reply.

"Porter, go call the conductor," directed Shively. "No, stay, first show me into a vacant stateroom. Norcross, will you and Barclay carry Tilghman; I can make a more careful and complete examination in the privacy of a stateroom."

The other occupants of the smoker had left immediately on the first call for dinner, and the porter leading the way, Professor Norcross and Barclay carried their burden into the forward stateroom of the car behind, encountering no one on their way to it. Shively stopped for a moment to glance keenly about the empty smoker, then followed the little procession into the stateroom.

"Suppose you return to the smoker, Barclay," suggested Shively, bending over Tilghman and loosening his tie. "And—eh—just as a matter of form, see that nothing is disturbed in there. The porter is too rattled to be left in charge. And, Norcross, please step into my Pullman and get my grip. Don't either of you mention Tilghman's death just yet to the other passengers."

"Very well," promised the professor, and Barclay, contenting himself with a nod of agreement, went back to the smoker. Reaching the empty car he paced rapidly up and down the aisle, a feeling of horror growing upon him. The frail barrier between the quick and the dead had lifted momentarily—Tilghman, within arm's reach of assistance, had died in their midst without a hand being raised to save him.

An involuntary shiver crept down Barclay's spine, and he moistened his dry lips; he felt the need of stimulants. Remembering that he had loaned his flask to Tilghman, he moved reluctantly over to the chair the dead man had

occupied and hunted about. The flask was not in sight. As he straightened up from investigating the corners of Tilghman's chair, he saw Professor Norcross regarding him from the doorway, and glad to be no longer alone in the gloomy car, he joined him.

"Discovered what ailed Tilghman, Professor?" he asked.

"Not yet." Norcross selected a chair in the middle of the car and Barclay balanced himself on the arm of one across the aisle. "Poor Tilghman! He so counted on enjoying this trip to Washington. It was his first visit east in nearly ten years."

"Indeed? Had you known him long?"

"We met several years ago at Colonel Carter Calhoun's residence during one of my trips to California." The car tilted at an uncomfortable angle as the train raced around a curve, and Barclay almost slid into the professor's lap. "Tilghman at one time was quite wealthy," went on Norcross, reaching out a steadying hand. "Then he invested heavily in oil concessions both in this country and in Mexico; I imagine Calhoun had a good deal to do with putting him on his feet again."

"Was he married?"

"I believe not. He told me that he expected to visit Dr. Leonard McLane in Washington, and said the latter was his nearest living relative. I shall wire McLane from the next station. Ah, here's the conductor," as that uniformed official, looking much perturbed, came in. "Did you see Dr. Shively?"

"Yes, Professor." The conductor mopped his face with a large handkerchief. "Mr. Tilghman's sudden taking off has been a shock. Why didn't he mention that he was ill when I took his ticket?"

"Heaven knows!" Norcross shook his head pityingly. "We were all within call. Did he appear ill, Conductor?"

"I didn't get a good look at his face, for his hat was pulled down low over his forehead. Judging from his attitude that he was asleep, I took pains not to disturb him, as he had told me only this morning that he hadn't slept well on this trip, owing to a bad tooth."

"Aside from toothache, I never heard Tilghman complain of feeling badly," said Norcross. "He looked the picture of health, strong—wiry——"

“His scuffle this noon with the Japanese may have been more serious than we imagined,” suggested Barclay slowly. “The Jap resorted to jiu-jitsu, and it’s a nasty thing to run up against.”

“True,” agreed Norcross. “I’ve seen something of that science in the East, and have heard of men sometimes dying from apoplexy after a blow.”

“But that did not follow in this instance,” broke in Dr. Shively, joining them. “I am glad to have found you all together. Conductor, here is the key of the stateroom; I have locked Tilghman’s body in there, and have stationed the porter outside this car with instructions to let no one in until you give him permission.”

“Seems to me that’s pretty extreme,” exclaimed the conductor.

“I did it because I must have a word with you in private, and this car must be thoroughly searched before other passengers are admitted.”

“Why?” demanded the conductor. The physician’s grave manner impressed them all and they gathered nearer in silence.

“Tilghman was murdered.”

“What?” chorused the men.

“Good God! Who did it?” demanded Barclay, recovering somewhat from his astonishment, while Professor Norcross asked:

“How was the crime committed?”

“One at a time.” Shively held up a protesting hand. “It is for us to discover who is the murderer.”

“Was he stabbed, sir?” asked the conductor.

“No; nor shot.” The physician seated himself and checked his remarks off on his fingers. “On superficial examination here, I concluded that Tilghman had died from cardiac syncope; he had apparently every symptom. But it happened that last night he came to me and asked for some cocaine to deaden the pain in his tooth. Before treating him with the cocaine, I tested his heart and found he had no valvular weakness. Therefore I was astounded as well as horrified by his sudden death, and determined to make an examination.”

“An autopsy?” gasped the conductor.

“Oh, no.” Shively leaned forward and spoke louder, to make sure that he was heard above the rattle of the train. “I could find no mark on Tilghman’s body; he had most certainly not been either stabbed or shot. And then, although all indications were against my theory, I thought of poison.”

“Did you have a stomach pump with you?” asked Norcross, who was listening with absorbed attention.

“Unfortunately, no. But on examining Tilghman’s mouth I detected the odor of alcohol, and removing the absorbent cotton from the cavity in his lower back tooth, I submitted it to chemical tests and found traces of a solution of oxalic acid and brandy.”

Barclay turned cold. Brandy containing poison? Where in the world was his flask? What had become of it? His thoughts running riot, he listened dazedly to the conductor’s excited questions.

“What’s oxalic acid?” asked the latter.

“A vegetable poison, better known under the name of ‘salts of lemon’; a powder which, if dissolved in alcohol, kills almost instantly,” was the reply. “Also, the symptoms it produces are identical with heart failure, the acid producing manifestation of great weakness, small pulse, and failure of the heart’s power.”

“So Tilghman simply faded away before our eyes,” exclaimed Norcross sorrowfully. “Oh, the pity of it!”

“He didn’t die before our eyes,” retorted Shively tartly. “By the condition of the body I judge Tilghman had been dead about six hours.”

His listeners stared at him, astounded.

“Do you mean to say Mr. Tilghman sat in that chair with us all about him, stone dead, and we never discovered it for six hours?” questioned the conductor in open incredulity.

“Exactly.”

“Well, that beats time!” muttered the conductor.

“Where were we six hours ago?” asked Norcross.

The conductor consulted his watch. "In Atlanta," he answered.

"I imagine that was where the crime was committed," said Shively. "Who was in this car beside Tilghman during the two hours we were in that station?"

"I don't know," returned the conductor. "But I can easily find out by asking the porter," and he hastened out of the smoker, to reappear a second later with the porter.

"No, suh, there wasn't no one in this here smoker while we was in Atlanta 'cept Mr. Tilghman," declared the negro, on being questioned. "Not a soul, I'll take my Bible oath to that. I looked in here a few minutes after de train stopped an' Mr. Tilghman was a settin' in de chair jus' as ca'm an' peaceful, an' I went outside an' stood on de platform by de steps at dat end, an' didn't no one pass into de car while we was in de station."

"How about this end of the car?" questioned the conductor. "The vestibule——"

"Norcross and I sat there and smoked the whole time we were in Atlanta, except for the first twenty minutes when we got some lunch at the station restaurant," broke in Shively sharply. "No one entered the car while we were there. If the crime was committed it was done during the first twenty minutes the train was in the station."

"Did Mr. Tilghman order any brandy, porter?" asked Norcross.

"No, suh, he didn't."

"Might it not be that Tilghman, in a moment of despondency, killed himself?" asked Norcross, turning to the physician. "He carried a brandy flask in his bag."

"If a death is possibly suicidal, it is also possibly homicidal," explained Shively. "The brandy flask is still in Tilghman's bag, full to the brim and entirely free from oxalic acid."

"He might have borrowed a flask from some one," suggested Barclay slowly. "And added the poison himself."

"Quite true, he might have. But if it's a case of suicide, where is the flask?" asked Shively. "Tilghman didn't swallow that also."

“Let’s hunt for it,” and the conductor started forward.

“Did you look about the car when you first entered, Barclay?” asked the professor.

“Yes.” Barclay passed his hand over the upholstered back of a chair. “But I didn’t find anything remotely resembling a flask.”

“Strange,” muttered Shively. “I found no flask in his pockets, and he certainly did not move out of that chair after swallowing the poison. Porter, were any of these windows opened?”

“Yessuh, an’ dey is still open wid de screens in jes’ as I lef dem.”

“True. Well, he couldn’t have flung a flask through a window glass or a screen without doing considerable damage, of which there is no indication; besides which, the action of the poison is very swift, he would not have had the strength to make any such attempt.” Dropping on his knees Shively, with the aid of a powerful magnifying glass, examined the carpet beneath Tilghman’s chair and the chair itself. “There is no stain, showing Tilghman did not drop the cup out of which he was drinking. No, no, someone else was in this car, administered the poison, and carried off the incriminating glass or flask.”

“Then it must have been that little Jap, Mr. Ito,” ejaculated the conductor. “He’s got the creepiest ways, and there was bad blood between him and Mr. Tilghman, witness their fight this noon.”

“Suppose you bring Mr. Ito here,” suggested Norcross, then addressing Shively. “It will do no harm to question him.”

The physician nodded, and drawing out his notebook made several entries; neither he nor Norcross paid attention to Julian Barclay, who was striding nervously up and down the aisle. Should he speak of having loaned his flask to Tilghman? Would they believe him entirely innocent if they knew— The entrance of the Japanese and the conductor broke in on his troubled cogitations.

The Japanese stopped before Dr. Shively, bowed profoundly, and waited in impressive silence for him to speak.

“Mr. Ito,” began Shively, with a courteous acknowledgment of the other’s salutation. “I sent for you to inform you that Mr. Tilghman is dead.”

“Who is Mr. Tilghman?” inquired Ito.

“The man you fought here this morning.”

“I no fought man,” denied Ito politely. “Stranger fell upon me and I struggled to stand—that all. Mr. Tilghman, you say his name, he no well when he stagger and fall on me, and now he dead?”

“And now he is dead,” repeated Shively, raising his voice so as to be heard above the rumble of the train. “Dead, from drinking a poisonous compound derived from rice.”

“So?” Ito reflected. “It what you call ‘hard luck.’”

Shively’s color rose. “It is ‘hard luck’ which I call upon you to explain,” he said stiffly. “Kindly inform me where you spent your time during the two hours this train was in Atlanta.”

“Why you ask?”

“Because during that time or, to be more exact, six hours ago, Mr. Tilghman was poisoned by drinking brandy containing a solution of oxalic acid. Where were you at that time, Mr. Ito?”

“You say he died six hours ago?” The Japanese consulted his watch and did some rapid calculating. “That make time he swallow poison five minutes past twelve. At that hour I was in public library in Atlanta. I talk with librarian and take out book card—he stamp time on it. If you no believe, wire librarian at my expense and see I tell truth.”

Shively looked at Norcross and Barclay and then back at Ito.

“The seriousness of the situation obliges me to get corroboration of your statement, Mr. Ito,” he said. “I shall wire at the first opportunity to the Atlanta library.”

“Then now’s your chance,” broke in the conductor. “We are just stopping at Greenville.”

“Can you hold the train for an answer?” asked Shively.

“No, we are late already and must make up time,” called the conductor, as he made for the door. “Wire the librarian to send his answer to meet the train at Spartanburg, our next stop.”

Shively made ready to follow the conductor. "Keep your eye on Ito," he muttered to Barclay in passing, then louder: "Come with me, Norcross. I want you to telegraph to Spartanburg for a stomach pump, while I get a wire off to the librarian."

A second more and Barclay and the Japanese had the smoker to themselves. Barclay did not relish being stared out of countenance by a bit of yellow parchment, but he never permitted his glance to waver before the steady regard of the oblique black eyes. Ito was the first to speak.

"Will the honorable sir permit that I dine?" he asked.

At the request Barclay awoke to the realization that he was half famished. Tilghman's tragic death had put all thought of dinner out of his mind. Obviously he must not let the Japanese out of his sight, and there was surely no better place than a dining car for keeping him in full view.

"Of course you can dine," he said cheerily. "We both will; go ahead, Mr. Ito, and I'll follow."

They made their way through the long train and on reaching the dining car were given a table for two. After giving his order to their waiter, Barclay settled back in his chair with a sigh of relief; the change from the gloomy smoker and its tragic happenings, to the cheery dining car, flooded with light and echoing with the laughter and chatter of gay passengers, was a tonic in itself to his frayed nerves.

Not waiting for the return of their waiter, Barclay lifted the carafe and leaning over poured some water into Ito's glass. The courtesy received no acknowledgment, for the Japanese was intent on drawing a design on the spotless tablecloth. Barclay watched each stroke of the pencil in idle curiosity, but suddenly the carafe remained poised in air, for with the skill of a born artist, there grew under the Japanese's hand an exquisite design of the chrysanthemum—the identical design which, done in delicate tracery, made Julian Barclay's silver brandy flask unique.

CHAPTER IV

THE ALIBI

“**Y**OU deny, then, having seen that chrysanthemum design on my silver flask?” persisted Barclay, his anger rising at Ito’s evasive replies to his repeated question.

The Japanese thoughtfully contemplated the soup tureen which the waiter placed impartially midway between the two men.

“I am originator of designs, honorable sir,” he said blandly. “It is possibly so that my sketch was used in decorating your flask. Show me flask and I tell you.”

“I’ve—I’ve lost my flask,” stammered Barclay. If the Japanese really had been at the Atlanta library at the hour Tilghman was poisoned he would know nothing of the flask, and he might be one of the Japanese employed by large silversmiths in this country to furnish them designs. But if he had been present at Tilghman’s murder and had guilty knowledge—Barclay’s stubborn chin became more pronounced; his future actions, however, hinged on the little man’s alibi. “Mr. Ito,” he began deliberately, “you state that you are an artistic designer traveling in America to get in personal touch with your customers. But your name is not one usually associated with trade in your own country.”

Ito sipped his black coffee meditatively. “I poor Nipponese,” he announced. “You rich American. I travel in your country to make money; you traveled in my country,” Ito paused to pepper his soup, “and bought curios.”

The quick retort on Barclay’s lips remained unspoken as Shively stopped at their table.

“The engineer is making up time,” he said, clinging to the table as the train went around a mountain curve and unbalanced him for the moment. “We’ll be in Spartanburg very soon. Norcross and I are sitting here,” and he joined the professor at the table directly across from them.

Barclay passed a relish to the Japanese in silence, and still without speaking they continued their dinner, each apparently immersed in his own thoughts.

If Ito observed that he was watched by Shively and Norcross as well as Barclay, there was no effort on his part to hasten the service of the meal, and he waited with patient courtesy for Barclay to finish before rising.

“My car next,” he volunteered, taking his hat from the waiter.

“Go ahead, I’ll come with you.” Barclay pushed back his chair impatiently and his long stride quickly brought him up with his companion, but not in time to exchange a word in private, for Shively was at their side with Professor Norcross in tow.

“Are these your traps, Mr. Ito?” Shively pointed to two suitcases, an overcoat, and an umbrella propped up in one of the sections of the sleeper.

“Yes, honorable doctor.” Ito gravely picked up his overcoat and umbrella. “We approach Spartanburg——”

“We do,” dryly. “Just drawing into the station in fact, and here’s the conductor. Don’t move, Mr. Ito,” and Shively’s deep voice spoke command. “Wait.”

“Here’s your telegram, Doctor, the station master threw it to me.” The conductor was a trifle breathless. “What does it say, sir?”

Snatching it from him Shively tore open the dispatch and scanned it hurriedly. A look of perplexity replaced his eagerness as he read the message aloud.

Yoshida Ito was in library from noon until twenty minutes of two P. M. today. Had long talk with him.

C. L. GLENWORTH, librarian.

The Japanese, standing hat in hand, overcoat over arm, spoke first.

“Is it permitted that I go?” he asked, addressing all but looking at Shively.

“Surely.” The conductor stepped aside and Ito, bowing gravely, motioned to the waiting porter to take his suitcases, and started for the

vestibule of the sleeper.

“One moment,” protested Shively, and Ito stopped, but again the conductor interfered.

“Go ahead, Mr. Ito,” he directed, and added, as Shively opened his mouth to expostulate, “No, no, Doctor, you can’t hold Mr. Ito, for you haven’t proved one thing against him; the librarian confirms his alibi.”

“But why should he leave the train at once, unless he’s running away?” demanded Norcross.

“Mr. Ito was only traveling as far as this anyway,” explained the conductor hurriedly. “His ticket read from Mobile to Spartanburg.”

On impulse Barclay wheeled about and made for the vestibule of the sleeper, but on reaching the platform he found he was too late—Yoshida Ito had vanished. Barclay returned to the smoker in time to hear the conductor’s concluding remark to Dr. Shively.

“Very well, Doctor,” he was saying. “Seeing that this Dr. Leonard McLane, whom Mr. Tilghman was on his way to visit, is his nearest relative, I’ll carry the body to Washington, but there the undertaker will have to ship it back to Atlanta for the coroner’s inquest, provided, of course, that Mr. Tilghman was really poisoned, as the crime must have been committed in the Atlanta jurisdiction.”

“Quite right,” acknowledged Shively. “The porter has just brought me the stomach pump I telegraphed for, and in your presence, Conductor, and that of Professor Norcross and Mr. Barclay, I will make a further and fuller test for trace of poison.”

“That sounds reasonable.” The worried railroad employee looked somewhat relieved. “I’ll join you in the stateroom as soon as the train leaves here. Let me give you the key to the stateroom,” and he dropped it into the physician’s hand.

With a strong feeling of reluctance Barclay accompanied Shively and Norcross into the stateroom. Shively had done what he could with the means at his command to convert the stateroom into an operating office; his bag, bottles, instruments—the latter lying in neat array on one of the couches on which was spread a white sheet. A sheet also was thrown over

Tilghman's body, lying on the other couch. The scene brought vividly to Barclay's mind the clinics he had attended years before, and as he sniffed the pungent odor of disinfectants, he almost imagined himself back once more obeying the directions of a famous surgeon. Shively's voice recalled him to his surroundings.

"I examined Tilghman's pockets hoping to find some clue of the murderer," explained Shively. "And took pains to replace each article as I found it, as Norcross can testify." The professor confirmed his statement with a vigorous nod.

"Did you discover anything which might turn into a clue?" inquired Barclay eagerly.

"Nothing that I considered a clue, but the police may have better luck." Shively paused to tear open the package he carried, and fitting the instrument together, laid it with others on the couch. "A letter from Dr. McLane, a bunch of keys, a bill folder containing several hundred dollars, some loose change, and that is all."

"A meager list for identification purposes," commented Barclay.

"If I could only lay my hands on the flask, or glass, from which Tilghman drank the brandy," fumed Shively. "Then I'd have the murderer." The opening of the door interrupted him. "Ah, Conductor, come in and close the door; now, if you are ready we can commence."

Several times while the stomach pump was in use Barclay became conscious of Shively's scrutiny, and he mentally cursed the instinct which betrayed his familiarity with medical instruments. Suddenly Shively held up a test tube, and his expression told the conductor what his lack of medical knowledge prevented him from grasping sooner.

"So Mr. Tilghman was poisoned," he stated, rather than asked.

"Yes, and by a dose of oxalic acid calculated to kill a dozen men," said Shively gravely. "Who could have administered it?"

"Who, indeed?" Barclay spoke with more force than he realized, and colored as they turned toward him. "I'm going to make it my business to find out, Dr. Shively. Good night," and not waiting for a reply he stepped into the corridor and made his way swiftly back to his own Pullman.

Barclay had been fortunate enough to secure an entire section to himself, owing to the scarcity of passengers, for the rush had set in to the south, and few were traveling northward. He found his berth not yet made up, and sinking back in his seat he thought over the events of the day. A painful desire to sneeze sent his fingers searching his pockets for a handkerchief, and in drawing it out a small object fell in his lap. After replacing his handkerchief Barclay picked up the chamois-covered bundle and unwound it. A girl's face smiled up at him from the hollow of his hand.

Barclay looked and looked again at the miniature, unable to believe his eyes. How had a painting of a total stranger gotten into one of his pockets? He turned over the miniature hoping to find some name or initial engraved on its back, but the handsome gold case was as blank as Barclay's mind. Gradually his dazed wits grasped the beauty of the girl. The artist had done full justice to the exquisite coloring and contour of the face, the golden curly hair, and the deep blue eyes, eyes so direct and clear they held his gaze, and he was conscious of a tantalizing wish to see her lips break into the smile which hovered in her eyes.

Barclay attempted to open the case, but there was no sign of hinge or spring, and fearing to break the ivory miniature in attempting to force it open, he rewrapped the gold case in the chamois and replaced it in his pocket. Could it be that someone on the train had dropped the miniature and he had absent-mindedly pocketed it? He racked his brain trying to recall each action of the day, but the miniature bore apparently no relation to any of them. How had it been slipped inside his pocket unknown to him? The thing smelt of legerdemain, and instantly his thoughts flew to the Japanese—but that was impossible. The girl was an American and her refinement and high bred air instantly placed her social position; she would not be likely to permit her miniature to be carried about by a Japanese designer, an artist—Good Lord!

Barclay stared in blank dismay at the seat before him, and gradually awoke to the realization that he was gazing directly at Professor Norcross, who had seated himself there a second or two before. With an effort Barclay pulled himself together.

"I'm glad you haven't turned in," said the professor. "For my own part I can't sleep. Listen, Barclay," he moved over and sat down by the latter. "I

have made the most astounding discovery——”

“What is that?” asked Barclay, as the professor paused to permit a passenger promenading the aisle to pass out of hearing.

“We have let a murderer slip through our fingers,” groaned the professor.

“Then you have identified——?”

“Ito?” breaking in on Barclay’s question. “Yes.”

“But——”

“Listen!” Norcross spoke slowly and emphasized each point. “Ito was the only person on the train who had a motive for the crime. Tilghman insulted him grossly; nothing so infuriates a Japanese as to be classed with a negro; they are the proudest race in the world. Ito took prompt retaliation on Tilghman for——”

“But how, Professor?” Barclay interrupted in his turn. “It has been proved by the librarian that Ito was at the Atlanta library at noon today, and Tilghman was poisoned at that same hour in the smoking car of this train.”

“Tilghman was killed here at noon, but not at the identical *hour*. Ito was at the library—man, you forget that Atlanta goes by central time, which is one hour slower than the eastern time, which prevails on this train——”

“Then you mean——?”

“That calculating by our watches Ito poisoned Tilghman at noon and an hour *later*, which by our time would be one o’clock, and by Atlanta time would be noon, was in the library. Thus he had ample opportunity to commit the crime and establish a perfectly good alibi at the Atlanta library.”

“But the Atlanta librarian telegraphed he was there at noon——”

“Of course, he was going by central time which, as I have just mentioned, prevails in Atlanta. We have been going by our watches which are one hour *ahead* of Atlanta. And between us we have muddled things up finely.”

“Let me get this clear!” Barclay rumped his hair with both hands. “Going by Atlanta time, Ito poisoned Tilghman at eleven o’clock this

morning, and was at the library at twelve?”

“Exactly.”

“But by the time prevailing on this train and our watches, Ito poisoned Tilghman at twelve o’clock and was at the library at one—and relying on our forgetting in our excitement the difference of time, handed us a perfectly good alibi.”

“You’ve put it in a nutshell.” Norcross rose. “The only opportunity the murderer had of entering the smoker unobserved was during the first twenty minutes following the train’s arrival in Atlanta. After that Shively and I stood in the vestibule smoking, while the porter was standing at the other end of the car until the train pulled out of the station.”

“How did you happen to think of the difference in time?” asked Barclay detaining the professor.

“Shively observed the hour stamped on the Atlanta telegram and commented on the fact that it was sent before he had wired, then we looked up the question of time, and that gave us the clew. To think of Ito putting it over on us.” The professor clenched his fists. “I’d like to put my hands on him.”

“So would I,” agreed Barclay cordially. “I have quite a number of questions to ask him,” and a mental vision of the girl of the miniature obscured for the moment the kindly, clever face of the naturalist.

CHAPTER V

RECOGNITION

“PLEASE tell Mrs. Ogden, Rose, that I will join her at once.”

“Very well, Miss Ogden,” and the trim maid departed.

Ethel Ogden, conscious that she had made a hurried toilet, and feeling but half awake, paused before her cheval glass and took a final look at her costume and hair, patting a stray curl into place, then left her bedroom in search of her cousin. She had a dim impression that to be late for breakfast would rank with one of the crimes of the Decalogue in the eyes of Walter Ogden.

The climate in Washington that winter had proved too severe for Ethel's father, and by the advice of his physician he had gone in December to winter with friends in Atlanta. Mrs. Ogden, torn between anxiety for her husband and her desire to be with Ethel, had thankfully accepted their cousins' invitation to have Ethel spend the winter with them.

Walter Ogden had been a frequent visitor to the National Capital for a dozen years or more, and in times gone by, before he had made his not inconsiderable fortune, Commodore Ogden had assisted him financially on several occasions. Both Walter Ogden and his wife had urged Ethel to visit them in their western home, but she had never been able to accept. Their last invitation had solved many difficulties for it enabled her to remain in Washington and continue her work.

Commodore Ogden, who had retired before the age limit from the United States Navy on account of old wounds, had found, some years before, his modest savings swept away in unfortunate speculation, and outstanding debts had further crippled his resources. Ethel, to the horror of her mother, whose old-fashioned ideas did not include a tolerant view of the modern woman, had found her *metier* in teaching English to foreigners residing in Washington, and with the salary received from her pupils dressed herself and contributed to the household expenses.

During the forty-eight hours she had been with her cousins, Mr. and Mrs. Walter Ogden, she had seen little of them, owing to her own business and social engagements, and had not had time to properly adjust herself to the household routine. The house was a large one, and reaching an intersecting corridor in the wide wall, Ethel paused in indecision. Had she turned to her right or to her left when leaving Mrs. Ogden's pretty bedroom the night before? Debating the point in her own mind, however, did not settle the question, and Ethel, finding a bedroom door ajar on her right, laid her hand on the knob.

"Caught entering 'Blue Beard's chamber,'" said a soft languid voice just back of her, and wheeling about Ethel confronted her cousin. "Fie! Fie! Ethel."

"I plead guilty only to searching for you." Ethel's gay laugh was infectious. "Tell me, is 'Blue Beard's chamber' where Cousin Walter abides?"

"Mercy, no." Mrs. Ogden tucked her hand inside Ethel's. "'Blue Beard's Chamber' is the *raison d'être* of our being here. On account of it Walter was offered the house at a ridiculously low rental—one hundred and fifty dollars a month."

"One hundred and fifty for this!" Ethel's voice was raised in a crescendo of astonishment, and her eyes swept the well proportioned hallway and the vista of spacious rooms opening from it, and the handsome stairway down which they were passing. "Is there a 'harnt,' as the darkies say, in 'Blue Beard's Chamber,' or is the house considered unlucky that the owners give it away?"

"Neither—a much less romantic reason. The owner, what is his name? Never mind, Walter attends to all that"—with placid disregard of details. "The owner is a *divorcé* who, owing to some technicality of the decree, must keep his legal residence in Washington; so he leases this house for a song, with the proviso that he is permitted to keep a bedroom containing his personal belongings and occupy it occasionally."

"But, Cousin Jane, how unpleasant!" ejaculated Ethel. "Suppose he elects to spend the winter with you?"

“Well, at that, my dear, we’d be saving money.” Mrs. Ogden straightened a rug on the handsome hardwood floor. “It’s a wonderful house for the money, and you know nothing pleases Walter so much as to save.”

Mrs. Ogden’s frank discussion of family traits and failings was apt to prove disconcerting and Ethel colored with embarrassment.

“I think it is perfectly dear of you to take me in this winter,” she began, but Mrs. Ogden cut her short.

“Don’t look at it in that light, my dear,” she said with kindly intent. “Both Walter and I are devoted to you, and I am looking forward to your companionship this winter. Walter is so immersed in business, and he never will assist me in my social duties.”

“Late again, Jane,” announced a querulous voice as they entered the dining room, and Walter Ogden looked up from behind the folds of a morning paper. “I hope, Ethel, you will teach Jane punctuality.”

“I’m more apt to prove a culprit in that regard than a teacher,” declared Ethel. “I’m seldom on time in the early morning.”

“Too many late hours,” grumbled Ogden, rising heavily to pull out a chair for his wife.

“Did you enjoy the dance last night, Ethel?” asked Mrs. Ogden, rattling the coffee cups with unnecessary vigor in the hope of diverting Ethel’s attention from Ogden’s early breakfast grumpiness.

“Very much!” Ethel took a large helping of cereal offered her by the attentive butler. “But it was a later affair than I anticipated, and on the way home Jim Patterson’s car had a blow-out.”

“Oh, did Mr. Patterson bring you back?”

“Yes, and the Marshalls as well.” Ethel smiled demurely. Mrs. Ogden’s interest in James Patterson, United States representative from California, was transparent.

“I can’t think why you don’t marry Jim Patterson, Ethel; he’s asked you often enough,” remarked Mrs. Ogden, taking in her cousin’s fresh young beauty with an appraising glance. “And then you would be able to give up your tiresome teaching.”

“But my teaching is not tiresome,” protested Ethel, flushing hotly. “You try giving lessons in conversational English to some of the diplomats and you will soon find how amusing it is.”

“I hope for the foreigner’s sake, Ethel, you don’t use old-fashioned phrase books,” broke in Ogden. “I recall that some years ago the wife of a diplomat brushed up her English, of which she spoke only a few words, before attending a large luncheon, and during a pause in the conversation, she remarked politely to her hostess: ‘I see the rat. The rat is under the chair,’ and consternation prevailed until the hostess and other guests grasped the situation.”

“My pupils have no opportunity to quote from primers,” laughed Ethel. “I never use them. We talk, read, and compose, and I have them write letters to me. Oh!” she paused and took a letter from her bag. “This came last night from Maru Takasaki. I asked him to write me his impressions of the Diplomatic Reception at the White House. Do listen, he is my prize pupil,” and she read the note aloud.

MY DEAR MISS OGDEN:

I have honor to inform you a news which you have been so anxious to hear.

Last evening we went duly to the White House where we were received by Mr. President, assisted by the ladies of the Cabinet as usual.

All the rooms were lighted brilliantly, and the Marine musical band made the scenery more vivid and attractive. The strange costumes of the different countries, mixed with the plain dress of this country, at once reflect the peculiarities of these nations.

Doubtless it was the grandest reception that has ever happened in this city. But all these things are not the object of my information; the only thing which I intend to inform you is that there was a punch, to your astonishment, and thus to the satisfaction of all the hosts. Indeed, the iced Californian claret was the only drinkable matter, besides several kinds of cold meats and dessert.

I cannot keep this event in myself for so many days, seeing that you have been so anxious to know. Details I will reserve till the Monday evening when I shall meet you.

Yours sincerely,

MARU TAKASAKI.

“Maru Takasaki,” repeated Ogden. “Is he the new *attaché* of the Japanese Embassy?”

“Yes; and he is so pleased with his progress in English that he wishes me to give lessons to his wife, who has just arrived from Japan. They have taken a house two blocks from here and have just moved in.”

“I predict you will shortly have more pupils than you can handle,” and Mrs. Ogden smiled at Ethel’s enthusiasm. “But you must not be so busy that you cannot be nice to my cousin”—she stopped speaking as the butler approached her husband and commenced whispering in his ear. “What is it, Walter?”

“You say he’s *here*?” asked Ogden, paying no attention to his wife’s question.

“Yes, sor,” and Charles, the butler, laid a visiting card in front of Ogden. “At the door, sor.”

“Good Lord!” Ogden dropped his napkin and gazed blankly across at his wife. “He’s come——”

“He—who? Not——” Eager welcome in her eyes.

“No one you know,” responded Ogden. “The owner of this house—Professor Richard Norcross—has come to occupy ‘Blue Beard’s Chamber.’”

“Well!” Mrs. Ogden blinked in astonishment. “What a mercy I put on my most becoming morning gown. Ask him in to breakfast, Walter,” and, as her husband left the room, she added hastily, “Don’t desert me, Ethel.”

“I really ought to be at Mrs. Henderson’s in twenty minutes, Cousin Jane,” expostulated Ethel, but she lingered a moment longer to fold her napkin, and the next second Ogden had entered, followed by Professor Norcross.

“It is very kind of you not to look upon my arrival as an intrusion,” said the professor, after greeting Mrs. Ogden and Ethel. “I sent word to my agent to notify you, Mrs. Ogden, that the law required that I make a brief visit to Washington.”

“We shall try and make your stay pleasant,” answered Mrs. Ogden cordially. She was agreeably impressed with the professor’s scholarly appearance. “Charles, bring some hot coffee. Oh, don’t go, Ethel,” as the latter moved toward the door.

“I really must, Cousin Jane, I’ll be back in time for luncheon,” and nodding a smiling farewell to the men, Ethel whisked out of the dining room.

Fifteen minutes later Ethel opened the front door of the house with more than her accustomed impetuosity and ran into the arms of a distinguished looking stranger.

“I beg your pardon,” gasped Ethel, straightening her hat which had tilted at a rakish angle on encountering the stranger’s forehead. “The butler will be here in an instant; oh, here he is now——” and Ethel dashed down the steps.

“Do you wish to see Mr. Ogden?” inquired Charles, but his question passed unheard, as Julian Barclay gazed after Ethel;—he had found the girl of the miniature.

CHAPTER VI

AT THE JAPANESE EMBASSY

MIDNIGHT was fast approaching, but the reception at the Japanese Embassy showed no signs of diminished attendance or lack of enjoyment among the guests. Diplomatic and official Washington was present to do honor to the Mikado's birthday.

Mr. and Mrs. Walter Ogden and their guests were among the late arrivals, and Ethel Ogden received a warm welcome from Maru Takasaki, who hastened to greet her, and, with an air of great pride, presented her to his wife. Madame Takasaki's pretty face broke into a friendly smile and she shook Ethel's hand with marked cordiality.

"You so nice to Mr. Takasaki," she lisped, with a delicious accent. "He tell me of long white lady who teaches him."

Ethel cast a startled look at a wall mirror which reflected back her blond beauty, and the Japanese's description of a "tall blonde" brought a smile to her lips and her eyes danced.

"And how do you like America, O Takasaki-San?" she asked.

"So much," Madame Takasaki raised her hands as if measuring her meaning. "American people so nice," she smiled and nodded at her questioner. "But it so strange they have so large noses, the noses give me terror." Ethel, following Madame Takasaki's glance, laughed outright; truly her compatriots' noses did appear large when compared to the small features of the Japanese. The arrival of Maru Takasaki, who had left them a few minutes before, with another Japanese prevented her reply, and she was introduced to Mr. Saito who, Madame Takasaki explained, had arrived only that morning.

"You speak Japanese, Mees Ogden?" inquired Saito.

Ethel recalled a phrase she had picked up in looking over a Japanese-Italian phrase book, meaning, "Not yet," and in a spirit of mischief, she responded, "*Mada-mada*," then dimly wondered at the alteration in her

companion's manner. But Julian Barclay's abrupt arrival gave her no time to question Saito.

"Won't you go into supper with me, Miss Ogden?" demanded Barclay eagerly.

"Thanks, but I cannot," Ethel's eyes sparkled at the disappointment which Barclay made no attempt to hide. "But perhaps——"

"Yes?" eagerly, as she stopped tantalizingly.

"I see there is dancing in the ballroom, and after supper——"

"You'll dance with me?" eager anticipation in his voice.

"If you are good." Ethel turned to include Mr. Saito in their conversation, but he had moved over to the ambassador's side and was talking eagerly to him and Maru Takasaki. They turned simultaneously and looked at Ethel and she was surprised by the concentration of their gaze. Angered by their staring, she turned abruptly to Barclay. "I promised to go out to supper with Professor Norcross. Have you seen him?"

"Not since we reached here," moodily. "He monopolized you shamefully all this evening. Can't think what you see in the old fogy."

"Why, he is most entertaining," protested Ethel. "He has traveled all over the globe and in the most interesting places. And he isn't old, not over ——"

"Sixty!"

"Nonsense!" indignantly. "I don't believe he is forty-five. It's those glasses he wears which give him a venerable air; if you examine his face you will find it quite young——"

"I'll take your word for it; can't waste time examining *his* face," and Barclay's gaze never left Ethel. "Don't move, Miss Ogden," he entreated. "Against that background of wonderful old silk hangings you'd made a lovely miniature."

"Flatterer!" Ethel's eyes sank under his ardent look. "I'll never achieve a miniature; they are too expensive."

“Do you mean to say that your family or friends have never had your miniature painted?” asked Barclay incredulously, and his hand felt the small gold miniature case tucked securely inside a concealed pocket of his dress suit. If the miniature had fascinated him, its living prototype had bewitched him, he admitted with secret rage, but he could no more tear himself away from Ethel’s vicinity than the proverbial moth can ignore the candle. “Never had your miniature painted?” he repeated.

“Never,” Ethel laughed faintly at his persistent vehemence. “Awfully short-sighted of them to overlook such a thing of beauty,” she mocked. Like most really beautiful women, Ethel rarely thought of it. But she was aware of a charm, all her own, for it had smoothed life for her since childhood. Her blue eyes, which met every gaze with frank interest, were made for laughter, but in moments of stress their glance deepened, and she was rarely deceived by specious flattery or the equally treacherous frankness which often covers deceit. Her pale golden hair was her crowning beauty which, with the unconscious grace of her every movement made her presence felt however or wherever she appeared. “Here comes Professor Norcross,” she announced, glancing down the room.

“Then I’m going,” ejaculated Barclay. “Don’t forget those dances,” and he disappeared behind the portières as the professor pushed his way through the throng and joined Ethel.

“Curious, morose sort of chap, Barclay,” observed Norcross. “What made him leave you so suddenly? I asked,” he hastened to explain, seeing her surprise at the question, “because I have a feeling that Barclay is avoiding me.”

“Why should you think that?” parried Ethel. She had observed Barclay’s distraught manner and lapse into silence whenever the professor appeared, and the situation was commencing to pique her curiosity. Not getting an immediate reply to her question she changed the subject. “Suppose we go out to supper,” she suggested, and Norcross accompanied her across the room. They found the dining room too crowded for comfort, and at Norcross’ suggestion Ethel remained near the entrance, while he went in search of an ice.

Their progress toward the dining room had been attentively watched by the ambassador who, exchanging greetings with his guests, imperceptibly

followed Ethel and reached her side just as the professor left her.

“Ah, Miss Ogden,” he said. “Why have you never confided to me that you speak Japanese, when instructing my wife in English?”

“But I don’t speak Japanese,” protested Ethel, somewhat bewildered. Her charming personality had won her a friendly footing in their household and the regard of both the ambassador and his wife, and she had particularly enjoyed having the latter for a pupil the year before.

“But, Miss Ogden, you answered Mr. Saito in Japanese,” answered the ambassador, regarding her steadily.

Ethel laughed. “I picked up the phrase ‘*mada-mada*’ in one of your textbooks,” she explained.

“But that is very clever,” and the ambassador looked at her with a new respect.

“Frankly,” Ethel’s love of fun got the better of her, “Your Excellency, I am a very clever woman,” and she laughed at his serious reception of her jesting. “But no one has discovered it until now. I thank you for the compliment.”

The ambassador bowed gravely and started to speak, but the arrival of a Cabinet officer caused him to turn hastily away, and Ethel welcomed Professor Norcross and his cooling ice with unaffected pleasure.

“I think the Japanese are the most inquisitive, suspicious people I’ve ever encountered,” she confided to him. “They pursue the same idea for hours and hours. I’ll never be able to convince Mr. Saito that my knowledge of Japanese is limited to three or four words. Now, if I were an accomplished linguist like Mr. Barclay—gracious, I wonder what the ambassador would say if he knew Mr. Barclay speaks Japanese.”

Norcross laid down his spoon on his empty plate. “You heard him, then, speak Japanese?”

“Yes, just as we were entering the house. Have you known Mr. Barclay for a long time?”

“No, I never met him until two nights ago on the train coming to Washington,” replied Norcross, handing Ethel a glass of lemonade and

surrendering his empty plate to a servant.

“It was quite a coincidence that you should both be traveling together toward the same house and never realize it until you met there,” commented Ethel. The crush was thinning out, and in the comparative silence, strains of music floated to them from the ballroom, and her foot unconsciously beat time. Norcross caught the direction her eyes were straying, and spoke more quickly than customary.

“You dance, Miss Ogden?”

“With me,” announced Barclay just back of them, and Norcross colored at the curtness of his tone.

“I have promised this dance to Mr. Barclay,” explained Ethel hurriedly, half resentful of Barclay’s air of proprietorship.

“Then will you give me the next?” asked Norcross.

“Surely,” and smiling a gay farewell, Ethel laid her hand on Barclay’s arm and they walked in the direction of the ballroom. Norcross watched them out of sight, then strolled over to the buffet and secured a cup of coffee.

Ethel was one of the best dancers in Washington, and to her delight found Barclay equally proficient. At the end of the dance, when the orchestra played an encore, she agreed with enthusiasm to Barclay’s request that they continue, and Barclay, his eyes seldom straying from his beautiful companion, forgetful of all vexing problems and ignoring prudence, danced as he had seldom danced before.

Ethel’s absorption in the dance made her oblivious of the presence of a tall, burly man who stood by Mrs. Ogden and answered the latter’s remarks in haphazard fashion. Her companion’s inattention was not lost on Mrs. Ogden, and she smiled to herself on catching the direction of his gaze.

“Ethel looks very lovely tonight, Mr. Patterson,” she remarked.

“Yes, *very*,” and the emphasis on the adjective satisfied her match-making mind; Representative Patterson most certainly wore his heart on his sleeve, and gossip for once appeared right; he was undoubtedly in love with Ethel. “Who is the man she is dancing with?” he questioned a moment later. “His face appears familiar, but I cannot place him.”

“My cousin, Julian Barclay.” Mrs. Ogden made room for Patterson on the settee she was sharing with another dowager. “Just returned from Panama, and I haven’t seen him for years. He has taken a great fancy to Ethel,” with a sidelong glance at Patterson. Mrs. Ogden had decided to hurry Fate. “We have such a jolly house party now that Julian and Professor Norcross have joined us.”

“Norcross, the naturalist?” Mrs. Ogden nodded. “He is a clever man. I am puzzled by your cousin; I feel sure that I have met him somewhere.” Patterson’s heavy eyebrows met in a frown. “And he is the type of man not easily forgotten.”

“I’ll introduce you to him, and then you can compare notes,” volunteered Mrs. Ogden, catching Ethel’s eye, and beckoning to her.

“Cousin Jane seems to want us,” said Ethel, and Barclay looked in the direction indicated. Ethel’s hand was still on his arm, and she felt the muscles stiffen. She looked up startled, to learn nothing from his blank expression.

“Won’t you give me another dance?” he asked.

“Perhaps—later,” Ethel dodged an awkward couple who threatened to careen against her as they danced past, and made her way down the room. “Good evening, Jim,” she exclaimed, stopping by her cousin. Her extended hand was eagerly clasped as Patterson welcomed her enthusiastically.

“Mr. Patterson—my cousin, Mr. Barclay,” chimed in Mrs. Ogden, and releasing Ethel’s hand reluctantly, Patterson turned to greet Barclay.

“Haven’t we met before?” he asked, and his gray eyes scanned Barclay intently.

“It may be,” Barclay’s cheery smile was almost boyish. “Were you in Chicago two years ago?”

“N-no,” thoughtfully. “I think not.”

“You two can reminisce later on,” interrupted Mrs. Ogden hastily. “At present, Julian, I wish to introduce you to Miss Van Alstyne,” and before Barclay could protest he found himself before an extremely plain girl who accepted his request for a dance almost before it was spoken.

Patterson watched Barclay depart with a thoughtful frown, then turned to Ethel.

“Suppose we sit out this dance,” he suggested. “I want to talk to you, to have you all to myself,” and Ethel read in his expression the longing he did not strive to conceal from her.

She had twice refused Jim Patterson, but he had declined to accept dismissal, pleading that his great love for her must eventually bring in return a like affection. His dogged persistence had won her respect and liking, and she had, with a determination almost fierce, nearly convinced herself that her liking was becoming something warmer, stronger; but tonight—Ethel closed her eyes as if in pain.

“I wish to dance,” she announced, and Patterson, angered by her imperious tone, of which, to do her justice, she was totally unconscious, placed his arm about her and swung her into the dancing throng.

But as Ethel kept step to the music her heart was in hot revolt. What influence was at work to upset her resolution? Why could she not marry Jim Patterson? He was generous, chivalrous; surely to accept his offer of marriage was to insure not only her future happiness, but the welfare of her invalid father and delicate mother. Other girls married to secure the ease of mind and comfort which money could bring. She had not wantonly encouraged Jim Patterson; two refusals could not be construed as leading him on to a flirtation. He knew she did not love him; but their tastes coincided; surely her liking for him would bridge the matrimonial chasm as well as love? A word—one little word—

Patterson, who had been dancing in silence, drew Ethel closer to avoid collision with another couple, and the nearness of her presence broke down his anger.

“Give me my answer, Ethel?” he whispered in her ear. “Say I have a chance?”

A loud burst of laughter near them drowned her reply, and as Patterson bent nearer, she faltered, recovered herself, and stammered brokenly:

“I can’t, Jim; it’s just impossible.”

In bitter disappointment Patterson straightened up, and thereby missed the look exchanged between Ethel and Julian Barclay, whom chance and the dance had brought by their side. Ethel's heart was beating with suffocating rapidity as she passed down the room. What witchery lurked in Julian Barclay's dark eyes to alter her preordained destiny?

Barclay surrendered Miss Van Alstyne to her next partner with a thankful heart and outward regret, and avoiding Mrs. Ogden, made his way out of the ballroom. He was in no mood for talking; he wished to think—and dream—of Ethel Ogden. Why had she looked at him so strangely when chance brought them together in the dance? Was it deep calling to deep? With difficulty he curbed his desire to rush to her. Madness and matrimony both commenced with the same letter, he reminded himself bitterly, and in honor he must banish all thought of Ethel Ogden and settle his mind to solving the problems confronting him. Not the least of these problems was the miniature. Ethel had denied having had one painted, but it might have been done from a photograph without her knowledge—the real mystery was why her miniature had been placed in his pocket, by whom, and how?

On the arrival of the Washington, New Orleans, and San Francisco Express that morning at the National Capital, Barclay, with Dr. Shively and Professor Norcross had made a deposition of the events relating to Dwight Tilghman's death. Barclay had been the last to be heard by the coroner and the notary, and when he left the Union Station, Shively was in deep conversation with Dr. Leonard McLane who had just arrived, and Barclay forebore to interrupt them. Norcross was nowhere in sight.

Barclay had given his Washington address to the coroner, but had not mentioned it to either Shively or Norcross, and his astonishment at finding Norcross also a guest at the Ogdens' was as great as the professor's surprise at seeing him so soon again. Beyond exchanging a few words with him, Barclay gave his entire attention to extracting information about Ethel from his cousin, Mrs. Ogden. The unexpected discovery of the identity of the unknown girl of the miniature acted as a spur to his keen desire to penetrate the riddle of Dwight Tilghman's murder and the disappearance of his silver flask; but what bearing his involuntary acquisition of the miniature had upon these two events he could not conceive.

Refusing a glass of champagne, Barclay wandered through the dining room, which was becoming crowded again with the ceasing of the dancing, and as his eyes traveled about the room, he encountered the fixed stare of a Japanese standing by one of the doorways.

“Ito, by all that’s wonderful!” ejaculated Barclay under his breath and plunged forward. But two stout dowagers stepped in his way and delayed him, and by the time he had elbowed his way to the door the Japanese was not in sight.

Barclay paused in perplexity. “It surely was Ito,” he muttered. “And yet the Japs look so alike I can’t swear”—he paused to scan several Japanese who stood talking near him. Ito certainly was not in that group, and turning, Barclay walked down the hall. He found a room opening off it half way along, and on impulse pulled back the portières and entered.

The room, empty except for himself, was obviously a den or library; handsome bookcases lined the walls, comfortable lounging chairs and a few small tables stood about, while on the hearth a wood fire burned cheerily, and the light from the electric lamps was reflected back from handsome silver ornaments lying on the desk which stood in the center of the room.

Barclay, realizing the room was not open for guests, started to retreat, when he caught sight of a silver flask lying among the desk ornaments, and moved by curiosity he picked it up and examined the intricate scroll work by aid of the droplight. The design was identical with the chrysanthemum pattern on his flask. In every way, style and size, the two flasks were mates, if not the same.

Barclay started as the bare possibility occurred to him, and broke into a profuse perspiration. Pshaw! he was mad! He had last seen his flask in the possession of Dwight Tilghman on the express train—it was beyond probability to find it on the desk of the Japanese Ambassador! Beyond probability, yes; but not beyond possibility—had he not seen Ito in the dining room, and evidence went to prove that Ito had poisoned Tilghman. If he had placed that poison in Barclay’s flask, what more likely than his leaving such incriminating evidence where it might never be found and traced?

Barclay held the flask up to the light and tilted it. A little liquid remained in it, and he came to a quick decision.

On entering the room Barclay had failed to note that at its far corner it opened into a conservatory, and as he pocketed the flask, he did not see the red glow of a cigar among the leaves of the tropical plants.

CHAPTER VII

THE LESSON

TWO weeks had glided by and Julian Barclay was no nearer solving the mystery surrounding the death of Dwight Tilghman than the day the crime was committed. He had turned in despair to a more fascinating enigma—Ethel Ogden; and too late he realized that she was becoming all in all to him, and his stifled conscience gave him little peace when away from her bewitching presence. Ethel, to the secret indignation of her cousin, Mrs. Ogden, did not discourage his attentions, closing her eyes to the future and to James Patterson's growing fury.

"You must talk to her, Jane," declared Walter Ogden, as Ethel bidding them a laughing good-by, left the house to give her Tuesday morning lesson to Maru Takasaki. "This flirtation cannot keep up. Ethel is treating Jim Patterson shamefully if, as you have given me to understand"—shooting a keen look at her from under his shaggy eyebrows, "Ethel has virtually accepted him."

Mrs. Ogden flushed; she was prone to exaggeration, and with her to wish a thing was often to state its materialization.

"I am greatly surprised at Ethel," she replied, carefully avoiding a direct answer. "She must realize the desirability of the match. Aside from Mr. Patterson's agreeable personality—why, every mother with marriageable daughters has angled for him—he is madly in love with Ethel, I know *that*."

"Then, if such is the case there is certainly no excuse for Ethel's playing Barclay against him," Ogden dug his pen viciously into the inkstand. "It's a great pity, Jane, that you ever invited Barclay here; wasn't there some old scandal"—and he puckered his forehead in thought.

"Mercy, that's long since lived down and forgotten," exclaimed Mrs. Ogden cheerily, but she had paled and her husband observed it in silence. "I've never had an opportunity to return the Barclays' kindness to me when I most needed assistance—before I met you, dear," kissing him affectionately. "This is the first hospitality I've ever shown Julian."

“That is not your fault,” said Ogden impatiently. “Julian apparently has chosen to ignore his relatives, until his letter to you last month out of a clear sky, and you are under no obligation to assist his idle flirtation with my cousin, Ethel. I advise your giving him a hint that he terminate his visit.”

“Walter!” But Mrs. Ogden’s scandalized expression was lost on her husband, who was busy casting up a long array of figures. “I shall do nothing so inhospitable. No, Ethel must work out her own salvation. I”—primly, “never interfere in other people’s affairs.”

Ogden smiled, not unkindly. “Then send Ethel to me, or better still, I’ll talk to Barclay.”

“You must not put all the blame on Julian,” protested Mrs. Ogden, quick to resent another’s disapproval of her cousin, although secretly displeased with him. She was longing for the *éclat* which a fashionable wedding would give her in Washington society, and had already planned to ask Ethel and Representative Patterson to hold their wedding in her house. And now her own cousin had come along and threatened by his inconsiderate flirtation to upset her social campaign. “Walter,” moving nearer her husband and lowering her voice, “has it not struck you that Professor Norcross is *épris* with Ethel?”

“Norcross?” Ogden leaned back and indulged in a dry chuckle. “My dear Jane, your imagination is working overtime.”

“Well, he got married once!”

Ogden chuckled again. “Jane, romancing is your forte. If you are not careful,” shaking an admonitory finger at his wife, “you may imagine I have fallen a victim to Ethel’s charms. Now, run along, and leave me to my accounts. How often must I tell you that I cannot be interrupted by trivialities?”

“Why, you commenced the argument,” protested Mrs. Ogden, but ten years of married life had taught her the uselessness of combating her husband’s wishes, and she reluctantly withdrew. Ogden did not at once resume his perusal of his business affairs.

“What was it I heard about Julian Barclay,” he muttered. “For a chatterbox Jane is marvelously close-mouthed where her relatives are concerned.”

Two blocks away Ethel Ogden was indulging in bitter reflections, in which Jim Patterson and Julian Barclay largely figured—much to the detriment of the English lesson. But Maru Takasaki came of a patient race, and neither by word or sign betrayed his knowledge of Ethel's inattention or the flight of time.

"The President leaves tomorrow for California," announced Ethel, awakening from her day dreams.

"Is it so?" and Takasaki took up his pencil, his voice expressing mild surprise.

"He is not really going," explained Ethel, her face dimpling into a smile. "I used the first sentence that came into my head for dictation purposes. I suppose to mention the Mikado in such a manner would be *lèse majesté* in your country?"

Instead of replying Takasaki contented himself with writing out the dictation in his precise, careful writing, and Ethel, leaning across the table examined the paper with interest.

"Very well done," she said. "I think I have gotten you to remember the definite and indefinite articles."

"I thank you so much." Takasaki's deferential bow always delighted Ethel, it was the only thing expressive and individual about the Japanese. "My wife, who studied at the English school for the highborn in Nippon, predicts that I do well."

"Madame Takasaki is a very earnest scholar," commented Ethel. "It delights me to see her pegging away so silently."

"Pegging?" Takasaki eyed Ethel in puzzled surprise, the word did not fit into his knowledge of English; then a grieved look crept into his eyes, and he said in a tone of the blindest astonishment. "Mees Ogden, did you ever hear a noise I made?"

Ethel hastened to reassure him. "No, I never did," she said with honest vehemence. "You and your wife are the most silent pupils I have."

Takasaki bowed. "May we talk?" he asked as Ethel picked up a textbook.

“Surely. Tell me of your impressions of the mobilization of our fleet in Hampton Roads.”

“Grand, majestic,” replied Takasaki. “Such a harbor! I see you there for a glimpse at the hotel?” The last was unmistakably an interrogation.

“Yes. My cousins, Mr. and Mrs. Walter Ogden, Professor Norcross, Mr. Barclay and I made up a party and went down to Old Point Comfort. I have an idea,” Ethel examined her pencil with care, “that Mr. Barclay must have spent much time in Japan.”

“So?” was Takasaki’s only comment.

“Have you ever met him in the East?” asked Ethel, choosing directness as the only method of getting an answer from the Japanese.

Takasaki pondered her question. “I think not,” he answered. “Mr. James Patterson, yes; he came with a party from your Congress.”

“Mr. Patterson, oh, yes, he is very much interested in the Eastern question,” Ethel pulled herself up short; Jim Patterson’s interest in the Japanese was far from complimentary, and his endeavors had been to assist legislation for their exclusion from the country. To discuss him and his opinions would be in the present company a ticklish subject. “Well, what did you think of our battleships?” she queried, anxious to get away from dangerous ground.

“Wonderful,” the Japanese raised his hands in a characteristic gesture. “You say Mr. Barclay travel much in Nippon?”

“Well, I believe so,” Ethel gathered up her belongings preparatory to leaving. “But he has never told me much about his travels. It just occurred to me that perhaps you had met him before coming to Washington.”

Takasaki shook his head. “You forget I in Diplomatic Service,” he said speaking more quickly than usual, and dropping his precise and formal English. “I seldom in Nippon.”

“True.” Ethel concealed her disappointment. She was gradually awakening to the realization that Julian Barclay was absorbing her thoughts to the exclusion of all else, and to her consternation his name invariably cropped up in her conversations if he was not present.

A discreet tap sounded on the door, and at Takasaki's command a man servant stepped into the drawing room.

"Mr. Barclay call for the Honorable Miss," he announced.

Ethel colored hotly as she rose in some haste. "You make my lessons so agreeable, Mr. Takasaki," she said. "I never realize when the time is up."

"You so kind," the Japanese bowed low over her hand. "Why not wait and permit that Mr. Barclay be entertained. My wife, she better, and be down in a little second." Turning to the servant he gave a rapid order in his native tongue, and bowing, the Japanese servant withdrew, to return almost immediately with Julian Barclay.

Ethel watched the greeting between the two men, but learned nothing from Barclay's sauvally polite manner and Takasaki's changeless expression; if they had met before there was no indication of it in words and behavior.

"Mees Ogden tells that you visit in Nippon," said Takasaki, and Ethel again colored warmly; what must Barclay think of her for discussing him with the Japanese?

"I stopped there en route to the Philippines some years ago," said Barclay. "I was greatly interested in your embroideries, tapestries, and works of art."

"Ah, yes. Many Americans buy our art work, and we are left without."

"But in your progressive land there must be skilled workmen who duplicate the curios and sell them to tourists as originals, are there not?" questioned Barclay.

"Don't tell me that Yankee ingenuity abides in the land of the chrysanthemum," protested Ethel.

Takasaki smiled broadly. "There live deceivers in every land; but it not possible for the antiques to be made again; the design of which is a lost art."

"How about silver ornaments—flasks?" Barclay's eyes never left the Japanese. "I bought one, curiously shaped, with a chrysanthemum pattern traced upon it, and believed it to be the only one of its kind. And yet, I have seen two of these flasks within two weeks."

“We no have silver flasks in Nippon,” replied Takasaki quietly. “We have saki bottles—you mean those? No? Then you no buy silver flask in Nippon.” Takasaki’s tone of finality caused Ethel to stare at the two men, and she grew aware of an under-current of antagonism between them, and like the born diplomat that she was, instantly plunged into the conversation.

“I should love to own some real Japanese jewelry,” she said. “I imagine it must be very beautiful.”

“We no have jewelry,” announced Takasaki, smiling at her enthusiasm. “Only coat ornaments, neck charms, but no rings——”

“Then this must be Chinese.” As he spoke Barclay drew a ring from his little finger and passed it to the Japanese, who carried it to the window to inspect it in the sunshine.

“What a beautiful piece of jade!” exclaimed Ethel peeping over his shoulder. “It is so green, and what a unique setting!”

The jade, cut almost square, was set high in solid gold, and a dragon, heavily carved in the gold, was coiled around the jade, its head and claws overlapping the brilliant green stone.

“The ring is made by hand,” volunteered Takasaki, after a brief silence, and turning it over and over. “A Chinese curio——”

“And if I am not mistaken, a woman’s ring,” supplemented Barclay. “It is very small, and barely fits my little finger.”

“Has it no legend?” asked Ethel.

“It was perhaps worn by the highborn many many years ago,” said Takasaki. “In Nippon I have believed what you call”—he thought a moment for the word he wanted—“tradition, which says that jade for the woman wearer on the coats is a token of love’s loyalty.”

“And for the man?” asked Barclay, accepting the ring and slipping it on his little finger.

“For the man”—again Takasaki paused, and his face was unsmiling, “it signifies betrayal and death.”

“What a very gloomy outlook!” laughed Barclay, inspecting the ring on his finger. “I am glad your tradition is more kind to the woman, and grants

her”—his eyes sought Ethel—“love’s loyalty.”

“We Nipponese are loyal to our gods, our country, and our women,” Takasaki’s tone was almost a rebuke in its seriousness. “Betrayal merits death.”

“Quite so.” Barclay stooped over to pick up Ethel’s fur muff, and she missed seeing his expression. “Let me carry those books, Miss Ogden?” putting out a hand toward a small pile of them on the table.

“Thank you, but the books stay here for Mr. Takasaki,” smiling at their host. “You will write that composition before the next lesson.”

“But yes.” They moved toward the hall and Barclay dropped behind for a second. “My wife—” Takasaki turned about and waited for Barclay to catch up with them. “She will be at the next lesson. When you come to Nippon again, Mr. Barclay, do not only look at curios.”

Ethel darted a look at the two men—her quick ear had caught a hint of menace in Takasaki’s monotonous voice, but his expression was devoid of meaning. Barclay’s cheery smile reassured her.

“I’ll follow your advice, Mr. Takasaki,” replied Barclay, passing out of the front door held open by the attentive servant. “But I hardly expect to visit Japan again. Good morning,” and the door closed behind him.

Barclay caught up to Ethel and suited his step to hers. “We have plenty of time,” he coaxed. “Let’s go over to the Corcoran Gallery. There is an exhibition of Japanese paintings which I particularly want you to see.”

But Ethel shook her head. “Don’t tempt me to be idle,” she said. “I have letters to write for Cousin Jane. You”—with a kindly glance for his evident disappointment—“can come with me if you wish?”

“If I wish!” he echoed with such emphasis that both laughed involuntarily. Before he could say more Ethel sprang on board an up-town electric car, and to his chagrin he had no opportunity in the crowded street car to exchange further words with her. On reaching the Ogden residence Ethel went at once to Walter Ogden’s den on the second floor.

“Claiming the privilege of cousinship, I am coming in, too,” announced Barclay from the doorway. “I feel sure I can help you get rid of those letters”—pointing to several lying on a desk.

“Come in,” replied Ethel, seating herself and sorting writing paper and pens. “But, oh, please don’t talk.”

Barclay did not need the injunction—to sit and look at Ethel had become a matter of habit and happiness with him, and he watched her deft fingers cover page after page with legible but stylish writing with never flagging interest, and the intensity of his regard brought an added light to her eyes.

It was the first time Barclay had been in the large costly furnished room which, opening out of Walter Ogden’s bedroom, he had taken for an upstairs sitting room, and which Mrs. Ogden had promptly called the den. Ethel had been installed there soon after her arrival, and her art metal typewriting desk, which she had brought with her as well as her Underwood typewriter, had been placed midway between the hall door and the entrance to Ogden’s bedroom. She had been somewhat upset over being so far from the light, but Ogden had given her a powerful electric droplight and that had helped her materially. Ogden’s own desk, a massive affair, occupied the space between the two windows, while Mrs. Ogden’s lounge, a bookcase filled with light literature, a highboy, several tables, and numerous upholstered chairs and a small fireplace took up most of the space in the room.

“What are you searching for?” asked Barclay, breaking his long silence.

“Cousin Jane’s seal.” Ethel laid the sealing wax down on the desk and searched diligently among her papers. “How provoking! The notes are all written, and I cannot send them off until they are sealed—Cousin Jane’s latest fad,” she added in explanation. “And the invitations must be sent out this morning.”

“Use this,” Barclay, drawing his chair nearer, removed his Chinese ring and laid it in Ethel’s hand.

“Oh, won’t I ruin the stone?”

“I think not, the dealer said it could be used as a seal.”

Ethel again examined the ring. “I think he was wrong,” she announced. “I would be afraid to use it—the jade is too beautiful.”

“You admire it then?” eagerly.

“Very much; it is unique,” proffering it back again, and Barclay held the ring against the whiteness of her hand.

“It will be becoming to you,” he said, and before she guessed his intention, he had slipped it on her finger. “Ah, I was right; don’t remove it.”

Ethel laughed unsteadily. “I never accept presents of value from acquaintances.”

Barclay drew back as if struck. “Acquaintances?” he repeated. “Ah, no, never. Say friends, Ethel”—and neither noticed the use of her first name.

“Well, friends,” Ethel’s voice shook a trifle, and she strove to change the conversation. “Your ring is too large.”

“But it can be made smaller,” quickly. “See, it is too tight for me,” indicating his little finger and the redness of the skin where the ring had been.

Ethel leaned forward and glanced at the strong slender fingers spread wide before her. “You have the hand of a surgeon,” she remarked. “Why have you stopped wearing the ring on your right hand?”

“How can you tell that?” and Barclay scrutinized her keenly.

“By the worn circle around the little finger of the right hand.”

Barclay bent nearer. “If that is an indication, I must find out how many you are accustomed to wear,” he announced, and Ethel laughed softly.

“I never wear rings,” spreading her fingers. “See, no marks.”

“But you will wear mine?” insistently, and then as her face paled, he added more lightly, “On humanitarian grounds.”

“I don’t catch your meaning?” in puzzled surprise.

“Takasaki has just told us that jade is unlucky for a man.”

“Well, if it’s to ward off the evil eye,” laughed Ethel, “I may consent to keep it.”

“I have your word for it?” with quick impetuosity.

“Yes,” blushing as her eyes met his.

Barclay drew a long breath. "For the woman wearer it betokens love's loyalty," he quoted, and his hands imprisoned hers.

"Loyalty," faltered Ethel, her eyes on the ring.

"And love," he supplemented steadily, though his heart was beating almost to suffocation. "Ethel, my darling——"

A heavy step in the adjoining room and the banging of a door brought Ethel to her feet and snatching her hands from Barclay's detaining clasp she slipped from the room as her cousin, Walter Ogden, entered by the other door.

CHAPTER VIII

P. S.

WALTER OGDEN stopped on the threshold of the den and regarded Julian Barclay with open displeasure.

“Come, come, Julian, this won’t do,” he said, slamming the door behind him and taking the seat left vacant by Ethel. “I don’t object to a little harmless flirtation, but you apparently forget that Ethel Ogden is engaged to James Patterson.”

Barclay whitened and his clear dark eyes contracted with sudden uncontrollable anguish; then mastering his emotion, he faced the older man with his usual nonchalant manner.

“I was not aware, Ogden, that—that—Miss Ogden was engaged to be married,” he began and stopped, uncertain of his ability to keep his voice expressionless.

“I quite understand,” put in Ogden, more kindly. “Ethel is greatly to blame——”

“No,” the contradiction rang out clearly, and this time there was no mistaking the look in Barclay’s eyes. “Miss Ogden is entirely blameless. It was my joy in her society which made me”—speaking more slowly —“blind to the situation.”

Ogden did not reply at once, and Barclay stared steadily out of the window through which the noon-sunshine crept in ever increasing volume, but to him the day had become gray and cheerless. Ogden’s voice aroused him from his bitter thoughts.

“When are you returning to the East?” he asked.

“I haven’t made any definite plans,” Barclay glanced at the mantel clock. “If you will excuse me, Ogden,” rising, “I have to keep an engagement at the club.”

“Will you be back to luncheon?” queried Ogden, accompanying him into the hall.

“No. Please make my apologies to Cousin Jane,” and Barclay disappeared down the staircase, while Ogden, with the feeling of work well done, went back to his den; his hint to Barclay might perhaps be broader than the situation merited, but it could do no permanent harm. James Patterson, in his opinion, was entitled to a fair field, and the sooner he and Ethel were married the better for all parties.

Ethel, never dreaming that her cousin concerned himself in her future welfare, dressed for luncheon with nervous rapidity. But her haste did not prevent her from stopping now and then to inspect the ring on her third finger. It was somewhat loose, and she debated a moment as to whether she should wind cotton thread about the hoop to tighten it, but a sudden imperative message from Mrs. Ogden sent her flying down the hall wearing the ring as Barclay had given it to her.

She hesitated outside the drawing room entrance, then with heightened color advanced into the room, but the man who turned from the window on her entrance was not Barclay, and the happy sparkle died from her eyes as she greeted James Patterson.

“I met Mrs. Ogden down town,” he explained, sitting on the sofa by her. “And she very kindly brought me home to luncheon.”

“What about your Congressional duties?” asked Ethel mischievously.

“They can go hang,” with impulsive bitterness, then he added more calmly, “the House has adjourned over today. I telephoned early this morning, Ethel, to ask you to go motoring, but the maid said you were out—with, I suppose”—the bitterness returning to his voice—“Julian Barclay.”



“Come, come, Julian, this won’t do,” he said.

Mrs. Ogden’s entrance saved Ethel from reply. “Come right in to luncheon,” she said. “Professor Norcross and Walter are already waiting for us,” and Patterson, disappointed in not having a longer *tête-a-tête* with Ethel, sulkily accompanied them into the dining room. But Mrs. Ogden saw to it that he sat between her and Ethel, and he brightened. Only Professor Norcross, seated across the table, observed the shadow on Ethel’s face as she glanced at the empty seat opposite her.

“Where is Julian?” demanded Mrs. Ogden, voicing Ethel’s unspoken question.

“Lunching at the club! he told me to make his excuses,” responded Ogden. “Have some wine, Norcross?”

“No, thanks.” The professor smiled at Ethel. “How went the lesson this morning? Was Takasaki interesting in his ‘parts of speech’?”

“I do wish, Ethel, you would give up teaching the Japs,” broke in Patterson, before she could answer the professor. “I’ve never understood why you let that little Japanese artist monopolize so much of your time when you went to the embassy last winter.”

“Oh, Mr. Soto!” Ethel smiled at a sudden recollection, then blushed hotly as she met the professor’s amused look; Patterson’s jealousy was patent to all. “I miss Mr. Soto and am so sorry he had to return to Japan. He was great fun. You should cultivate a sense of humor, Jim,” with a mischievous glance at Patterson’s glum countenance.

“I found little amusement in watching Soto making sketches of you,” he protested. “It was a great liberty. I am surprised, Ogden, that you permit Ethel to continue to give lessons to the Japanese.”

“Well, really!” Ethel turned and faced Patterson indignantly. “I cannot see that it is any concern of yours.”

“I did not mean it quite in the way it sounds,” Patterson hastened to explain. He had been in a temper all the morning, and his disappointment at not getting Ethel to accompany him motoring had not added to his amiability. “I do not see why any patriotic American desires to teach a Japanese English, and thereby advance the knowledge and education of our future foes.”

“You are decidedly looking into the future,” chuckled Ogden.

“Not half as much as the Japs themselves,” retorted Patterson, happy again in having found his hobby. “The high cast Japanese as well as the coolie is not too proud to spy. They are intensely patriotic; it is the keynote of their character. Tell me honestly, Ethel,” addressing her directly. “Does not Takasaki invariably turn your conversations into questions about our ships, shipyards, and the personnel of our army and navy?”

“No, not always,” declared Ethel in surprise. “In fact, I often allude to them and he changes the topic. Oh, no, I do not give him information.”

“Not intentionally, no,” agreed Patterson, lowering his naturally loud voice. “But the Japanese is ever seeking, always grasping little details,

unconsidered trifles, and from that foundation builds and reasons in a manner our Occidental mind never grasps. The Japanese knows more of us today—our habits, our weaknesses, our shortcomings——”

“But not our strength,” broke in Norcross.

“*And* our strength,” asserted Patterson calmly. “And he has gained much of that knowledge by aid of the Japanese employed as servants by ranking officers in the United States Navy and in the Army.”

Ogden threw himself back in his chair and shrugged his shoulders.

“Upon my word, Patterson, you are a worthy disciple of Carter Calhoun,” he announced.

“A most misjudged man,” retorted Patterson hotly. “If this country were to listen to him, we would be in a state of preparedness; instead of which ——” and a gesture of disgust finished the sentence.

“I cannot believe we are going to the dogs just yet,” Ogden helped himself to salad. “How about it, Norcross? Your profession has taken you pretty well around the globe; what is your opinion of international politics?”

Addressed directly, Norcross laid down knife and fork. “I have talked with a number of Californians, Mr. Patterson,” he began. “And their opinion seems to be that the educated Californians do not fear a Japanese invasion. Of course, as a representative from that State you are in a better position to judge of the local situation than I.”

“Will you please tell me,” Mrs. Ogden broke her long silence, which was commencing to irk her, “how California dared almost plunge this entire country into war because she wished to exclude the Japanese?”

“It wasn’t a case of dare,” replied Patterson, “but of foresight. California, by passing the anti-alien bill, safeguarded the interests of the whole United States. Secondly the best way to avoid war is to prepare for it.”

“I do not see any necessity for war with Japan,” declared Ogden and his positive tone caused Patterson to flush warmly.

“Nor do we on the Pacific slope see the menace you in the east imagine approaching on your Atlantic coast line,” he retorted. “But both are there.

The world could not see the invasion of Belgium—but it took place.”

“But the size of our country, our isolated position, in themselves preclude the possibility of invasion,” protested Ethel.

“You are wrong,” argued Patterson. “In the past we have twice been invaded—in the war of the Revolution and the War of 1812; and history is known to repeat itself. Also a nation desiring to hold its place in the world must not close its eyes to what is going on outside its boundaries. Building the Panama Canal has thrown us into world politics. What we have built we must protect.”

“But I fail to see what Panama has to do with Japan,” remarked Mrs. Ogden.

“Do with it?” echoed Patterson, his startled expression bringing a covert smile to Ethel’s lips. “Why, the canal is the channel for our battleships to reach the Pacific, and to protect our interests in the East we must control that ocean. The Japanese are already in possession of islands lying in our line of communication with the Philippines. They are a nation who believe that ‘the Lord helps those who help themselves.’”

Ethel, finishing her salad, suddenly became aware that Professor Norcross was closely studying the ring on her third finger.

As he raised his eyes, their looks crossed, and Ethel felt her color heighten. But the professor’s glance passed on until it rested on Patterson.

“Dwight Tilghman would have supported your theories, Mr. Patterson,” he said. “He had, apparently, a horror of the Japanese.”

“Tilghman! Yes.” Patterson declined the ice offered him. “Poor fellow! His death was a frightful shock to me. I had planned to meet him in Atlanta and missed the train.”

“Was he the man murdered on your train, Professor?” inquired Mrs. Ogden.

“Yes,” Norcross sipped his black coffee meditatively. “A very mysterious case. Hasn’t Mr. Barclay discussed it with you, Miss Ogden?”

“He has spoken of it,” she amended.

“And what is his opinion?” asked Patterson, with his usual abruptness. “Whom does he think poisoned Tilghman?”

“Why, the Japanese—what was his name?” Ethel looked at Norcross.

“Yoshida Ito,” he responded. “Strange the police cannot trace the Jap’s whereabouts.”

“They will, they will; give them time.” Ogden rose at a sign from his wife. “Can I take you anywhere in my motor, Norcross?” and the professor, after a lingering, wistful glance at Ethel and Patterson, who had gravitated again to her side as they left the dining room, accepted his offer. Mrs. Ogden, chatting volubly, escorted Patterson and Ethel back to the drawing room and discreetly disappeared.

“Ethel,” Patterson declined the seat she indicated and stepped to her side. “Will you marry me?” and his deep breathing showed the emotion under which he was laboring.

Ethel turned her head slowly until her eyes met his. “No, Jim,” she said simply.

Patterson stared at her, his color receding; then without a word he dropped on the sofa and buried his face in his hands. Ethel moved to go to him, then checked herself. What could she say to him? She would not marry him. Vividly before her rose Julian Barclay’s face and the memory of his impassioned whisper as he gave her his ring. Ah, she must abide by the dictates of her heart; love could not be forced or manufactured.

“Jim,” she murmured. “I’m sorry.”

Patterson rose at the sound of her voice. “It’s all right,” he said unsteadily. “You’ve never encouraged me to hope—I might have known,” he sighed wearily. “But it’s human nature to feed on hope. Tell me, Ethel, is it Julian Barclay?” She did not need to answer, the light that crept into her eyes at mention of Barclay’s name betrayed her. Patterson’s hands clenched spasmodically.

“It’s bitter to lose you,” he acknowledged, and his tone proved the truth of his words. “But to Julian Barclay—a stranger—where in God’s name does he come from?”

“Chicago,” Ethel looked at him in astonishment.

“So he says, but I don’t believe it,” Patterson clutched the back of a chair with hard gripping fingers. “I don’t believe it,” he reiterated. “I’ve asked, and no one has heard of him there. I don’t trust him.”

“Nonsense!” Ethel’s sympathy was rapidly changing to anger. “Mr. Barclay is a cousin of our hostess, Mrs. Ogden.”

“And who was Mrs. Ogden before her marriage?” Patterson laughed dryly, then noting her expression he added: “Good God! Ethel, I am only thinking of you, of your future—and I don’t believe Julian Barclay can make you happy.”

“I prefer not to discuss the matter further,” answered Ethel coldly; then as he winced, she added impulsively: “Can’t we be friends, Jim?”

He clasped her extended hand eagerly. “Friends,” he repeated. “Yes, I’ll be your friend; in spite of yourself, Ethel, you shall be guarded against Julian Barclay. I’ve seen him somewhere before”—he broke off as Ethel tried to withdraw her hand from his clasp. “To think I’ve lost you,” he muttered brokenly. “Ethel, my Ethel,” and drawing her to him, he kissed her passionately.

“Pardon!” exclaimed an astonished voice behind them, and Ethel wrenching herself free, darted into the hall not waiting to see who the newcomer was. Professor Norcross picked up some papers from the table, and casting a curious glance at Patterson, who presented his back to him, retreated to the waiting automobile.

Safe in her bedroom Ethel flung herself on the bed and strove to regain her lost composure. She was furiously angry with James Patterson, more angry than she had been in years with anyone. It was horrid of him to have kissed her, she passed her handkerchief across her lips; it was outrageous of him to have tried to prejudice her against Julian Barclay.

Quickly her thoughts turned to Barclay, and she lay in dreamy contemplation of the events of the last ten days as they passed in quick succession before her mind’s eye. Barclay’s personality had dominated her every action, and all unconsciously she had fallen under his sway. At first she had rebelled against her longing to see him, to be near him; but the eager, wistful lighting of his eyes when she appeared found a gradual

response. His wooing had not been of the patient order, and Ethel, swept off her feet, was drifting with the tide—to what—?

Ethel moved restlessly. Pshaw! James Patterson's vague doubts were not worthy a second thought. Julian Barclay was the soul of honor, of loyalty—she would not believe otherwise. But somehow the bed was no longer comfortable, and rising Ethel moved over to her bureau; she could not afford to be idle.

A neat pile of letters, evidently from the afternoon mail, attracted her attention, and opening them proved a welcome diversion. The last was a letter from her mother, and she read the large, sprawling writing with zest. Mrs. Ogden was a poor correspondent, and Ethel depended as a rule on getting news of her family from her father. The letter was not long; Ethel read with pleasure the doctor's favorable report of her father's condition, of the few entertainments her mother had attended, and was about to close the letter when she saw the initials: "P.S." and the word "Over" squeezed in at the bottom of the sheet. Mrs. Ogden, with the inconsequence which characterized her, was given to postscripts, which frequently proved the most important part of her letters, and Ethel turned the last sheet with eager anticipation.

P.S.—The enclosed clipping has recalled to my mind a strange sight which I entirely forgot to mention to your father. I think I told you of meeting Jim Patterson in the Atlanta station nearly ten days ago when I went to see Aunt Susan on her train. The trainmen were very obliging and I was permitted to escort Aunt Susan to the Pullman car, owing I suppose to her enfeebled health; sometimes, Ethel, illness has its perquisites.

Well, to go back. On leaving the Pullman car I got turned about and walked down the train-shed with the vaguest idea as to the direction I should take to get back to the station. On passing a Pullman far down the line, I looked up and saw through the polished window pane a hand holding a small open paper between the thumb and first and second fingers. I perceived nothing but the hand, no head was visible or other

part of the body; but I gathered the impression that a powder was being shaken into a cup.

There wasn't a soul in the vicinity, and I walked some distance before it dawned on me that I was headed the wrong way, and turned about. I intended speaking of the hand, but meeting Jim Patterson put the whole thing out of my mind. I never would have remembered the incident but for the enclosed clipping. My recollection of the hand, however, is vivid, and I've drawn it on paper for you. Had I better communicate with the coroner?

Your devoted

MAMMA.

Considerably bewildered, Ethel laid down her mother's letter and picked up the newspaper clipping. It proved to be a brief account of the inquest on Dwight Tilghman, chiefly given over to the medical testimony. "The deceased came to his death from a dose of oxalic acid," Dr. Shively was quoted as testifying. "This poison was dissolved in brandy, and must have been administered while Tilghman sat in the smoking car in the station at Atlanta." The coroner's next question was also quoted: "Can you tell us, Doctor, how the poison was added to the brandy and when?" Shively's answer followed: "I cannot. We searched the car, but could find no trace of either cup, flask, or glass from which Tilghman must have drunk the poisoned brandy, and no clew as to the owner of the said cup, flask, or glass was obtainable." The newspaper article then ended with the announcement of the adjournment of the inquest, the coroner's statement that the deposition of Julian Barclay, a fellow traveler, would be read at the afternoon session.

"Bless me! Perhaps mother has chanced on a clew," ejaculated Ethel, unaware that she spoke aloud. "Julian will be interested in her postscript. Her 'hand' sounds mysterious and terrible; where is the sketch she spoke of"—and dropping the newspaper clipping Ethel hurriedly examined the letter and its envelope.

Inside the latter she found what she was seeking, and drew out a piece of drawing paper. Mrs. Ogden was no mean artist, and on occasions had

illustrated articles for a popular magazine, but her indolent spirit and inability to concentrate acted as an effectual check to her ambition, and the one talent she possessed went neglected.

Ethel inspected the drawing with interest. Mrs. Ogden had cleverly sketched the outside of a Pullman car and through the closed glass window stood out a hand, a large shapely hand, holding a paper about the size of those enclosing a powder, between the thumb and first and second finger. The outside of the hand was nearest the window, and on the little finger, distinct and clear, was the outline of a ring. As Ethel bent closer she caught her breath—slowly, reluctantly she raised her left hand and laid it alongside the sketch. In size, design, and color, the ring on her finger and the ring in the sketch were identical.

Ethel sat staring at the sketch and at her ring unmindful of the minutes, and gradually her chaotic thoughts took form. Dwight Tilghman had been murdered in Atlanta by a poisoned powder administered mysteriously; her mother had seen a hand holding a small paper, which might or might not have contained a poison powder, in the window of a Pullman car in the station at Atlanta; and the hand wore a jade ring with a unique carved gold setting on its little finger, which Julian Barclay had, until that noon, worn on his little finger.

Ethel bent over the sketch—Was it the left hand or the right which her mother had seen? She could not tell from the drawing; but it hardly mattered, Julian Barclay had said he had worn the ring first on one hand and then on the other, therefore the point was immaterial. That Julian Barclay was also a traveler on the train with Dwight Tilghman was only a coincidence, she assured herself; but was it also only a coincidence that Julian Barclay had that morning given her the ring? Good God! Could he have given her the ring because its possession to him meant “betrayal and death?”

The sketch fell unheeded to the floor as Ethel stared in horror at the jade ring with its encircling dragon.

CHAPTER IX

THE INTERVIEW

JULIAN BARCLAY'S luncheon at the club had been a polite fiction, invented under the spur of his desire to be by himself; he felt that he could not face Ethel just then; at least, not in the presence of Walter Ogden and his wife.

Once outside the Ogden house Barclay turned blindly toward the country. An instinctive desire to reason his troubles in the open guided his footsteps, and how long he tramped, and where, on the outskirts of Washington he never knew, but when he again reached the down town section of the city he had recovered his composure and decided on his future actions. Too long he had drifted with the tide; whatever the consequences to himself he must take his place in the affairs of men. As to Ethel—he winced and bit his lip; other and better men had had to renounce their heart's desire. A past of shadows was an unstable foundation on which to build a dream of happiness, and deserved a rude awakening. There remained but one thing for him to do; to bid Ethel good-by and wish her Godspeed on the road to happiness.

Barclay stepped into a corner drug store, looked up a number in the city directory, and entering a taxicab repeated the number to the chauffeur. Within ten minutes he was standing in an office building interviewing a colored servant.

“Dr. McLane is in his office now, sir; step this way, sir,” and the office boy piloted him into a well lighted room. Barclay sighed impatiently on catching sight of the rows of people waiting to see the popular surgeon; then resigning himself to the inevitable, he took a chair near the window and awaited his turn.

Barclay picked up a newspaper, but the printed lines failed to interest him, and when Dr. Leonard McLane entered the room to summon the next patient into his consulting office, he was looking out of the window at the passing vehicles and electric cars. The surgeon's roving glance halted as it fell on Barclay's fine profile, then passed on, but each time that McLane

reentered the room he contrived without attracting Barclay's attention, to get a better and nearer view of him.

"Well, sir," McLane's clear resonant voice broke in on Barclay's sad thoughts. "What can I do for you?" And looking up, Barclay found that he was the last patient and the two men were alone.

"I would like a word with you in private," he said.

McLane bowed. "This way, then," and stepping inside the consulting office Barclay selected a chair farthest from the window, while the surgeon closed the communicating door, and sat down before his desk. He waited for Barclay to speak, but it was some minutes before the latter broke the silence.

"I have not come to consult you as a patient, Doctor," he began. "But on a private matter."

"Yes?" McLane's voice again aroused Barclay, and he cleared his throat nervously.

"I realize that you are very busy," he stammered, glancing about the well-arranged office. "I promise not to take up your time needlessly. Here is my card"—laying his visiting card on the desk, and McLane switched on his droplight, for the winter afternoon was waning into twilight, and read the name engraved on the card.

"Well, Mr. Barclay, what can I do for you?" he asked.

"Give me all the details of the inquest on Dwight Tilghman," answered Barclay promptly, looking directly at McLane. "I understand that you went to Atlanta with the body and stayed on for the inquest."

"True, I did," replied McLane, and imperceptibly his hand moved the shade of the droplight until Barclay's face was no longer in shadow. "Are you the Julian Barclay whose deposition was read at the inquest?"

"I am."

"And your reasons for questioning me, Mr. Barclay?"

"I am desirous of helping trace the murderer." The surgeon's question had brought a touch of color to his white face. "I want to help trap Yoshida Ito."

“Ah, then you know him to be guilty.”

“No, only believe him to be guilty,” corrected Barclay quickly. “And all evidence, as far as I can ascertain, points to him—”

“Except a possible motive,” supplemented McLane. “Men do not murder each other, Mr. Barclay, without a motive.”

The remark brought a curious glint in Barclay’s eyes which the surgeon observed, but his own expression remained impassive.

“There is always the alternative of suicide,” remarked Barclay composedly. “But in the case of the murder of your cousin, Dwight Tilghman, that theory can be dispensed with.”

“Your reasons for that assertion?”

Barclay drew back farther in his chair, and the movement again brought his face in shadow. “If Dwight Tilghman had committed suicide the receptacle out of which he drank the poison would have been found near him.”

“Then you contend that the absence of such a receptacle indicates the presence of another person in the smoking car at the time Tilghman swallowed the poison?”

“I do. Dr. Shively said the poison was almost instantaneous in its effect and that it was physically impossible for Tilghman to dispose of the, eh, cup or glass, after he had swallowed the poison. Therefore another person must have been in the car, contrary to the porter’s testimony, and,” his voice deepening, “the fact that such a person does not come forward frankly, as he would do if innocent, presupposes his guilt.”

McLane nodded his head. “I entirely agree with your reasoning,” he said gravely. “I asked simply to see if your view would coincide with mine. Dwight Tilghman was undoubtedly murdered while sitting in the smoking car of the Washington, New Orleans, and San Francisco Express during its stop at the station in Atlanta, Ga. The autopsy proved that a dose of oxalic acid had been administered in brandy, and that he died almost instantly. No other cause of death could be ascertained, as Tilghman was physically well, and there was no indication of violence.”

“But,” Barclay hesitated and spoke more slowly, “oxalic acid has a forbidding, sour taste, and for that reason is seldom used by would-be murderers, the victim being quick to detect the acid taste. The medical records prove that it is sometimes mistaken for Epsom salts and swallowed inadvertently, and not infrequently used by suicides,” he looked hard at McLane. “If not taken accidentally, or with suicidal intent, Tilghman *must* have detected the taste of the poison in the brandy.”

“True.” McLane leaned one elbow on his desk as he bent nearer his companion. “I have already stated that Tilghman was physically sound, but from birth he was deficient in one particular—he had no sense of taste.”

“Upon my word!”

Barclay drew in his breath sharply and stared at McLane in astonishment.

“Tilghman had no motive to commit suicide,” continued McLane. “I was made executor of his will, and his affairs appear to be in excellent shape. While not wealthy, Tilghman had several thousand dollars in the bank, besides owning much unencumbered improved property. He was not married, and I never heard of his having a love affair, or a quarrel with anyone.”

“And yet he died mysteriously,” muttered Barclay. “Eliminating the theory of suicide and considering the case as a murder, pure and simple _____”

“It’s far from simple,” corrected McLane sharply. “Here we have a man seated in an empty smoking car poisoned by some unknown person, and the murder not discovered until five or six hours later—no trace of the receptacle in which the poison was administered, and the passengers on the train now scattered to the far winds.”

“If the police succeed in finding Yoshida Ito they need look for no other passenger,” said Barclay grimly.

“You think so?” and the glance McLane shot at his companion was keen.

“Yes,” Barclay leaned forward in his earnestness. “The Japanese on entering the smoking car was attacked by Tilghman, that I’ll swear to——”

“You mentioned it in your deposition,” put in McLane dryly.

“Quite so,” composedly. “After the brief scuffle, during which the Japanese used jiu-jitsu and which, but for the interference of Dr. Shively and Professor Norcross, might have had fatal results for Tilghman, the latter, on recovering his breath, offered the Japanese an insult which he was not likely to forgive. The Japanese mind works quickly, and with them to plan is to accomplish.”

“It was a subtle brain that planned Tilghman’s murder,” agreed McLane. “But there are some points about Ito’s conduct which to me contradict the evidence.”

“A verdict of guilty was brought against him by the coroner’s inquest, was it not?” asked Barclay coldly.

“Yes.” McLane opened a desk drawer and took from it several papers and newspaper clippings, and consulted one of them as he continued: “The coroner, in summing up, asked: ‘On the evidence, are you satisfied beyond reasonable doubt that at noon on the day in question the Japanese, Yoshida Ito, was in company with the deceased?’ Apparently,” added McLane, before Barclay could interrupt, “the jury was satisfied that Ito was in Tilghman’s company, because a verdict of guilty was brought in. In other words, the alibi given by Ito could so easily have been cleverly manufactured that no faith was placed in it, and it turned the scales against the Japanese. In reality, they had not one ray of conclusive proof against him.”

“Oh, come!” exclaimed Barclay skeptically.

“I am willing to test my belief,” retorted McLane. “Take the alibi—it required a knowledge beforehand of the differences in central and eastern time to think up such an alibi; a knowledge that Atlanta goes by central time and the railroad trains running north from there use eastern time. It appears to me extremely doubtful if the Japanese, clever as his race is, could have worked out the alibi in so short a time. He was a stranger in a strange land.”

“I’m not so sure of that,” retorted Barclay. “As far as we know he may have been there a dozen times, and while, as I saw stated in an account of the inquest, it could not be proved that he had ever been in Atlanta before, he boarded the train at Mobile, and in that city, which also uses central time,

he may have learned that while central time prevails in Atlanta, on northbound trains it *there* changes to eastern time.”

“That is possible,” McLane laid down the papers. “The conductor testified that while Ito was dining, he searched his luggage and found no trace of any flask filled with brandy, or a cup or glass.”

“Naturally, he could have thrown away all such incriminating articles by that time,” retorted Barclay. “Did the conductor search Ito before he left the train?”

“Unfortunately he did not,” replied McLane as he picked up a southern time-table from among the papers he had just laid down, and turned to a well-thumbed page. “Ito boarded the train at twenty-two minutes of two Wednesday morning, central time, when everyone was asleep, and his train was due at Spartanburg at six-twenty that evening, eastern time. As a matter of fact—what time did your train get there?” he broke off to ask.

“We were about two hours late.”

“I see,” McLane again consulted the time-table. “Your train reached Atlanta at ten minutes of twelve, central time; now, Mr. Barclay, how long a time elapsed between Tilghman’s scuffle with the Jap and your arrival at Atlanta?”

Barclay thoughtfully considered the question before replying. “I should judge about thirty-five minutes,” he said finally.

McLane’s hand descended on the desk with a resounding whack.

“Tilghman’s murder was not planned in any thirty-five minutes,” he announced. “Every detail gives the lie to such a supposition. Nor was it done on the impulse of the moment; and in my opinion the insult offered the Japanese was not of a nature to instigate him to commit murder. Wait, Tilghman said that he mistook Ito for a negro—pshaw! the yellow races don’t worry themselves about shade differences in their complexions.”

“You are wrong there,” answered Barclay. “Pride of birth, ancestor worship dominates the high cast Japanese, and Yoshida Ito, though he desired us to believe him a traveling salesman, belonged to the former class. Tilghman’s insult would be keenly felt and instantly resented by a highborn Japanese.”

“If he was highborn, as you believe, Mr. Barclay, he would not then have stooped to murder,” argued McLane. “They kill in fair fight.”

“Perhaps,” Barclay scrutinized McLane for a second in silence, then pulled his chair closer. “I agree with you, doctor, in believing that Tilghman’s insult was not the entire motive for his murder—”

“Then what was?” rapped out McLane.

“I don’t know,” Barclay moved impatiently. “Let me explain—before leaving Tilghman in the smoker at Atlanta, I, at his request, loaned him my flask.” McLane regarded his companion with lively interest as he continued somewhat slowly. “The flask contained brandy, and I never thought of it again until I returned to the smoker after helping Norcross carry Tilghman’s body into a stateroom. I searched the smoker but could not find my flask. Just afterward Dr. Shively came back and stated that Tilghman had been poisoned by a dose of oxalic acid dissolved in brandy.”

“Did you tell him of having loaned your flask to Tilghman?” asked McLane, never taking his eyes from his companion.

“No,” Barclay smiled ruefully. “I realize now I should have done so at once, but I was shaken by Tilghman’s murder, and later—” he halted uncertainly. “Well, later, to be frank, I was afraid, not having spoken of the flask in the first place, I would not be believed.”

“But I can’t see,” McLane frowned. “You were not in the smoker when Tilghman was killed—”

“No, oh, no,” the rapid denial was followed by a short silence which Barclay broke with an effort. “At the request of Dr. Shively I watched Ito and accompanied him into dinner. While waiting for it to be served, the Japanese drew the chrysanthemum design, which is etched on my silver flask, on the table cloth.”

“Indeed!” Barclay could not complain of lack of attention, for McLane never removed his gaze from him, and the short ejaculation escaped him unconsciously.

“Ito denied all knowledge of my flask,” continued Barclay. “He stated that he was a designer, and that was all I could get out of him.”

“And is that the last you have heard of your flask?”

“No. On the night of my arrival in Washington I accompanied my cousins, Mr. and Mrs. Walter Ogden”—McLane moved suddenly, but Barclay was intent on his story and did not observe him closely—“to the Japanese Embassy. There I thought I saw Yoshida Ito, and walked down a hall hoping to come up with him, and entered a room opening from it. I did not find Ito in the room, but my silver flask, or its duplicate, was lying on the desk.”

“What did you do then?” questioned McLane.

“Pocketed the flask,” briefly. “And the next day had its contents tested by a chemist.”

“With what result?”

“A blank—it contained *saki*, the national drink of Japan.”

CHAPTER X

FREAKS OF MEMORY

LEONARD McLANE, tilted back in his revolving chair, regarded Julian Barclay in silence for several seconds before speaking.

“Have you the flask with you?” he asked.

For answer Barclay drew it from his pocket and laid it on the desk. McLane bent eagerly over the flask and examined it with special care. The silver filigree work over the glass flask was made into a chrysanthemum pattern, while the lower half was a solid silver cup, the workmanship of the latter also carrying out the chrysanthemum pattern.

“It is a beautiful design,” said McLane at last. “And unique in having the flowers on the cup fit into the filigree work.” He picked it up and turned the stopper and sniffed at its contents, then replaced the stopper and removed the silver cup from the glass bottom. “You are sure your flask was not out of your possession while on the train before you lent it to Tilghman?”

“Absolutely positive.”

“Then, conceding that Tilghman was drinking out of your flask when poisoned, the powder must have been slipped into this silver cup—”

“But how without Tilghman’s knowledge?” demanded Barclay.

“I don’t know,” admitted McLane. “But I hope to find out,” he shot a glance at his companion, but Barclay again sat half in shadow and he could not see his expression distinctly. “Has it occurred to you to ask the jewelers in town about the flask?”

“It has; but their information was almost nil,” responded Barclay. “They declared the flask was probably manufactured abroad, the workmanship pointed to that, but it bears no silversmith’s name or mark. They also said that while the design was unusual, there might have been a number of duplicates made from the original.”

“That is not very helpful,” mused McLane. “Where did you buy your flask?”

“At a little Mexican town, Tia Juana, about twenty-five miles over the border from Coronado, Cal. Tia Juana, or ‘Aunt Jane,’ as it is known over the border, is a great gambling town, where cutthroats, thugs, and criminals of every class fleeing from justice, take refuge. In a saloon there I saw this flask lying on the counter and bought it from the proprietor. He told me that it had been left by a Japanese in payment of a debt, and when Ito drew the design of the flask on the tablecloth in the diner on the train, I jumped to the conclusion that he was the Jap who had sold it to the saloon proprietor, and taking the reputation of the town into consideration, I imagined he might even then have been fleeing from justice.”

“That is not conclusive reasoning,” smiled McLane. “You were in ‘Aunt Jane’ as a tourist”—he paused slightly. “It is equally possible the Jap was also a tourist and ran short of funds.”

“That is true,” Barclay glanced at the clock on the surgeon’s desk. “And it is over four years since I purchased the flask.”

“Have you”—McLane handed the flask back to Barclay—“have you made any inquiries about this flask at the Japanese Embassy?”

“I went to the embassy, but found the ambassador away on a trip through the Middle West, and the embassy staff denied all knowledge of the flask. I am afraid I am taking up too much of your time,” he added, rising.

“No, no, sit down,” McLane raised a protesting hand, and Barclay resumed his seat. “I am glad to talk over Tilghman’s mysterious death with you, Mr. Barclay. Now, let me understand your theory of his murder—you believe that Ito, the Jap, having some ulterior motive, followed my cousin on his trip east, murdered him, and slipped away?”

“Yes, that is about my idea,” admitted Barclay. “Take the flask it is a reasonable supposition that, not finding it in the smoking car near where Tilghman sat, or among his effects, the murderer removed my flask. He would not have taken it away if the flask had not been incriminating; therefore, I believe the oxalic acid was introduced into my flask.”

“It would seem so,” agreed McLane. “But we have yet to discover how it was introduced into the brandy without Tilghman’s knowledge—and until

then we have no real proof against anyone.”

“I cannot agree with you,” replied Barclay obstinately. “I know the flask was originally owned by a Jap; I meet a Jap, who has a scuffle with Tilghman shortly before he is murdered; and this Jap is familiar with the chrysanthemum design of my flask, even to the minutest detail—why should he think of that flask at that time unless he had recently seen it?” finished Barclay triumphantly.

“Memory plays queer tricks,” responded McLane. “It might be that Ito—look here,” checking himself. “If Ito had murdered Tilghman by putting poison in your flask, the last thing he would do would be to call attention to the flask—it would be betraying too great a familiarity with the crime.”

“Yes, but it is just in those small points that a criminal betrays himself,” argued Barclay. “Giving his alibi, which may or may not be false, but which admits of his having been in the smoking car at the hour Tilghman was poisoned, Ito leaves the train at Spartanburg, and the next time I catch a glimpse of him is in the Japanese Embassy, and a few minutes later I find a flask resembling mine on a desk in the embassy. I tell you, Doctor,” emphasizing his words by striking his hand in his open palm, “the silver flask and Ito form a connecting link in the chain of events leading to the murder of Dwight Tilghman.”

“Perhaps, but I cannot see the significance”—McLane paused, and Barclay broke in hastily.

“My object in calling, Doctor, was to ascertain if Tilghman was using his Congressional influence to the detriment of Japanese interests here and abroad.”

McLane considered the question. “I now recall that Tilghman testified against the Japanese before the California legislature at the time of the passage of the anti-alien bill. He and Jim Patterson—Congressman from California,” he stopped to explain.

“I have met Patterson,” answered Barclay, and resting his elbow on the desk, shaded his eyes with his hand. “You were saying—”

“That Tilghman and Patterson were much in accord on the subject and, I believe, carried on quite a correspondence. Perhaps Patterson can give me some data which may throw light on Tilghman’s transactions with the

Japanese. I will see him.” McLane again consulted the newspaper clippings. “There are several questions I wish to ask you before you leave,” pulling his chair up to the desk. “When did you first meet Dwight Tilghman?”

“The night before his murder. I boarded the train at New Orleans, and going into the smoker was introduced to him and Professor Norcross by Dr. Shively. We four played poker until far into the night.”

“How did Tilghman appear?”

Barclay hesitated. “Never having met him before, your question is a little difficult to answer. His manner to me appeared natural, and while he took little part in the conversation, he was at all times pleasant and good-natured.”

“Was he winning?”

Barclay laughed shortly. “I believe so; I was the only heavy loser. We played nearly all night, and I believe it was Tilghman who made the first move to break up the game.”

“Did you talk with him next morning?”

“Not for any length of time. I had a short talk with him just before the train stopped at the station in Atlanta.”

“Was it then you gave him your flask?”

“Yes; he asked me for it, said his scuffle with the Jap had shaken him up and he needed a bracer.”

“Except for that, did his manner indicate excitement—terror, for instance?”

“It did not.”

McLane consulted the notes he had scribbled on a sheet before him, then asked, “You spoke of Dr. Shively having introduced you to Tilghman; where had you known Shively?”

“I met him in Panama and we made the trip to the States together. He had known Professor Norcross and Tilghman before, and they both appeared glad to see him when he joined them in the smoking car.”

“Had he arranged to meet them on that train?”

“I think not. They all expressed great surprise at the meeting,” Barclay rose. “I really must be going, doctor. I cannot take up any more of your time.”

“Just one more question—Did you see Shively while the train was at Atlanta?”

“No,” Barclay paused. “He and Norcross left the smoking car together just as the train drew into the station, and that was my last glimpse of them until they entered the smoker about half an hour before the dining car steward announced the first call for dinner.” As he finished speaking Barclay moved across the room, and the surgeon followed him.

“I am indebted to you, Mr. Barclay, for coming to see me,” remarked McLane, opening the private door leading directly into the outside corridor. “Your account of Tilghman’s death has interested me, and I will take steps to investigate the points you have brought up.”

Barclay pulled his hat down until his features were partly concealed under the shadow of the brim.

“Will you consult detectives?” he asked.

“The police are already after Ito,” McLane pressed his thumb on the elevator button. “Several years ago I was involved in the ‘C. O. D.’ murders, and in investigating them the detectives did not—eh, shine.”

“They are not always infallible,” agreed Barclay, and McLane’s quick ear detected the faint relief discernible in his tone. “I will let you know immediately if I get any information about the flask from the Japanese ambassador.” The arrival of the elevator interrupted further conversation, and bidding McLane good night, Barclay stepped inside the cage.

McLane continued to stare at the elevator shaft for some minutes after the elevator with its solitary passenger had shot downward.

“After fifteen years,” he muttered. “And Jim Patterson is in town.”

“Not only in town, but here,” announced a voice just back of him, and McLane, wheeling about, faced Representative Patterson. “I’ve been waiting in your front office for the deuce of a long time, McLane, and hearing your voice in the hall, came out to intercept you.”

“I am sorry to have kept you waiting; come back with me now,” and McLane motioned toward his private door.

“I won’t stay long,” promised Patterson, preceding the surgeon into his consulting office, and throwing himself down in a chair by the desk. “Who was the man with you in the corridor a moment ago? His voice sounded familiar, but I only saw his back.”

“A Mr. Barclay,”—McLane picked up Barclay’s visiting card. “Julian Barclay.”

Patterson’s expression changed. “Who is he?” he demanded. “Who is this Barclay?”

McLane’s eyebrows rose in interrogation, but the glance he shot at the excited man before him was piercing in its intensity. He tossed the visiting card to Patterson.

“Julian Barclay,” he repeated, and shrugged his shoulders.

Patterson crumpled the visiting card in his strong fingers and flung it contemptuously into the waste paper basket.

“I’m disappointed, McLane; thought you might give me some information about this Barclay, who he is, and all that—I have had some connection”—he broke off to stare moodily at the floor. “Barclay is in love with Ethel Ogden,” he remarked bitterly.

McLane sat erect and stared at him. “And Miss Ogden?” he asked; and his voice was very grave.

“Has the poor taste to prefer Barclay to me,” Patterson’s attempt at a smile was ghastly. “Barclay’s face is familiar, but I cannot place him.”

“Likenesses are very puzzling sometimes,” remarked McLane. “What is your particular ailment this afternoon, Patterson? You were as sound as a dollar the last time I examined you.”

“Still sound, except for the shock of being refused by Ethel,” Patterson fingered the desk ornaments nearest him nervously. “It isn’t a thing I’d mention to anyone but you, McLane.”

“I will not speak of it,” promised McLane. “And—I’m sorry, Patterson.”

“Thanks, old man,” Patterson cleared his voice of a troublesome lump. “Before coming here I had a talk with Ethel’s cousin, Walter Ogden—he’s not a bad sort,” he added, and McLane contented himself with a silent nod of agreement. “Ogden told me not to take Ethel’s refusal to heart; said she didn’t know her mind two minutes running.”

“Oh!” the ejaculation escaped McLane involuntarily, and Patterson glanced at him sharply.

“You know Ethel?” he asked.

“Yes; she is a great friend of my wife, and we both think her a girl of strong character.” McLane sorted the papers on his desk methodically and laid them in a neat pile by his side. “Do not buoy yourself up with false hope, Patterson; sometimes it is less pain in the end to face things as they are.”

Patterson frowned. “I don’t think you gave up the girl of your choice when she was engaged to that scoundrel, James Donaldson,” he retorted doggedly. “And I’m not going to give Ethel up to Julian Barclay without a fight for it. You are sure you have never heard of Barclay?”

“I have never heard of Barclay before this afternoon,” answered McLane quietly. “I have just returned from Atlanta; had to remain there for the inquest on Dwight Tilghman.”

“So I saw by the newspapers,” Patterson drew out his cigar case and offered it to the surgeon. “Tilghman was a mighty bright fellow, and his murder a shocking affair—so unnecessary.”

“I also cannot see a motive for the crime,” replied McLane gravely. “I cannot believe that the Jap, Ito, killed him because Tilghman said he mistook him for a negro.”

Patterson blew a cloud of tobacco smoke into the air and watched it drift away before answering.

“You Easterners fail to grasp the character of the Japanese,” he announced. “They are crafty, subtle, and are past masters in gaining their own way. Silent, unobtrusive, they live, plan, and accomplish, while we exist and ignore all signs of danger.”

McLane smiled. "I forgot your hobby for the moment," he said. "Perhaps you can tell me if Tilghman ever aroused their antagonism by any anti-Japanese demonstration."

"I believe Tilghman was among the first property owners to refuse to sell land to a Japanese because of his nationality," he answered. "And it brought out a bitter attack against Tilghman in the press of Japan."

"Pshaw! What's a press attack?" and McLane laughed.

"Little in this country," agreed Patterson. "But in Japan, where the press is censored, it is safe to bet that the Japanese government approved the attack upon Tilghman."

"That would hardly prove a basis for murder," mused McLane. "Why was Tilghman coming to Washington?"

"To visit you and your charming wife." Patterson smiled ironically. "You are too modest, McLane; don't always look for an ulterior motive when guests descend on you. I'm sorry if I bore you with my talk against the Japs; I'm rather full of it this afternoon, having argued the subject with Professor Norcross and Walter Ogden."

"And what views do they hold in the matter?"

"Oh, the customary disbelief." Patterson moved restlessly. "I'm surprised at Norcross, he's broad-minded and up on affairs generally."

"Where is Norcross stopping?"

"At the Ogdens'." Patterson rose. "Are you by chance going to their dinner tomorrow night?"

"Yes, Lois told me she had accepted for us." McLane followed him into the hall. "Then you don't know why Tilghman was coming to Washington, after first writing me that he couldn't leave California?"

"My dear fellow, I haven't the faintest idea." Patterson's impatience was poorly concealed. "Down," he roared, and as the elevator stopped, he called to McLane, "Good night, see you tomorrow."

But once inside his limousine Patterson's growing irritability found relief in glaring at his reflection in the small mirror opposite him.

“What was it McLane was muttering when I joined him in the hall?” he cogitated. “‘After fifteen years—and Jim Patterson in town.’ What had fifteen years to do with my being in town?”

Fifteen years—fifteen years—the words seemed to his excited imagination to be keeping time with the twinkling arc lights of the city streets, and Patterson involuntarily closed his eyes as he reviewed the years. Suddenly he sat up, his eyes shining, and clutching the speaking tube, he called to the chauffeur:

“To the nearest telegraph office, quick.”

CHAPTER XI

THE WHISPER

MRS. OGDEN looked complaisantly about the theater as the lights were turned up, and a gentle sigh of content escaped her. No other box party presented a more distinguished appearance than hers, and again she heaved a sigh of content; inviting Ethel Ogden to spend the winter with her had indeed been a clever inspiration. The girl's beauty and lovable character had won her place and popularity in Washington's cosmopolitan society, and Mrs. Ogden's card tray was the richer by her presence in their house. Mrs. Ogden was not adverse to receiving the *entrée* to exclusive homes by indirect means, if no better obtained, and she felt that her winter in Washington had not been misspent energy, and that some day she might hope to be a Personage.

But Mrs. Ogden's social ambitions had received a rude setback on being informed that evening by her husband that Ethel Ogden had refused James Patterson. Patterson's great wealth, his career in Congress, and his family connections made him one of the few real catches in the National Capital, and Mrs. Ogden had preened herself on receiving him on an intimate footing in her house. All her plans had worked out serenely until Julian Barclay's arrival, and at the thought Mrs. Ogden's face hardened. Inviting him had not, decidedly not, been an inspiration. Come to think of it he had more or less invited himself; if it had not been for a letter from California stating he was coming east and might stop in Washington, she would never have written urging him to visit them. Such being the case, perhaps it would not be a great breach of hospitality to suggest that he curtail his visit? Two weeks had slipped by, but she had mentioned a month! This time Mrs. Ogden's sigh was distinctly audible, and brought Barclay's wandering attention back to her.

"What is troubling you, Cousin Jane?" he inquired, replacing a scarf about her shoulders.

"The perversity of human nature," retorted Mrs. Ogden, and he laughed, while wondering at the concentration of her gaze. Mrs. Ogden sighed again;

Barclay was undeniably handsome, but so was James Patterson in a big, fine way, and she infinitely preferred the dogged will power and driving force indicated in his rugged features, to Barclay's sensitive, high-strung temperament.

Mrs. Ogden liked to have good-looking people about her, and her gaze rested on her husband and Professor Norcross with satisfaction; in their way each was a credit to her box party. Ethel, seated in the farther corner of the box, was unaware of her cousin's scrutiny as she kept up an animated conversation with Professor Norcross. She had learned in the hard school of necessity to repress her emotions, and as she talked on indifferent subjects, the professor never guessed the effort it cost her, nor how maddening was the desire to turn and look at Julian Barclay.

After the first shock of her mother's postscript, with its suggestion of crime and treachery, Ethel had pulled herself together and with the shrewd common sense of her New England forbears, had reasoned out her doubts and suspicions. The murder of Dwight Tilghman, the presence of Julian Barclay on the same train, the presence of her mother in the Atlanta station at the time the crime was committed, the hand at the window grasping a suspicious-looking paper, the similarity of the ring on the hand in the window and the one given her by Julian Barclay, the arrival of her mother's letter on the day Barclay had given her the ring, could be—should be, in her loyal mind,—simply coincidences, to be explained away when she had a talk with Julian Barclay.

She had dressed early and gone downstairs hoping for an opportunity to see Barclay alone before dinner, but he had been the last to appear, and Mrs. Ogden had hurried them off to the theater immediately after coffee had been served. On entering the box she had expected that Barclay would occupy the seat directly behind her, but on turning around she found him standing by the chair nearest Mrs. Ogden. He caught her eye, bowed, and sat down by Mrs. Ogden.

Ethel had flushed painfully; a look, a smile from her had always brought him to her side. Could it be that he was intentionally avoiding her? The thought stung, and turning her back on Barclay, she greeted Professor Norcross with so brilliant a smile that he was conscious of an accelerated pulse. But her false gaiety had waned with the progress of the play, and

finally she sat silent in her chair and listened to Norcross, his voice coming to her as from a long way off.

The amateur performance was given for the benefit of the Associated Charities, and Washington society had taken tickets and turned out *en masse*. The boxes were filled with members of the Diplomatic Corps and Cabinet officers, while justices and men prominent in both Houses of Congress entertained parties in the orchestra.

"The play is good," announced Walter Ogden. "But the entr'acte are fearfully long. Who is that bowing to you, Ethel, there, across the further aisle in the orchestra?"

Ethel looked vainly in the direction he pointed. "Do you mean Jim Patterson?" she asked, encountering the Congressman's eyes.

Patterson rose, excused himself to his neighbors, and clambering over them, made his way up the aisle.

"No, not Patterson," explained Ogden. "The man to his left."

"Oh," Ethel raised her opera glasses. "Why"—in pleased surprise—"that is little Maru Takasaki and his wife," and she bowed in greeting. "Aren't they the cutest little pair?"

"If you mean acute, I'll agree with you." Barclay had edged his chair forward and joined in the conversation. "Takasaki has never taken his eyes off Patterson during each entr'acte."

"Seems to me you were observing them pretty closely to find that out," remarked Mrs. Ogden dryly. "Hardly complimentary to me, Julian."

"I, eh," he stammered in some confusion, but the entrance of James Patterson interrupted him.

"Sit here," exclaimed Ogden rising and pushing forward a chair toward the middle of the box, and Patterson, casting an indignant look at Norcross who still sat by Ethel, accepted the seat offered. Ethel's cool smile was not made up to him by Mrs. Ogden's cordial welcome.

"What were you discussing when I came in?" he asked.

"You," promptly answered Mrs. Ogden, and Patterson looked gratified. "Julian had just remarked that the little Jap, Takasaki, has been watching

you all the evening.”

“Not from admiration, I’ll wager.” Patterson’s smile was grim. “I have a bit of information which may electrify that heavily armed little empire, and awaken our national indifference to a coming crisis.”

“And when will you explode your bomb?” asked Barclay.

“In a day or so.” Patterson turned and regarded Barclay attentively from head to foot, and suddenly he smiled, a smile of such satisfaction that Barclay, his fingers clenched about his program, had difficulty in controlling his rising anger.

“Is it to be war with Japan?” asked Ogden, smiling ironically. “Sorry, Patterson, I don’t scare worth a cent.”

“I cannot see, Patterson,” Norcross joined in the conversation, “that we have so very much to fear in a war with Japan. I think that you overrate their fighting qualities, and undervalue ours.”

“Not a bit of it,” responded Patterson. “Didn’t that little empire whip the backbone out of Russia almost in no time? And we are just as unwieldy and *unready* as Russia was in those days.”

“Ah, but was their victory entirely the Japs’ doing?” asked Norcross. “It is believed in China and I have heard it whispered in this country that the crack marksmen of gun crews were enticed away from American battleships and cruisers in the Pacific by Japanese wiles to serve on Japanese battleships. And these American gunners in a large measure were responsible for Japan’s naval success over Russia.”

“Oh, tush!” ejaculated Ogden unbelievably.

“I’ve heard that tale before,” admitted Patterson, paying scant attention to Ogden. “And I believe it. The Japanese use us at every turn, and when the moment comes, will knife us in the back.”

Ethel had been an interested listener. She had always looked on Patterson’s fervid tirades against the Japanese as a distinct bore, but suddenly she saw her way to eliciting information without appearing to do so, and promptly took a hand in the conversation.

“Didn’t you tell me of a Japanese knifing an American on the train with you, Mr. Barclay?” she asked.

It was the first time she had addressed him that evening, and Barclay bent forward so as not to lose a note of her voice.

“A Japanese did poison Dwight Tilghman, not knife him,” he answered. “Norcross and I were passengers on the same train.”

“How horrible!” Ethel shivered. “Could no one prevent the crime?”

“No one was around—” Barclay waited until Patterson stopped speaking across him to Mrs. Ogden, and then continued. “The crime was apparently committed while the train was in the station at Atlanta.”

“Dear me, what a public place in which to commit murder,” chimed in Mrs. Ogden, not liking to be left too long out of the conversation. “I should have thought the murder would have been detected instantly.”

“Well, it wasn’t.” At that moment the orchestra ceased playing and in the sudden quiet Barclay’s voice rang out sharply. “The passengers were mostly strolling about the station or in Atlanta, during our enforced wait there, and the Pullman cars were left empty.”

“Did you go sight-seeing also, Barclay?” and as Patterson put the question his eyes never left Barclay’s face. His absorption prevented him observing Ethel’s eagerness. She held her breath for Barclay’s answer which was slow in coming.

“Yes,” he replied. Ethel’s taut muscles relaxed as she sank back in her chair. She had caught the expression in Barclay’s eyes, and it had given the lie to his spoken “Yes.” Barclay leaned further forward and spoke to her directly. “Have you ever come across a man named Yoshida Ito among your Japanese friends?” he asked.

“What is it?” she mumbled, and raised her handkerchief to conceal her trembling lips.

“Have you ever met a Japanese named Yoshida Ito?” repeated Norcross, as the orchestra resumed playing and drowned Barclay’s voice. “He is the man who is thought to have murdered Tilghman.”

“Yoshida Ito?” Ethel shook her head. “I will ask the ambassador and Mr. Takasaki; perhaps they may have heard of him.”

“They probably have,” agreed Patterson. “But you will get nothing out of those two men but what they want you to learn. There goes the curtain _____”

Ethel never afterward remembered one word of what transpired on the stage; she was grateful for the darkness which concealed the agony she was enduring from too inquiring eyes. With dry lips and burning eyeballs she sat staring before her, combating with every reason she could command her growing conviction that, if not the actual criminal, Julian Barclay was, in some way responsible for Dwight Tilghman’s death. If he had not lied when asked his whereabouts in Atlanta! There must be extenuating circumstances—and yet he had lied. Of that Ethel was thoroughly convinced; she had come to know and read Julian Barclay’s expression as only a loving woman can during their brief, happy days together.

Under cover of the darkness Barclay edged back his chair until he could get an uninterrupted view of Ethel. He could only see the outline of her shapely head and shoulders, and he longed unspeakably for the sound of her voice, the touch of her hand. In a sudden rush of passion all his loss came home to him, and an involuntary groan escaped between his clenched teeth. It was drowned in rounds of applause as the curtain descended at the end of the play.

“Now, Mr. Patterson, you must have supper with us at the New Willard,” announced Mrs. Ogden, rising to put on her wraps. “I shall not take ‘no’ for an answer.”

“You are awfully kind, Mrs. Ogden.” Patterson looked appealingly at Ethel, but her face was averted and he only caught a glimpse of a flushed cheek. He was about to decline the invitation when his dogged perseverance gained the mastery. “I’ll come with pleasure.”

Barclay moved impulsively to help Ethel on with her cloak, then drew back as Patterson slipped it about her shoulders. Bah! it was Patterson’s right, he was the interloper, and turning, he made blindly for the stairs. Others were before him, however, and he made but slow progress. Suddenly

he realized that Ethel was standing at his elbow. He was about to speak to her when he caught sight of a face in the crowd beneath them.

“There—look!” he cried, and his excitement communicated itself to Ethel.

“Where?” she eagerly scanned the crowd. “Oh, that’s Mr. Takasaki.” But her words were unheeded as Barclay, regardless of the crowd about them, forced his way down the staircase and out of the theater.

Ethel turned in bewilderment to Professor Norcross who was on her other side, and to his horror he found her eyes were filled with tears.

“Pay no attention to Barclay,” he whispered. “He is excitable—and tomorrow will be properly ashamed of his eccentric behavior. Ah, here is Mrs. Ogden.”

“Ethel,” Mrs. Ogden was out of breath from her efforts to call to them over the heads of the crowd. “Mr. Patterson will take you over to the Willard in his car.”

“Oh, no,” Ethel shrank back. Her endurance had reached the breaking point, and she could not face another interview with James Patterson. “I—I—have a splitting headache, Cousin Jane; could you let me go directly home?”

“And not go to the Willard!” ejaculated Mrs. Ogden in consternation. “Why, Ethel, Secretary and Mrs. Thomas and their guests are to have supper with us. You simply must come.”

“Suppose you walk over to the Willard with me,” suggested Norcross. “The air may do you good, Miss Ogden.” And Ethel flashed him a grateful smile as she took his arm, but at the theater entrance Patterson joined them.

“Aren’t you coming with me, Ethel?” he asked.

Norcross answered for her. “Miss Ogden has a bad headache, and we are walking over to the hotel in the hopes that the exercise may do her good.”

“But the Willard is several blocks off,” exclaimed Patterson, aghast. “And in that light dress, Ethel—better let me take you both over in my limousine; I have room for you, Professor.”

“Very well,” Norcross chose to overlook the incivility which accompanied the invitation to himself. “I did not realize that the hotel was so far from the theater, Miss Ogden. Suppose we ride over with Patterson.”

Ethel acquiesced wearily. So long as she did not have to talk alone to Patterson it was immaterial to her how she reached the hotel. Except that she felt under obligation to her cousins she would not have attended the supper. She was grateful for the silence of the two men during their short ride to the hotel, and when she entered Peacock Alley she had regained control of herself.

It was close on two in the morning when Ethel reached her bedroom, and without undressing, threw herself across the bed and closed her eyes. She lay there an hour or more, inexplicably weary in mind and body; then dragged herself upright as the clock on the mantel chimed four. She removed her gown and slipped on a heavy silk wrapper and made her way to her desk. There was one thing she must do before more hours passed, and taking up a pen she wrote:

DEAR MOTHER:

A lengthened pause followed, then she added:

I’ve read your postscript with interest—

She paused again, and continued:

I see no connection between the mysterious hand and the poisoning of Dwight Tilghman. Don’t bother the coroner with any wild theories. And I wouldn’t speak of being in the train-shed without a porter, it might get you into trouble with the railway officials.

Much love, darling Mother, to you and Dad.

Your devoted

ETHEL.

Taking up an envelope Ethel addressed and sealed it and searched among her papers for her stamp book. Finding it at last she placed a special delivery as well as a two-cent stamp on the letter, and paused undecidedly. The letter, if left on the table in the lower hall, would be posted before

seven o'clock by the butler, and she could not rest until she knew that her warning was on its way to her mother. She had given orders to have her breakfast served in her bedroom, and if she kept the letter it might not get mailed before noon.

Ethel crossed the room and opening her hall door peered cautiously into the corridor. A solitary electric light was burning at the head of the staircase, and Ethel, leaving her bedroom door ajar, stole along the corridor and down the staircase. She had reached the table in the large front entrance hall, had placed her letter upon the silver card tray and was returning toward the staircase when the sound of a window being raised sent her heart into her mouth.

She had paused by an alcove, and as she laid her hand on one of the long portières hanging before it, a figure flitted by her, raced noiselessly to the back of the hall, raised a window and vaulted through it. Thoroughly frightened Ethel started forward to ring the hall bell, but a sound behind her caused her to retreat hastily into the shelter of the curtained alcove. Peering cautiously out from behind the portière, she was thunderstruck at the sight of Julian Barclay. Whether he came from the library, the drawing room, or the entrance leading to the servants' quarters it was impossible to tell, as he was well in the hall when she saw him. Had he detected her presence?

Too surprised to call out, Ethel watched him cross the hall and make for the open window. He looked out for a second, then drew back and moved swiftly over to the huge carved mantel. By aid of the hall light, which Walter Ogden kept burning all night, Ethel saw that Barclay wore dark trousers and a dark tightly fitting jersey. Pausing by the mantel Barclay took from an inside pocket a small object and, first touching it to his lips, placed it in one of the Dresden china jars standing on the mantel, then running back to the window, he vaulted through it.

Completely mystified and not a little terrified, Ethel paused undecidedly; then her woman's curiosity conquered, and she crept softly over to the mantel. What was it that Barclay had handled so tenderly? She slipped her hand inside the jar and taking out a small package wrapped in chamois, unrolled it. It was a miniature of herself.

For one moment Ethel stared at it with unbelieving eyes, then, her face suffused with blushes, she started to return the miniature to its hiding place

inside the jar when she became conscious that someone was watching her from the staircase. Wheeling about she saw Professor Norcross, a sweater drawn over his hastily donned trousers, and caught the glint of light on the revolver in his hand. Seeing she had observed him, he raised his finger to his lips, and crossing the hall, joined her.

“Did he go that way?” he whispered, indicating the open window.

“Yes.” Ethel slipped the miniature unseen inside her pocket.

The professor, not waiting for her answer, hurried to the window. A second more and Ethel was by his side, peering eagerly out into the night. It was a fair drop to the ground below, but near at hand was the low roof of the garage. Ethel, wondering if Barclay and the man he pursued had used that means to reach the yard, looked farther down the yard to where the alley light cast some illumination, and her heart beat fast at sight of Julian Barclay sitting astride the brick wall. The watchers saw him lean downward toward the alley side, and a faint whisper reached them.

“Ito, I tell you I have no more money to spare.”

How many minutes Ethel stood by the window she never knew, but a strong hand drew her back across the hall and inside the portières of the alcove as a noise of someone scrambling upward cut the stillness. A few seconds later Julian Barclay clambered through the window, turned, closed it, and sped swiftly up the staircase.

In silence Ethel walked over to the staircase, Norcross at her side, but under the full rays from the electric light on the newel post she recoiled at the expression in the professor’s eyes.

“You must not tell,” she whispered, putting out her hand imploringly. “You must not get Julian into trouble. He”—her voice shook—“he can explain.”

Norcross laid a soothing hand on her shoulder. “Trust me,” he whispered comfortingly. “Good night,” and with a sobbing word of thanks, Ethel fled upstairs.

CHAPTER XII

QUICKSAND

M^RS. OGDEN was bored, and when bored her temper was apt to prove uncertain. Only Professor Norcross and her husband had appeared for breakfast, and the latter had persisted in discussing politics and the money market, two things which she abhorred, and she had seen them depart with a sense of relief. She had left the dining room shortly after to interview the florist's assistant, who had come to decorate the house for her dinner that evening.

The interview was longer than she anticipated, and several times she called upon Julian Barclay, who had entered the reception hall while the discussion was still going on, to settle knotty points in the arrangement of palms and flowers.

"Do sit down, Julian," Mrs. Ogden switched her comfortable arm chair back from the table. "You have been prancing up and down this hall until my nerves are quite on edge."

"I beg your pardon, Cousin Jane," exclaimed Barclay contritely. "I wasn't aware that my restlessness bothered you." He stopped before the carved mantel-piece. "I thought you had two Dresden jars on either side of the clock," he remarked, raising the piece of china in his hand and glancing critically inside it.

"So I had, but that lazy, worthless parlor maid broke it when dusting this morning."

"Broke it!" gasped Barclay, and the jar he held almost slipped from his grasp.

"Take care," Mrs. Ogden jumped. "Do put down that jar, Julian; I cannot afford to lose both," she entreated. "Yes, the maid broke the other, and had the audacity to say that it was cracked in the first place." Mrs. Ogden sniffed. "I let her know I thought she was cracked."

“Too bad!” murmured Barclay, looking regretfully at the jar, and not hearing her last remark. “It’s a shame to lose the pair. Perhaps I can cement the pieces together for you.”

“Oh, could you?” Mrs. Ogden spoke more hopefully. “I had them all collected and placed in this box.”

“Let me see them,” Barclay came over to the table and opening the box, spread the broken china before him; the smallest piece did not escape his scrutiny. “Are these all?” and Mrs. Ogden actually started at the sharpness of his tone.

“I suppose so. Don’t they fit?”

“The big pieces do,” assembling them together as he spoke. “Was there, by chance, anything in the jar?”

“Anything in the jar?” repeated Mrs. Ogden. “No. Nothing was ever kept in either of them. Do stop fingering those pieces, Julian, you may cut your hand on the sharp edges.”

“No danger.” Barclay thoughtfully returned the china to the box. “I shall have to ask the maid if she picked up all the pieces.”

“You can’t do that because she has gone.”

“Gone?” staring blankly at his cousin.

“Certainly,” tartly. “You don’t think I’m going to keep a bull-in-the-china-shop in my employ do you, with all my valuable bric-a-brac? No, indeed; I gave her a week’s wages and sent her packing.”

Barclay replaced the cover on the box before speaking again.

“I can’t blame you for firing her,” he said. “There’s nothing more aggravating than losing an article you value—through carelessness—cursed carelessness,” he added with suppressed bitterness, and Mrs. Ogden stared at him in surprise.

“It’s good of you, Julian, to take so much interest in my jar,” she said, much pleased. “And sometime when you are not busy, if you will stick the jar together....”

“Surely, surely,” he broke in. “Could you give me the girl’s full name and address, Cousin Jane, she....”

“Don’t tell me she has stolen something from you,” exclaimed Mrs. Ogden, interrupting in her turn.

“No, no,” Barclay moved restlessly. “Quite the contrary, she laundered some handkerchiefs for me, and I’d like to send her a tip.”

“Very thoughtful of you,” commented Mrs. Ogden dryly. “She can take that tip out in my broken jar. Rose was a better laundress than a parlor maid, although Mrs. Leonard McLane gave her an excellent reference. Don’t you want any breakfast?”

“Breakfast? Have you had yours?”

“Ages ago,” and her tone implied the feeling of virtuous satisfaction which accompanies early rising. “Run along into the dining room, Julian; you must be starved. Why, it’s nearly ten o’clock.”

“I’m not hungry,” protested Barclay, turning nevertheless toward the entrance to the dining room. “Coming this way, Cousin Jane?”

“No, I’m going upstairs,” and gathering her belongings together Mrs. Ogden departed.

Barclay found the dining room deserted, and halfheartedly ate the tempting dishes set before him. Inquiry from the butler had elicited the news that Walter Ogden and Professor Norcross had breakfasted and gone down town some time before.

“Has Miss Ogden been down?” he finally asked the butler, who hovered behind his chair.

“No, sor, she is after breakfastin’ in her room. Another muffin, sor?” holding the bread plate coaxingly before him. Barclay was a favorite with the servants.

“No more, thanks.” Barclay pushed back his plate. “Has Rose, the parlor maid, left the house yet?”

“Yes, sor. I saw her go over an hour ago, sor.”

“Can you tell me her full name and address?”

“Rose O’Day, sor. She wint direct to the station, sor, an’ I understood her to say she was goin’ to her home in New York, but I dunno her exact address. I’ll ax the cook, sor, if you wish.”

“Do so,” and Barclay, picking up the morning paper left by Ogden, listlessly read its contents. Charles was back in a short time.

“She lives somewhere in Cohoes, near Troy, New York, sor; but the cook doesn’t know her house address.”

“Thanks,” Barclay, concealing his disappointment, slipped a tip in Charles’ ready hand. “Is luncheon to be at the usual hour?”

“Half an hour earlier, sor.” Charles started to clear the table as Barclay rose. “Mrs. Ogden has engaged extra help for the dinner tonight, and I have to show them the silver and things, sor.”

“I hope the new servants all come highly recommended,” remarked Barclay, with sarcastic emphasis which the man servant never saw. “Mrs. Ogden’s handsome silver and jewels would be a temptation, a grave temptation, to thieves.”

“Yes, sor.” The butler looked considerably startled. “The extra footmen come from the caterer, sor. Will you take the paper, sor?”

“No, I’ve read it,” and stuffing his hands in his pockets Barclay left the room. In the hall he went direct to the mantel and stared dully at the remaining Dresden jar. Inwardly he anathematized the absent-mindedness which had cost him the loss of his most precious possession.

Had Rose, the parlor maid, seen Ethel’s miniature before she broke the china jar, and stolen it, or had the miniature also been destroyed in the fall? The latter hardly seemed likely, for he had found no trace of broken glass or ivory among the china. She might have accidentally broken the miniature and stolen the gold case, but even then there would have been some ivory or glass picked up in the *débris*. Barclay sighed heavily. Undoubtedly the girl had stolen the miniature, for what reason he could not imagine, and his best plan was to go to Cohoes and try and find her.

On his way to his bedroom Barclay paused in front of Walter Ogden’s den and listened. Had Ethel taken up her customary post in the den? The tinkle of the telephone bell sounded behind the closed door, and he heard

her voice answering the call. A great yearning to see her swept over him, and he raised his hand to knock at the closed door, but the muscles contracted at a sudden thought, and his knuckles touched the mahogany so lightly that no sound followed the contact. With a gesture of despair he continued his way down the corridor.

Barclay's presence outside the door had not gone undetected. Ethel, one hand resting on the desk, waited breathlessly as his familiar footsteps sounded down the corridor and stopped before the den. Would he come in? Her sad eyes brightened at the thought. Instinctively she answered the telephone's abrupt summons, and as she received the Central's apologetic: "Wrong number, excuse me, please," she heard Barclay's receding footsteps and turned wearily back to her work.

As the morning wore on her attention wandered, and throwing down her pen in despair, she took from the top drawer of her typewriting desk a small object, and removing the chamois, looked at her miniature.

All through the sleepless night, when her tired brain refused to refute or accept the evidence of Julian Barclay's complicity in the poisoning of Dwight Tilghman, and agonizing sobs shook her, the touch of the miniature under her pillow had brought a ray of comfort. Julian Barclay had treasured her miniature, had kissed it—Ethel had slipped the miniature out of its chamois covering, and fallen into fitful slumber holding it against her white cheek.

Ethel took a magnifying glass out of her drawer and examined the miniature. It was an exquisite piece of workmanship, and the likeness extraordinary. Her wonder grew. She had known Julian Barclay a little over two weeks; it hardly seemed possible that the miniature could have been painted and framed in that time. She studied the gold case with interest, but it bore no name or initials, and turning it this way and that, she attempted to open it. Finally convinced that it was tightly soldered in place, she laid the miniature down and toyed with her pencil in deep thought.

If, as she imagined, Julian Barclay had left the miniature in the jar that it might not be broken in his window climbing, why had he not stopped on his return and looked for it in the jar? Instead, he had gone immediately upstairs. Could it be that he had seen her and Professor Norcross and dared not loiter in the hall?

The idea brought a lump to Ethel's throat. If so, it was but one more evidence of his guilt. That he was guilty there would be no doubt—his own words to Ito at their clandestine meeting proved a secret understanding and bribery. Ito, a fugitive from justice, would not have risked exposure by entering the Ogden residence unless the matter had been one of desperate importance. Probably her appearance downstairs had frightened him away, and Julian Barclay, not having seen the cause of his flight, had gone in pursuit to tell the Japanese—what?—that “he had no more money to spare.” The inference was all too plain.

With slow, unwilling fingers, Ethel summed up the evidence against Julian Barclay on the paper pad before her. He was a passenger on the train with Dwight Tilghman; he was the last person known to have seen Dwight Tilghman alive; he had lied when stating that he had been sight-seeing about Atlanta at the time the crime was committed. A hand wearing a jade ring, the duplicate of one he had since given her, had been seen by her mother through a Pullman car window holding a paper, which by its size and shape might easily have contained a powdered poison, at an angle which suggested the act of pouring something into a cup; and if that was not enough, only a few short hours before, she, Ethel, and Professor Norcross had seen him meet Yoshida Ito, the supposed murderer, clandestinely, and his words: “No *more* money to spare,” implied that he had furnished the Japanese with sums in the past. Hush money!

Ethel, through a blur of tears, stared before her, then in a sudden revulsion of feeling, she tore the paper on which she had been writing into tiny bits. Where she had given her love she had given her loyalty. Evidence might be against Julian Barclay, but a motive for the crime was missing.

Dashing the tears from her eyes, she again examined the miniature by aid of the magnifying glass. Suddenly her conversation with Barclay at the Japanese Embassy reception flashed into her mind; had that inspired him to have her miniature painted? She knew of no one else who would have gone to the expense, except possibly James Patterson, and she felt confident that he would not have done it without first speaking to her. No, Julian Barclay must have had the painting executed, the act itself fitted in with his romantic, quixotic courtship of her. There only remained the question of time—could the miniature have been painted in the short time she had known him?

Carrying the miniature over to the light Ethel almost stared her painted prototype out of countenance; then wrinkled her forehead in a puzzled frown. She had discovered another startling fact—every detail of the gown she was wearing in the miniature was unfamiliar; she had never owned or worn one like it!

A loud knock at the door awoke her from her bewilderment.

“Luncheon is served, Miss Ethel,” announced Charles, opening the door in response to her call.

“I’ll be right down; tell Mrs. Ogden not to wait for me,” and as she spoke, Ethel replaced the chamois about the miniature and laid it in her desk drawer, alongside Julian Barclay’s jade ring. Pausing only long enough to arrange her curly hair and pinch some color in her cheeks she hastened down to the dining room.

“Just a light lunch, Ethel,” said Mrs. Ogden, as Professor Norcross rose and pulled back her chair. “Walter telephoned he would not be back from the Capitol, and Julian hasn’t shown up.”

“He’s comin’ now, Mrs. Ogden,” volunteered the butler, and Barclay appeared a second later.

Barclay’s words of apology were addressed to Mrs. Ogden, but his eyes sought Ethel as a needle seeks its magnet. The dining room was not well lighted, and he failed to catch her expression as she returned his greeting, but under cover of Mrs. Ogden’s incessant talk his glance stole again and again to the silent girl on his right. Mrs. Ogden at last awoke to the increasing darkness as wind clouds obscured the sunshine, and directed Charles to switch on the electric lights, to Barclay’s secret satisfaction. He never wearied of looking at Ethel.

“By the way, Julian, why did you disappear so mysteriously last night?” inquired Mrs. Ogden. “You did not come to my supper party.”

“I owe you a thousand apologies,” exclaimed Barclay flushing. “I confess I never gave it a thought, Cousin Jane,” and at sight of her offended look, he added hastily, “I hope that you will pardon my absent-mindedness when I tell you that among the crowd leaving the theater I saw Yoshida Ito.”

“Who is he?” asked Mrs. Ogden. “Oh, now I recollect; the Jap who poisoned Dwight Tilghman.”

“Exactly. And wishing to hand him over to the police, I gave chase.”

“And did you catch him?” demanded his cousin breathlessly.

“No, worse luck! He eluded me in the crowd and disappeared in the direction of the Mall.”

“Did you find any further trace of the Jap?” inquired Ethel, breaking her long silence, and her voice sounded unnatural in her own ears.

“No.” Barclay moved a tall glass compote containing nuts, so that he could look directly at her. “No. I wandered about that part of the city, questioned the policemen on duty there, and came home. Do you know, Cousin Jane,” helping himself to a walnut, “that you had a burglar here last night?”

“What!” Mrs. Ogden’s fork fell with a clatter into her plate, and her usually rosy cheeks turned pale.

“Fact.” Barclay’s serene smile widened at seeing the concentrated attention which Ethel and Professor Norcross were giving him. “I suppose my sudden and unexpected glimpse of the Jap, Ito, excited me, for I could not sleep and sat up reading. I thought I heard a window open, and stole downstairs just in time to see a man vault through the hall window.”

“Good heavens! We might all have been murdered in our beds!” Mrs. Ogden turned a stricken face to the agitated butler. “Any silver missing, Charles?”

“No, madam, not a piece; I’ve just been after accountin’ of it,” he stammered. “I locked up the house as usual, last night, madam, but this mornin’ I did find the pantry window unlocked.”

“Probably that girl, Rose, was a confederate,” Mrs. Ogden shuddered at the thought. “That was why she was so agitated this morning. I’ll notify the police. Could you identify the burglar, Julian?”

Barclay cracked a nut before answering.

“I couldn’t see very well in the half light,” he said. “But do you know, the man, in size and quickness, reminded me of the Jap, Ito——”

Ethel and Norcross exchanged glances across the table.

“Didn’t you see the intruder face to face?” asked Norcross, breaking the pause.

“No, I did not catch up with him,” answered Barclay lightly, and only Ethel’s look of agony stayed the rejoinder on Norcross’ lips.

CHAPTER XIII

THE QUARREL

PROFESSOR NORCROSS laid aside the late edition of the *Times*, and took, with a word of thanks, the three-cornered note handed him by Mrs. Ogden's maid. But on closing the door of his bedroom he lost no time in unfolding the note paper, and read the words with eagerness.

DEAR PROFESSOR:

I *must* have a word with you before the other guests arrive. I will be in the library at seven-thirty. *Please* be there.

In haste,

ETHEL OGDEN.

Norcross laid the note on his bureau and consulted his watch; then rushing to his closet dragged out his evening clothes, and commenced dressing with feverish haste.

But with all his speed the professor, twenty minutes later, paused on the landing of the staircase and an exclamation of pleased surprise escaped him. The florist had transformed the stately entrance hall and rooms beyond into fairyland. Tall, graceful palms, plants, and clusters of cut flowers filled every nook and cranny, while the system of indirect lighting suggested earlier in the day by Julian Barclay, added to the beauty of the scene. However beautiful the scene, it had only power to hold Professor Norcross for a moment, and he lost no further time in reaching the library. Ethel was there before him.

"It is good of you to come to me," she exclaimed, impulsively extending her hand, and Norcross clasped it in both of his.

"Are you not feverish?" he asked, alarmed at the hotness of her hand and her flushed cheeks.

"Perhaps," indifferently. "Professor, tell me"—she stopped and continued more slowly. "What is your opinion of Julian Barclay?" Norcross

hesitated, and she added proudly, "I desire the truth."

"Very well," Norcross looked at her compassionately. "On first meeting Julian Barclay I thought him a pleasant, agreeable companion,"—he was picking his words with care. "A man who might have achieved considerable success in whatever he undertook, had not a comfortable income deprived him of the necessity and spur to apply himself to work."

"And you think now—?" suggested Ethel, as he paused.

"Too much idleness is the curse of many American men," he said. "If they cannot find a proper outlet for their energies, and there comes a time when idleness palls, they are apt to turn to unwise occupations and corrupt associates. Such, I fear, is the case with Julian Barclay."

Ethel covered her eyes as if to shut out the glare of the droplight electric lamp by which they were sitting, and Norcross reaching over, switched it off. In the light thrown out by the open fire on the hearth he could see Ethel fairly distinctly, and he frowned as he detected the effect of her sleepless night. The light and shadow of the room, the high-backed brocaded chair in which she sat, her perfectly fitted, simple evening gown, made a quaint picture, and Norcross' bottled-up indignation found vent in a muttered curse. It seemed criminal that a man of Julian Barclay's caliber should have it within his power to cause her suffering.

Ethel, suddenly conscious of the silence, dropped her hand from before her eyes, and glanced at Norcross. She found his pleasant face set in grim lines.

"Go on," she begged. "You were saying——"

"Idleness, money, no home ties, and the Far East are a bad combination," he responded gravely. "Barclay seldom speaks of the years he has spent in the Orient; in fact, he leads one to infer that he knows little about it. That first prejudiced me against him, for I had heard—" he did not finish his sentence.

"You had heard"—prompted Ethel.

"I had a letter from Dr. Shively recently, calling my attention to the fact that Barclay, in his deposition to the coroner here and read at the inquest on Tilghman in Atlanta, omitted all mention of his whereabouts at the time

Tilghman was poisoned. As every passenger even remotely connected with the affair, proved his alibi, Barclay's omission was surprising."

"But he said last night that he was sight-seeing," interposed Ethel, in a vain endeavor to combat what reason told her was the truth.

"Neither Shively or I caught a glimpse of him about the station," said Norcross gravely. "And Shively writes that he has questioned many of the passengers, porters, and railroad officials at Atlanta and all state they did not see a man answering his description. Until Shively's letter arrived, I have thought the Jap, Ito, guilty, but now after last night"—he paused and contemplated her thoughtfully. "I am forced to believe that Julian Barclay must be involved in the crime also."

Ethel shaded her face with her hand. "Your reasons?" she demanded.

"We both saw him talking to Ito last night."

"Mr. Barclay admitted at luncheon that he had found Ito here," Ethel was dogged in her determination to exonerate Barclay.

"True; but when I asked him if he had not come face to face with the Jap, he denied it, and you and I saw him talking with the Jap, and his words: 'Ito, I have no more money to spare,' bear but one interpretation." Norcross laid his hand on hers. "Miss Ogden, I am hurting you cruelly—it grieves me to inflict pain."

Ethel smiled bravely, but as she met the sympathy in his kind eyes, her own brimmed over. She dashed the tears impatiently away. "It is better that I face the situation," she said. "Why did Julian bring up the subject of the burglar at luncheon, why mention the Jap at all?"

"Because," Norcross lowered his voice. "I believe he knew we were watching him."

"Oh!" Ethel's thoughts flew to her miniature; Barclay had not stopped to get it on returning from the interview with the Jap, and he had not inquired for it since. He must have seen her that night and supposed she had taken it.

"Barclay was clever enough to take the bull by the horns," added Norcross. "He forestalled all questions by announcing that *he* was chasing a burglar, a meritorious act. To others it will be a perfectly valid excuse for

his appearance in the hall at that hour; but, unfortunately for him, we looked out of the window." Norcross moved his chair closer.

"Had you seen Barclay before luncheon?"

"No."

"Nor had I," thoughtfully. "Then he chose the first opportunity to tell us in each other's presence, of his pursuit of the so-called burglar."

Ethel contemplated Norcross in despair; he was weaving a web about Barclay which even her loyalty could not ignore.

"Had Mr. Barclay known Dwight Tilghman for a long time?" she asked.

"No. I believe they met for the first time the night before Tilghman's death."

Ethel brightened. "Then, if they were virtually strangers, there could be no motive for the crime."

Norcross did not answer at once, and when he finally spoke it was with reluctance. "We played poker that night on the train, and Dwight Tilghman won a large sum of money from Barclay, and yet when Tilghman's personal belongings and baggage were examined after his death, the money was missing."

Vaguely Ethel grasped his meaning. "No, I don't believe it," she cried. "It was no sordid crime, and if that is the only motive imputed to Julian for the murder of Tilghman, I'll not believe him guilty."

Norcross moved uncomfortably. "I hope that time will prove you right," he said. "It may be that Barclay knew this Ito in the Orient, and the Jap is blackmailing him for some past indiscretion, which has nothing to do with Tilghman's death."

"I believe you are right!" Ethel drew a long breath, hope had returned to her. She sprang to her feet. "How can I thank you?"

"By getting back your old, gay smile," he exclaimed coloring, and speaking lightly to conceal his emotion. "There, that's better," as Ethel flashed him a grateful look and a smile. "I hope you will always come to me to solve your problems."

“I will, I will,” she promised fervently. “I want to speak to you about a —” the entrance of Walter Ogden interrupted her.

“I’ve been looking all over for you, Norcross,” he said, not seeing Ethel, who had retired to one of the windows as he came in the doorway. “Jane wants you in the dining room; something is wrong with the decorations, and she thinks you can advise her.”

“Surely, I will come at once. Will you excuse me, Miss Ogden?” bowing toward Ethel, and Ogden wheeled about.

“I didn’t know you were downstairs, Ethel,” he exclaimed. “Coming with us?” holding back the portières as he spoke.

“Not just this minute,” Ethel stepped inside one of the deep window recesses. “I want to cool off.”

“Cool off?” Ogden’s voice expressed his astonishment. “All right,” and he followed Professor Norcross with somewhat mixed feelings. Had he interrupted a flirtation? A flirtation with the professor—Ogden had some difficulty suppressing a chuckle.

Ethel had spoken on the impulse of the moment. She wanted to be by herself; Norcross had given her food for thought. Blackmail, ah, that would explain Barclay’s surprising interview with the Jap. What more likely than that Ito, a fugitive from justice, had applied to Barclay for funds with which to escape from the country? He probably had bled Barclay before. As for the indiscretion—if Barclay had remained any time in the East, he might have become involved in some political entanglement.

Pulling the catch of the leaded glass window, which opened inward, Ethel peeped outside. The cold air was refreshing, and she filled her lungs with it.

A wide balcony ran by the window, and leaning farther out, Ethel was startled at seeing a man standing at the end overlooking the street. He moved slightly and by the light shining through the drawing room windows Ethel recognized Barclay. Quickly she drew back into the library and closed the window.

Barclay might have heard the faint noise the window catch made falling into place, but his attention was centered on James Patterson who stood at

the corner just under the arc light talking to a man. They were too far away for Barclay to distinguish a word of their conversation, but that it was animated Patterson's gestures indicated. At last Patterson moved toward the Ogden residence, and his companion lifted his hat in farewell, and the arc light fell full upon Yoshida Ito.

Dumbfounded, Barclay continued to stare at the little Japanese, and before he had collected his wits, Ito had disappeared. He was not so much surprised at the Jap's unexpected appearance, but to find him in Patterson's company took his breath away. He had gone out on the balcony to smoke a cigarette uninterrupted, but when he reentered the drawing room through the long French window, his cigarette was still unlighted.

Barclay found the drawing room deserted, and he was about to go into the library when the entrance of James Patterson stopped him. The two men stared at each other for a prolonged moment.

"This is better luck than I expected," said Patterson. "I have wanted to see you alone for some time."

"Your ambition might have been attained before, if you had let me know you wished to see me," replied Barclay sarcastically, and Patterson stiffened.

"I am not so sure of that," he rejoined swiftly. "Your manner has led me to believe that you desire to avoid me—as in the station at Atlanta."

"You flatter yourself," Barclay laughed easily, then his voice deepened. "Now, sir, that you do see me, what do you wish?"

"That you leave town at once."

"Anything more?"

"That you have nothing further to do with Ethel Ogden."

Barclay's hitherto suppressed anger rose to boiling heat. "On what grounds do you make that request?" he demanded.

"As her affianced husband," with calm effrontery.

Barclay flinched. "But that Mr. Ogden gave me to understand that you and Miss Ogden are engaged, I would decline to believe your assertion."

“By—” Patterson in a towering rage stepped toward him, but Barclay stood his ground, and he stopped. “I will give you twelve hours to leave Washington, or I will expose you,” he announced.

“Thanks,” dryly. “I had planned to leave tomorrow, but now—I’ll stay here.”



“I will give you twelve hours to leave Washington or I will expose you,” he announced.

Patterson’s smile was far from pleasant. “Bravado will not help you,” he snarled, raising his voice. “I shall go the limit to protect Miss Ogden and

Washington society from the attention of——”

“Miss Ogden can take care of herself,” announced a clear voice behind them and the two men swung about and confronted Ethel.

“I must ask you to leave, Ethel,” broke in Patterson hastily, before Barclay could speak.

“I will not,” and she stepped nearer. “I have only just come in. What were you quarreling about, Mr. Barclay.”

“A matter of no moment,” he answered. “A—a political discussion.”

Ethel looked at him closely. “Thank you,” she murmured, and her warm, bright smile almost broke down his composure.

Ethel’s manner to Barclay had not been lost on Patterson, and it fanned his jealousy to a white heat.

“Let’s have done with lies,” he began roughly. “This man is not a fit associate for you, Ethel.”

“Wait!” Ethel laid a restraining hand on Barclay’s arm as he stepped toward Patterson, and he thrilled at her touch. Ethel faced Patterson. “I will have you understand, James Patterson, that I choose my own friends, and I consider Mr. Barclay worthy of my friendship.”

Impulsively Barclay raised the little hand on his arm and kissed it passionately.

“God bless you!” he murmured, and she crimsoned as the whisper reached her.

“Ethel, Ethel,” Patterson threw out his hand beseechingly. “You are totally ignorant of Barclay’s true character. No, you’ve got to listen to me,” as she drew back. “Or if not to me”—catching sight of Dr. Leonard McLane, who had just stepped inside the drawing room—“then you must hear Dr. McLane. McLane, who is this man?” pointing to Barclay, who had grown deadly white. Only Ethel heard Barclay’s sharply drawn breath as he stood tranquilly waiting.

McLane advanced, bowed to Ethel, and then paused in front of the group.

“Barclay, is it not?” he asked courteously, and held out his hand.

CHAPTER XIV

A STARTLING INTERRUPTION

WALTER OGDEN'S glance roved around the dinner table as he kept up a brisk conversation with his right hand neighbor, and a sense of triumph replaced his concealed anxiety. The dinner was unquestionably a success, in point of service, decorations, appointments, and the social standing of the guests. Ogden's contact with the world had taught him not only the value of money, but when to spend it with the best results. He practiced his creed, "dollar diplomacy," at home as well as abroad. His wife's success deserved reward, he mentally decided, and picked out a diamond-studded wrist watch at which Mrs. Ogden had cast longing eyes when in the jeweler's two days before.

Mrs. Ogden, seated between a South American ambassador and a high dignitary of the church who had recently come to Washington, helped herself to the salad with a distinct feeling of elation. The dinner had moved smoothly, no lull in the conversation, no *contretemps* such as anxious hostesses feel even to their finger tips, had marred the pleasure of the evening. And it had not opened auspiciously. On returning from the dining room with Professor Norcross after rearranging the decorations, she had found Lois McLane standing in the hall, and together they had walked into the drawing room and into a tableau. No other word in Mrs. Ogden's vocabulary fitted the situation. Patterson's ill-suppressed fury; Ethel's flushed cheeks; Dr. McLane's suave manner, and Barclay's sparkling eyes and air of elation, all indicated a scene. What it was about she had no idea, for they had talked inanities, all, that is, except, Barclay, who had excused himself and left the room. Mrs. Ogden had heartily wished it was the house—she was commencing to regard her handsome cousin as her Frankenstein monster, and everything transpiring out of the ordinary she attributed to his disquieting influence. He was actually making her nervous. She had seen to it that the width of the table separated him from Ethel, and but for the presence of Maru Takasaki, would have assigned James Patterson to take Ethel out to dinner. But Ethel was most decidedly the proper person to

entertain the Japanese attaché, and Ogden had assured her that Representative Patterson and Takasaki and his wife must be put as far apart as possible.

Discovering that the ambassador was deep in conversation with the woman seated on his right, Mrs. Ogden turned to the churchman who was her left-hand neighbor.

“I am admiring your beautiful china and glass,” he said, finishing his salad with due enjoyment.

“Thank you,” Mrs. Ogden smiled delightfully. She greatly respected the bishop, and his benign manner had a soothing influence on her volatile nature which was restful as well as comforting. “I am glad you like it. This is my first winter in Washington——”

“Mine, too,” interposed the bishop, smiling. “We are both in a sense missionaries—you have come to Washington to teach society how to live—while I have come to teach it how to die.”

A low laugh from Ethel, who had overheard his comment, caused the bishop to turn from his flurried hostess. “And what is Miss Ogden doing?” he asked.

“Teaching also,” she answered.

“The heathen?” and the bishop’s smile was infectious.

“Foreign diplomats,” Ethel looked demurely at her plate. “And Mr. Takasaki is so ungrateful that he is urging me to give up lessons and try writing.”

“Ah, and so increase your sphere of teaching?” The bishop was enjoying himself. “Why not try your hand at writing a tract which would be a ‘best seller’? *That* would be a greater achievement than writing a popular novel.”

“And require greater genius,” laughed Ethel. Her old buoyant spirit had returned since the scene in the drawing room. Her faith in Julian Barclay was not misplaced; his behavior in the face of James Patterson’s charges had proved that. And Patterson’s attack upon his character had not been backed up by Leonard McLane, as he had evidently expected and counted upon. And vindicated in one instance, Barclay would be also cleared of any

implication in the murder of Dwight Tilghman, so ran Ethel's subconscious thoughts, and her heart was filled with a great thanksgiving. Even unemotional Takasaki met her gay smile with a show of responsiveness, and the bishop had eaten his dinner with greater relish for the added spice of her merry mood.

"Genius is so misdirected these days," sighed the bishop. "And few writers make the distinction between strength and coarseness. You can congratulate yourself, Mr. Takasaki," as the Japanese attaché turned to join in their conversation, "that the problem novel has not struck Japan."

Takasaki, when in doubt, always smiled, and the bishop envied him his strong white teeth. "Sanètomo Ito is our great national political writer," he said. "He solves all what you call problems on paper."

"I forgot your problems are mainly political," responded the bishop, concealing a smile. "Ours, alas, embrace the home. What did you say, Mrs. Ogden?" and the bishop turned and gave his full attention to his hostess.

"Sanètomo Ito," Ethel repeated the name thoughtfully. "Is he known in this country, Mr. Takasaki?"

"His writing have been given in English, and I believe are read by the most studious," replied the Japanese. "And he travel here once or twice."

"Has this Mr. Ito any relatives in the United States?" asked Ethel.

Takasaki considered the question before replying. "Many Itos in Nippon, Mees Ogden; and one most high admiral; but I no keep track of family member. You met a Nipponese name Ito?" and Ethel became conscious that his black eyes were boring into her with the intentness of his gaze.

"I have not met him, only seen him," she corrected. "Yoshida Ito."

The Japanese attaché shook his head. "I know Itos, but no Yoshida. You think my wife look well?" and by his manner Ethel knew that the topic of Yoshida Ito was to be taboo between them. She had tried too often to make Japanese discuss matters which they wished avoided, not to know the futility of such proceedings, and she accepted the change of conversation with good grace.

To James Patterson the dinner appeared never ending. He was furiously angry with Julian Barclay and Leonard McLane; but for the latter's extraordinary conduct in the drawing room Julian Barclay would have been exposed and sent about his business. He could not conceive what had induced McLane to shield Barclay—he did McLane the justice to admit that money considerations would not influence him. Perhaps after all he was wrong, and Julian Barclay was the man he pretended to be. Patterson looked at Barclay, who sat on his side of the round table; no, he must be right, he could almost swear to his identity—but McLane? Patterson shook his head in bewilderment. There was nothing for it but to await the answer to his telegram.

“A penny for your thoughts?” said a soft voice at his side, and facing about Patterson smiled at Lois McLane, a happy edition of the Lois Tremaine whose troubled courtship had carried her along the path of crime safely to the altar with the man she worshiped.

“Can you not guess my thoughts?” asked Patterson.

“Well, judging by your glances, I imagine you are wishing you were seated by Ethel Ogden in place of the Japanese,” and Lois laughed mischievously. “It's not very complimentary to me, but——”

“There are extenuating circumstances,” completed Patterson, reddening. He had not realized that his absorption in Ethel was observed by others, and as he seldom took teasing in good part, he hastened to change the conversation. “I cannot cure the Ogdens of inviting Japanese to their house; some day these Japs will bite the hand that feeds them.”

“Did I not see an item in yesterday's paper that Japan would shortly vacate Kiao-Chau, which they took from the Germans?” asked Lois, striving to get away from personalities.

“Oh, yes, that is published periodically,” Patterson crumbled his cracker with impatient fingers. “Japan cares very little to colonize in China; her people cannot compete with other Orientals; here they can live on a few grains of rice a day, while our laborers require a full dinner pail. They will work all day without complaint, and will underbid any laborer in the land.”

“Why don't they seek new lands to conquer?”

“Because the Japanese are not pioneers; their method is to colonize in cultivated land, to insidiously work their way to the top, and to control the local government,” retorted Patterson. “They are doing that daily in Mexico, buying concessions, here, there, and everywhere. It was owing to their influence that our troops were attacked at Carrizal.”

“Really?” Lois looked her surprise, but before she could continue Patterson’s attention was claimed by the woman on his left, and she sat silent, not wishing to break into the discussion which Julian Barclay, on her right, was having with his dinner partner. Lois had not met Barclay before, having accompanied her husband to Atlanta, but what she had heard of him had awakened her interest. She was often guided by first impressions, and she was still debating in her mind whether she liked Barclay or not, when he turned and looked at her.

“Be a good Samaritan, Mrs. McLane,” he said, “and tell me who is sitting next each other on the other side of this centerpiece.”

“I can see only one corner of the table,” Lois craned her head and looked around the bed of roses which formed the centerpiece. “Ethel Ogden is sitting between the bishop, and Mr. Takasaki. Ethel is lovely tonight”—in a burst of enthusiasm. “If I were a man I’d be mad about her.”

“Far be it from me to disagree with your opinion.” Barclay laughed but the look in his eyes won Lois’ sympathy. “I think Miss Ogden—perfection. Have you known her long?”

“Oh, we were chums at boarding school. I am devoted to the whole family. Unfortunately, their income has been curtailed of late years, and Ethel insists on being independent, and as you probably know, gives English lessons and does secretary work.”

“It is greatly to her credit,” agreed Barclay warmly. “In all my travels, Mrs. McLane, I have yet to find a race whose women compare to ours.”

“If such are your sentiments”—Patterson broke rudely into the conversation, and for the first time since their interview in the drawing room, addressed Barclay directly. “Why have you expatriated yourself?”

“You are mistaken. I never renounce what I admire and love,” answered Barclay curtly, and turned back to his dinner partner.

There was a brief silence, which Lois made no attempt to break, and Patterson, too angry to speak, emptied his champagne glass.

“Ogden has an excellent wine cellar,” he commented, putting down his glass. “Ever heard how he made his money?”

“No, except that Ethel once said he held heavy interests in the Pacific shipping trade with the Far East.”

“Humph! Most of the carrying trade between the Pacific Coast and the Orient has been transferred to Japanese steamship lines,” remarked Patterson thoughtfully. “I’m afraid he’ll find he has made a poor investment, unless—Ever been to Guam?”

“Yes. It is a delightful naval station.”

“Quite true, also one of our most strategic points, and not far away, commanding the entrance of Guam, is Jaluit Island, of the Marshall group, which was seized by the Japanese from the Germans. It is strongly fortified, another Gibraltar in fact,” Patterson spoke with growing earnestness. “If we have interests in the Far East, it is time to take steps to safeguard them, or they will vanish in a night.”

“I do recall that when we stopped at Hawaii I was struck by the hundreds of Japanese in Honolulu and its vicinity,” said Lois. “Did I not hear that the Japanese had also taken the Caroline Islands near the Philippines, from the Germans?”

“They have,” grimly.

“But what can the Japs really do to us?” questioned Lois. “They could not hope to conquer this great nation.”

“Their hopes, so far, only include dominion over the Pacific Ocean, and to get that they must fight us. Alaska, with its still unexplored and undeveloped wealth, the Philippines, our trade with China, all will be jeopardized,” Patterson declined more wine. “And Japan’s latest diplomatic move, her treaty with Russia, is giving grave concern to European nations.”

“But Russia has always been our friend,” objected Lois. “She would not befriend Japan against us.”

“We have not one treaty with Russia today,” Patterson spoke impressively. “Japan and Russia hope to work their will in China unmolested.”

“You are too pessimistic,” chided Lois.

“No. Americans jeer and laugh at the idea of war with Japan; so did England and France receive the idea of another great European war—and war came, engineered by mighty Germany. The same spirit of German militarism is abroad in Japan today—and the American nation will only recognize it when all our lines of communication to the Pacific are cut, and the fight is on.”

“Hush!” Lois laid a cautioning hand on his sleeve. “Not so loud, Mr. Patterson, the ambassador is listening, and both Mr. and Mrs. Takasaki understand English.”

“People always stop talking at a dinner at the wrong moment,” grunted Patterson, however lowering his voice. “What is it, Charles?” as the butler stopped at his side.

“A letter for you, sor; came special, sor,” and the butler laid a square envelope at his plate.

“Will you pardon me, Mrs. McLane,” Patterson took up the envelope and slit the flap with his fruit knife. “I asked my secretary to send on anything important, as I am expecting”—as he spoke he jerked at the contents of the envelope, which gave all at once and a photograph, face up, shot into Lois’ lap. Finding but a slippery resting place on her silk gown, it would have continued its flight to the floor, but Barclay’s hand retrieved it.

“Yours?” he asked, handing the photograph to her, and Lois was conscious that his voice sounded strained.

“No, it belongs to Mr. Patterson.” Lois turned to hand it to its owner, and was startled by his expression. Patterson took the photograph mechanically.

“Smell anything?” he demanded, and Lois drew in a long breath.

“Good heavens!” she ejaculated. “It is——”

“Fire!”

Wheeling spasmodically about, Julian Barclay caught a glimpse of Yoshida Ito's yellow face peering out from inside the portières, and again the cry rang out:

“Fire!”

CHAPTER XV

THE FATAL REQUEST

THERE was a breathless pause as host and guests alike sat stupefied. In the pantry frightened servants echoed the cry of "Fire," while from outside came the hoarse shouts of men, the clang of fire bells, the rush and roar of the arriving engines. Swiftly the spell in the dining room was broken, and bounding to their feet men and women crowded about Ogden.

"Who closed these folding doors?" stormed Ogden, tearing apart the portières and tugging at the doors concealed behind them. "My God!" He fell back as a volume of smoke drifted through the hall door thrown open by one of the guests. The electric lights in the hall beyond resembled glow worms in the smoky atmosphere, and the men hesitated for a second.

"The smoke is coming downward," cried Barclay. "The fire must be upstairs," and darting across the broad hall he made for the front door, on which blows resounded, and tore it open. In raced firemen, axes and chemical apparatus in hand.

"Fire's on the second floor," shouted the foremost fireman. "Get everyone out on the sidewalk," catching sight of the frightened women streaming into the hall.

"Don't stop for your wraps," warned Patterson, grasping Mrs. Ogden and Ethel, and hurrying them out of doors. McLane, one hand on Lois, and the other steering little Madame Takasaki, was at their heels. Professor Norcross followed with the bishop's wife, while the bishop, no show of haste in his calm demeanor, assisted the ambassador's wife and two other guests to pilot their way down the front steps. Takasaki, seeing his wife and the other women were safely in the street, turned back and stood with Walter Ogden in the hall.

Outside the house ladders had been placed and a stream of water turned on the windows through which flames were bursting.

“Oh! Oh!” Mrs. Ogden clutched Ethel. “I do believe the fire’s in the den.”



“Go back, Ethel,” Patterson commanded. “The fire is spreading and you may be injured.”

“The den!” Ethel studied the position of the flaming windows, and in the glare recognized the outlines of familiar furniture inside the burning room. With a smothered exclamation she started toward the front door, but at the bottom step Professor Norcross laid a detaining hand on her scarf,

which floated loose as she continued upward. James Patterson caught up to her in the hall.

“Go back, Ethel,” he commanded. “The fire is spreading and you may be injured.”

“I won’t,” she panted. “Let go, Jim. There is something I must get out of the top drawer of my typewriting desk; it stands by the door leading into Walter Ogden’s bedroom. The fire is in the other part of the room—I can reach my desk.”

“I’ll go for you,” noting her agonized expression. “What is it you want out of your desk?”

“My miniature and a ring”—she blurted out, and would have followed Patterson, but a strong hand pushed her back from the staircase.

“Please leave, lady,” exclaimed one of the firemen, and Ethel turning reluctantly, protestingly away, saw Patterson bounding up the staircase. A second more and he was lost to sight in the dense smoke.

On the third floor Julian Barclay hurried swiftly from room to room peering into closets, under beds, then upward, through the servants’ quarters, to the attic, but his search was unavailing. Yoshida Ito had vanished into thin air. Reluctantly he gave up his search, and paused on the landing of the third floor stairs to glance out of the window. In the lurid glare of firelight he made out the group of shivering women standing well back in the crowd which grows, Aladdin-like, at the cry of “Fire.” From the dense volume of smoke rolling through the hall beneath, and the added glare in the street, he judged the firemen had not gained control as quickly as he had imagined they would when first starting on his search for the Japanese.

Barclay continued his way down the staircase with added haste; he had no desire to be caught in a fire trap. The dense smoke ahead drifted aside for a moment, and he caught sight of a man advancing half-crouching near the still lighted electric hall lamp. Barclay crooked his finger on the trigger of his revolver and measured the distance.

Outside in the street the imperative clang, clang of the gong on a speeding automobile scattered the ever increasing crowd. The fire chief had arrived. His appearance in the house was hailed by the crack of a shot,

followed by another and another. The firemen in the second story gave back. Bullets were whistling uncomfortably near.

“Good God!” Walter Ogden, upstairs with the firemen, turned a ghastly face to the shadowy form nearest him. “The boxes of cartridges which I kept in my desk have ignited.”

Mrs. Ogden, shivering partly from cold and partly from shock and excitement, stood with her guests, begging each fireman who approached within hailing distance, to get her guests’ wraps from the cloak room, and finally the bishop and the ambassador brought out a heap of costly cloaks and coats and passed them indiscriminately among the women who were only too thankful to cover their bare shoulders and hide their handsome jewelry from the curious glances of the crowd.

Firemen had gained admission to the house next door to the Ogdens’ and from windows overlooking the fire, poured a stream of water into the burning rooms, for the fire had spread to Mrs. Ogden’s bedroom. Bullets zipping by their ears, caused the firemen to drop their hose in consternation, and the men on the ladders likewise ducked out of range.

“Are we to burn up entirely?” groaned Mrs. Ogden. “My beautiful things. Oh, oh, what’s that!” and she clutched Ethel despairingly. “Are they shooting each other in the house?”

Ethel listened to the fusillade in horrified silence, while straining her eyes to catch a glimpse of James Patterson among the men clustered in the Ogdens’ entrance hall. He had had plenty of time to secure her miniature and ring and return. Fear chilled her at the thought that he might have been overcome by the smoke. Why, why had she let him go? She should have recollected that her desk was of metal and supposedly fireproof. Mrs. Ogden’s grasp on her arm tightened, and Ethel turned to remonstrate, but she found her cousin in no condition to listen to reason or release her clasp.

“Ethel, do tell me what is going on?” she implored distractedly. “There, listen!”

“It sounds like cartridges exploding,” gasped Ethel.

“Cartridges?” Mrs. Ogden forgot everything in sudden fury. “Walter left two boxes of them in his desk—oh, the rascal—the fool!”

“Hush!” Professor Norcross shook her roughly. “I came out to tell you, Mrs. Ogden, that the fire is almost under control, and as soon as the cartridges are all discharged the firemen will get into the room. There, they are resuming work now.”

The professor proved a true prophet. With the arrival of another engine and the additional force of water, the firemen stamped out the last spark of fire. Mrs. Ogden and her guests again gathered in her drawing room, and the crowded street was once more empty, the spectators drifting away in the wake of the departing firemen, a few of whom remained behind.

The rooms and corridors of the house were still filled with smoke, when Leonard McLane, his eyes smarting, stopped to fling open first one window and then another as he made his way through the house. Turning from the back stairs into the front corridor on the second floor he stopped abruptly at sight of Julian Barclay bending over a figure stretched on the floor.

Barclay lifted a relieved face as McLane touched him on the shoulder.

“I’ve just found James Patterson,” he said. “I fear he is overcome by the smoke,” rising to make place for the surgeon. “Is the fire out?”

McLane did not answer at once; his skillful fingers making swift examination, and his expression grew grimmer and more grim.

“The fire is out,” he announced, in answer to Barclay’s repeated question, and slipping one hand under the recumbent man turned him over. “And Jim Patterson is dead,” he added, pointing to a small hole through which blood was ebbing slowly.

Midnight was long past when Julian Barclay reached his bedroom. He carefully locked the door behind him and drew down the blinds to his windows, then stopped before his mirror, but a glimpse of his face caused him to draw back and glance over his shoulder. Pshaw! the occurrences of the night were getting on his nerves. Other men had looked white and weary; Ethel, even, had fainted away at news of James Patterson’s tragic death, and Walter Ogden had groaned in bitter horror at the havoc wrought by his careless keeping of the cartridges in his den.

Before undressing Barclay took from his trousers' pocket a small chamois-covered miniature and uncovering it, gazed long and thoughtfully at the painted likeness of Ethel Ogden. Suddenly, with a gesture almost of horror, he laid the portrait on the dressing table, and again inserting his hand in his pocket, drew out a crumpled piece of cardboard and applied a match to it. The match caught, and the cardboard twisted and turned like some living thing writhing in pain, disclosing amidst the flames the lower half of a torn photograph.

CHAPTER XVI

THE INQUEST

AT the sound of advancing footsteps Mrs. Ogden dropped her newspaper with a faint scream. Her nervous system had not recovered from the shock of the night before—fire and death had robbed her of her customary air of repose.

“Oh, it’s you, my dear,” she exclaimed in a relieved tone, as Lois McLane took the chair opposite her. “And how did you leave Ethel?”

“Much more composed; she will be down directly.”

“Getting up? Mrs. McLane, how could you permit it?” and Mrs. Ogden sat bolt upright and gazed in disapproval at her guest.

“It wasn’t a case of my permitting—Ethel had made up her mind to dress and come down stairs, and nothing I could say would dissuade her,” responded Lois. She glanced curiously about the drawing room. “Did the water do much damage?”

“Did it!” Mrs. Ogden’s intonation was eloquent, but she was too intent on gathering information to be switched to another topic, no matter how interesting it might be. “Do pull your chair closer, Mrs. McLane; I never can talk to people at arms’ length. Tell me, don’t you think Ethel is terribly broken up over Jim Patterson’s death?”

“I think it was a frightful shock to her,” admitted Lois. “It—it seemed so unnecessary.”

Mrs. Ogden squirmed in her chair. “My husband walked the floor all night, completely cut up over the result of his carelessness in leaving the cartridges in his desk; but for that James Patterson would be alive today.”

“I think Mr. Ogden takes too much of the blame on his shoulders,” said Lois gently. “He was not responsible for the fire. By the way, have you learned how it started?”

“The fire inspector and the insurance representative attributed it to the crossed electric wires,” Mrs. Ogden moved restlessly. “But they are to make a more thorough investigation. Will you have some tea?” stretching out her hand toward the bell.

“No, thanks,” Lois spoke somewhat hastily. “Dr. McLane will be here very soon to see Ethel, and I must not keep him waiting when he is ready to leave.”

“Your husband was so kind last night,” Mrs. Ogden spoke with genuine feeling. “I don’t know how I could have gotten on without him. He attended to everything, even to interviewing the reporters, and I’m sure that’s why they are not more sensational in their accounts of the fire and poor Jim Patterson’s death.”

“Leonard was glad to do anything that he could for you, Mrs. Ogden,” leaning forward Lois took the older woman’s hand and stroked it gently. Shock and anxiety had left their mark on Mrs. Ogden; her lips quivered and she seized Lois’ kind hand in a spasmodic grip.

“If you only knew all I’ve been through,” she wailed. “Ethel unconscious for so long, and Jim lying there dead. They wouldn’t take him up and place him respectably in bed, but must needs leave him lying on the hall floor like something worthless, until the coroner came. And then they took him to the Morgue—of all places, when he had a large apartment at the Dresden!”

“But it is the law,” Lois whitened; the present tragedy brought back memories of another in which she had been one of the principal figures not so long since. “In case of sudden or violent death, the autopsy has to be held at the Morgue.”

“The autopsy!” gasped Mrs. Ogden, horror-stricken. “You don’t mean they are going to hold an autopsy?”

“So my husband said,” Lois spoke more guardedly. “He asked me to say nothing to Ethel, thinking it might upset her, so please don’t mention it.”

“No, of course not,” Mrs. Ogden looked sharply at her visitor. “I believe Ethel was more deeply in love with Jim Patterson than she realized, and now that it is too late she is grieving her heart out.”

Lois did not reply at once. "I think Ethel is shocked beyond measure, and grieved also," she interpolated. "But I do not think that she entertained any warmer feeling for Jim than friendship."

"But her emotion on hearing of his death—her unconsciousness—" persisted Mrs. Ogden. "Did she not speak of Jim to you today?"

Lois checked a smile; she had a feeling that Mrs. Ogden had been approaching that question ever since her entrance, and now it was out.

"She mentioned him, yes; and with deep sorrow and regret for his death—but that was all," she said calmly.

"Ethel is a queer girl," mused Mrs. Ogden. "I cannot quite make her out; apparently with all her *bonhomie*, she is at bottom reserved. She never talks of herself, her ills, or her emotions."

"She has one of the most loyal, lovable natures I've ever known," exclaimed Lois warmly. "When Ethel gives her friendship, her affection is given whole-heartedly, loyally. I hope sincerely that Jim Patterson was nothing more than a friend, for if not, Ethel will never recover from the shock of his tragic death."

Mrs. Ogden stirred uneasily. "I fear Ethel must dree her weird," she muttered. "Was anything said of Julian Barclay this afternoon?"

"No." It was Lois' turn to study her companion. "I have heard that he is very much in love with Ethel," she paused, but Mrs. Ogden made no comment, and she continued somewhat hurriedly. "Is Mr. Barclay remaining here through the winter?"

"He is not." Mrs. Ogden's decided tone spoke volumes. "Walter, my husband, is very much displeased with him; we do not approve"—she broke off nervously.

"Then you do not think him a suitable match for Ethel?"

"Frankly, I don't, and I never dreamed"—Mrs. Ogden stopped abruptly. "Julian's behavior at times has been a source of grave anxiety to his relations."

"I confess I was favorably impressed with Mr. Barclay last night," Lois remarked. "I am sorry to learn he is eccentric."

“Eccentric is hardly the word,” Mrs. Ogden’s conscience somewhat reproached her for so openly criticizing a relative and a guest in her house, but Julian Barclay was becoming an obsession, and she could not stop talking about him altogether. “He is a bit queer—morbid—and he is most decidedly not the man to make Ethel happy. Their—their temperaments are too much alike for perfect harmony.”

What comment, if any, Lois would have made, remained unspoken, as Walter Ogden and Professor Norcross joined them.

“Walter, do ring for tea!” exclaimed Mrs. Ogden, after the men had greeted Lois. “Charles should have brought it before now.”

“We have no time for tea,” replied her husband brusquely. “We are all summoned to the inquest on poor Patterson.”

“What? Now?” and his wife looked at him aghast.

“Yes, immediately; so get your wraps. We have to go at once to the Morgue. Where’s Ethel?”

“Here,” and turning they beheld Ethel standing in the doorway. She was but a wraith of the beautiful girl whose joyous spirit had added so materially to the enjoyment of the bishop at the dinner the night before. “Do I understand we are to go to the Morgue, Cousin Walter?”

“Yes.” Ogden’s rough tone softened. He was very fond of Ethel. “We won’t be there very long.”

“But why should I go?” asked Ethel.

“Well, eh, the coroner wishes to know why Patterson was so fool-hardy as to approach the den when the cartridges were exploding, and there was some talk of——”

“My having sent him into the den?” Ethel turned pale, and Lois, observing her emotion, slipped her arm about her waist. “I did,” Ethel paused to control her voice. “And I shall never cease to reproach myself—I virtually killed James Patterson.”

“My dear Miss Ogden,” Professor Norcross turned a shocked face in her direction. “You must not permit yourself to indulge in such morbid fancies.”

“It was more my fault than yours, Ethel,” added Ogden. “I left the cartridges in my desk, and it was only a merciful Providence that others were not killed. Now, don’t waste further time, run and get your wraps.”

Ethel turned to Lois and the appeal in her eyes was unmistakable. “Won’t you come with me?” she whispered.

“I will,” Lois’ hearty response brought comfort to Ethel. “And we can go down in my electric, if you don’t object, Mrs. Ogden?”

“Not at all, not at all,” Mrs. Ogden, having summoned her maid a few seconds before, was bustling into the wraps brought her. “Ethel, wrap yourself up warmly. What about your husband?” suddenly recollecting Dr. McLane, and wheeling on Lois. “Will you leave word for him to join you at the Morgue?”

“I think he is already there,” broke in Ogden impatiently. “Now, Jane, don’t keep everyone waiting,” and driving his nervous wife and Professor Norcross ahead of him, Ogden made his noisy way to the street, leaving Ethel and Lois to follow more leisurely.

The speedier touring car of the Ogdens’ brought them and Professor Norcross to the Morgue some moments before Lois’ slower electric brougham put in an appearance, and they waited outside the weather-stained stuccoed building with some impatience. Their arrival, however, was observed from inside the Morgue, and Leonard McLane joined them.

“The inquest has commenced,” he said, and Mrs. Ogden wondered at his constrained manner. “Your name has been called as a witness, Mr. Ogden; I think you had better go in at once.”

“What about Ethel and Mrs. McLane?” Mrs. Ogden halted on the lower step of the building. “They are coming in your electric.”

“I will wait for them,” volunteered Professor Norcross, and turned back to the cobble-stoned pavement which did duty for a sidewalk. The Ogdens, preceded by Leonard McLane, filed through the hall and into the outer room.

“This room is reserved for witnesses,” observed McLane, pulling forward a chair for Mrs. Ogden, and the men present rose; Ogden recognized among them the fire chief and several of his servants. “Ogden,

this is the Morgue Master,” added McLane, as a heavily built man stepped toward them.

“Mr. Walter Ogden?” inquired the latter interrogatively. “Then, sir, kindly step into the court room with me.” He turned back at the door to address the others. “Just sit down, all of you, and your names will be called in due time,” and the door closed behind him.

Taking but a cursory glance about the court room, Ogden followed the Morgue Master to the witness stand, pausing a moment at the base of the platform to permit the first witness to descend. Ogden, while waiting for the Morgue Master to administer the oath to “Tell the truth, the whole truth, and nothing but the truth,” gazed curiously at the six men composing the jury, who sat upright or lolled back in their chairs, as each man’s nature inclined him to take his brief publicity.

The Morgue Master’s authoritative voice brought Ogden’s attention back to him with a jump, and after taking the oath he turned to face Coroner Penfield.

“Your full name?” demanded the coroner.

“Walter Ogden.”

“How long have you been a resident of Washington?”

“Five months.”

“Have you lived here before this winter, Mr. Ogden?”

“I have never rented a house here before this winter,” answered Ogden. “But I have made trips to Washington at different seasons for at least ten years.”

“Who is the owner of the house you rent?”

“Professor Richard Norcross, the naturalist.”

“He is visiting you?”

“Yes.”

“Was the house in good condition when you took it?”

“Oh, yes, in excellent condition.”

“No trouble with defective flues or smoking chimneys?”

“None.”

“Have you any idea, Mr. Ogden, how the fire started in your den?”

“Not the faintest,” replied Ogden frankly. “The fire chief and insurance inspector seemed to think it came from crossed electric wires.”

Coroner Penfield frowned. “Their testimony will be taken later; kindly restrict your replies to your own opinions. When did you first discover the fire?”

“While at dinner,” Ogden’s reply was curt, he did not relish rebukes.

“Were you dining alone?”

“No, my wife and I were giving a dinner.”

“Mention the names of your guests,” directed the coroner, and he glanced down a list, checking off each person as Ogden enumerated them. Then he examined a rough drawing of the Ogden house. “Why was it that you did not discover the fire until it had gained such headway?”

“Because the folding doors leading into the hall and also into the drawing room, were closed.”

“Would you have detected the fire more quickly if the doors had been open?”

“I think so; the smell of smoke would have warned us.”

“Is it your custom to keep the folding doors closed while you are in the dining room?”

“No, it is not.”

“Could they have been closed without your knowledge, Mr. Ogden?”

Ogden pondered before answering. “I believe so; heavy portières were pulled across the doorways, and under cover of the noise occasioned by our talking and the rattle of dishes, the folding doors could have been pushed together without attracting my attention, or being seen by others. But I cannot imagine why a servant should do it, unless a guest complained of being cold.”

“With the portières drawn?”

“Yes. There might be draughts even then, and ladies in evening dress are sometimes sensitive to cold.” Ogden’s voice was dry, and Penfield frowned.

“What were cartridges doing in your den, Mr. Ogden?”

“I put two boxes in my desk drawer on my return from a hunting trip in Maine last fall.”

“When you found the den was on fire, did you remember the cartridges?”

“No. I had completely forgotten them, and only thought of them again when the fire reached the boxes and exploded them.”

“Who first discovered the fire?”

“One of the servants, I believe. Some one called ‘Fire,’ and we all dashed into the hall,” answered Ogden vaguely. “I really don’t know who turned in the fire alarm.”

Penfield consulted a memorandum. “When did you last see Mr. James Patterson alive?” he asked.

“Helping my wife and my cousin, Miss Ethel Ogden, to cross the lower hall, which was filled with smoke, to reach the sidewalk,” answered Ogden thoughtfully. “I cannot recall seeing him again. I accompanied the firemen upstairs, and Patterson may have brushed by me on the staircase; but if so, I did not recognize him in the smoke and general excitement.”

“I think that is all just now, Mr. Ogden,” Penfield laid down his memorandum, and turned to the Morgue Master. “Ask Professor Norcross to step here.”

Ogden rose with alacrity to give his seat to the professor and went hastily from the room, conscious that reporters were eyeing him apparently eager for an interview. But he did not loiter in closing the door between himself and the news-gatherers, and the reporters turned their eyes back to Professor Norcross.

“Washington is my legal residence,” the professor said a few minutes later after answering the coroner’s question as to his age, occupation, and

length of residence in Washington. "I spend a few weeks of every year here, and own the house now leased to Mr. Walter Ogden."

"Have you, or your other tenants, ever had a fire in your house?"

"Once, a number of years ago, a chimney caught fire, but since then I have had a new system of heating installed, and no more trouble has arisen."

"Is your house covered by fire insurance, Professor?"

"It is."

Penfield consulted the deputy coroner before asking another question, and Norcross spent his time inspecting the spectators who lounged about the court room. He wondered if they had come only to hear the evidence in the inquest on James Patterson, or if they were the *habitués* of the place. He had heard of the morbidly curious who haunted the scenes of crime and the Morgue, and the dress and deportment of the majority of the people in the room indicated they were from the poorer classes. A few women sat in one corner, and Norcross was surprised to find Lois McLane occupying a chair near them. She was evidently not to be called as a witness.

"Professor Norcross," the coroner turned back to the witness chair. "Did you hear the closing of the folding doors to the dining room?"

Norcross smiled. "I did not hear them being shut, but they were closed by the butler at my direction shortly after we entered the dining room," he said. "Madame Takasaki, wife of the Japanese attaché, complained of being cold, and as she sat in a direct draft with the opening and closing of the pantry door, I had the folding doors closed at once."

"When did you last see Mr. James Patterson?"

"At the front door of the Ogden house as he stood talking with Miss Ethel Ogden."

"What transpired then?" asked the coroner, as Norcross paused.

"Mr. Patterson persuaded Miss Ogden not to enter the house, and then disappeared inside," answered Norcross. "After seeing Miss Ogden join her cousin, I also went into the house, hoping to be of some assistance to Mr. Ogden."

“And that was the last you saw of Mr. Patterson?” persisted the coroner.

“Yes. Mr. Takasaki, the Japanese attaché, stopped me on the staircase to ask for his wife, and when I reached the second story Mr. Patterson was nowhere in sight.”

“You are excused, Professor,” said Penfield, and Norcross departed.

CHAPTER XVII

THE CORONER ASKS QUESTIONS

THE next to occupy the witness chair was the fire chief. He answered briefly the questions put to him, and Lois McLane, beginning to feel the closeness of the atmosphere, longed for his departure. She had promised Ethel to stay and take her home, and the Morgue Master had assured her that Ethel would probably be called to the stand after the fire chief had given his testimony.

“You think then, that the fire was started by defective electric wires?” asked Penfield.

“I do.”

“Was much damage done?”

“The walls and floors were badly damaged, while the rugs, curtains, and several pieces of furniture were totally destroyed.”

“What caused the dense smoke, of which Mr. Ogden and other witnesses speak, if the fire was, as you testify, confined to a comparatively small space?” inquired Coroner Penfield.

“The fire had apparently smoldered in the walls of the room, and on its bursting out, ignited a davenport on which were numerous pillows; all the chairs in the room were tufted, and when they caught as well as the velvet hangings, it added to the density of the smoke. But for the discharge of two boxes of cartridges, my men could have put out the fire much more quickly.”

“Did these cartridges go off in only one direction, Chief?”

“No; on the contrary they scattered in every direction, and I found bullet holes even in the house next door to the Ogdens’. In several instances my men’s helmets were pierced by them.”

“What caliber were the bullets, Chief?”

“Thirty-eight—for use in rifles,” as he spoke, the fire chief pulled a handful of brass shells and bullets from his pocket. “I picked these up after the fire was out, and took the bullets out of the walls.”

“Did the bullets penetrate through the walls to the hall beyond?”

“No; but the two doors to the den were open, and the bullets also went through the windows, and that is the way they reached the next house.”

“Did you see Mr. James Patterson alive when you entered the Ogden residence?” asked the coroner, handing the brass shells and bullets to the foreman of the jury.

“No; I only reached the house a few seconds before the igniting of the cartridges, and Mr. Patterson was found in the lower end of the hall, toward the back stairs.”

“Did you see the position of Mr. Patterson’s body?”

“Yes. Dr. McLane sent for me at once on finding the body.”

The coroner toyed for a second with his pencil, then tossed it on the high desk before which he was sitting. “Had the body been moved?” he asked.

“Dr. McLane told me that it had not.”

“In your opinion, Chief, could a bullet from the cartridges in the burning room have reached Mr. Patterson when standing over the spot where his body was later found lying?”

The coroner’s question electrified Lois McLane, as well as the others in the room. What did he mean to imply by his question? The fire chief was some seconds in answering.

“I carefully measured the distance.” As he spoke the fire chief reached over and took up a pad and pencil from the coroner’s desk. “Here,” he said, drawing a rough outline of the hall and rooms opening from it. “Mr. Patterson must have been standing at this point when shot, judging from where his body was found. The hall curves just at the point where the two doors, leading from Mr. Walter Ogden’s room and the den open into it, and on the opposite side, but a little further down the hall, is a bullet proof safe.

The bullet evidently struck the safe, ricocheted down the hall to where Mr. Patterson was standing and penetrated his back."

"Were there any marks on the safe, Chief?"

"Yes, quite distinct marks where the bullet struck."

At the answer Lois drew a long breath of relief; her too active imagination had attributed unnecessary meaning to the coroner's first question; and she listened with abating interest to the few questions Coroner Penfield asked the fire chief before dismissing him. The latter was just leaving the platform when Penfield called him back.

"One moment," he exclaimed. "Was any piece of furniture left intact in the burning room?"

"A desk between the two doors leading to the hall and Ogden's bedroom, was badly scorched, but being of metal was not seriously damaged. The fire apparently had just gotten to it a few minutes before my men entered."

"How about Mr. Ogden's desk in which he kept his boxes of cartridges?"

"Oh, that was directly in the line of fire, and was burned to a crisp; nothing was left of it but a heap of smoldering ashes."

The coroner dropped his pencil, which he had picked up to scribble a hasty note, and nodded to the fire chief.

"I have finished, thank you," and as the man stepped down, he spoke to the Morgue Master. "Tell Charles Whelan, the Ogden butler, to step here," and Lois McLane sank back in her chair in disappointment; apparently she would have to remain indefinitely at the Morgue.

That Charles did not enjoy being a witness was plain to be seen from his demeanor, and Lois pitied the man as he sat on the extreme edge of his chair, his hands playing nervously with his hat. His voice, as the Morgue Master administered the oath, could scarcely be heard two feet away, and he was cautioned to speak louder.

"What is your full name?" inquired Penfield, trying by his reassuring manner to put the servant at ease.

“Charles Wilson Whelan, sor, thank you, sor.”

“Occupation?”

“A butler, sor.”

“And have you lived long with Mr. and Mrs. Ogden, Charles?”

“Since October, sor.” Charles fumbled in one of his pockets and produced a number of soiled papers. “Here’s me references, sor.”

“Thanks, Charles, but I don’t require them,” said the coroner kindly.

Charles looked blank. “Sure, sor, I thought you was inquiren’ into me character, sor.”

“No, no, Charles; we just want you to tell us what you know about the fire at the Ogden’s last night.”

“The fire, is it?” Charles brightened. “Sure, I know nothin’ about it—never dhreamed of such an awful thing until I heard a voice call ‘Fire,’ and I bolted into the pantry to warn the other servants who were there and below stairs.”

“Which of the servants gave the warning of fire?”

“None of ’em, sor; they was all in the pantry or below stairs.”

“Couldn’t you smell smoke in your pantry, Charles?”

“No, sor,” and seeing the coroner’s dubious expression, the butler added hastily, “Sure, our cook had burned the cream sauce, and the smell of that just filled the pantry.”

“How many servants, besides yourself, does Mr. Ogden employ?”

“The cook, the chambermaid, Mrs. Ogden’s maid, the parlor maid, the furnace man, and meself,” Charles checked them off on his fingers. “But Mrs. Ogden fired the parlor maid, Rose, yesterday mornin,’ and there was three extra help for the dinner, Emma, the crack cook, and the waiters from Rauscher’s. That’s all, sor.”

“I see.” The coroner laid the list of names on his desk. “Where do you keep the silver, Charles?”

“Down in the dining room in the daytime, but I takes it upstairs every night and puts it in the safe just at the end of the hall.” The butler paused and stared doubtfully at the jury, then coming to a sudden decision, he turned back to the coroner. “Sure, there was a burglar at the Ogdens’ the night before the fire.”

“A burglar?” The coroner’s interest quickened. “Did he steal anything?”

“No, sor; Mr. Julian Barclay scared him off before he had time to.”

“When did you last see Mr. Patterson alive, Charles?”

“Whin all the guests piled out of the dining room at the call of ‘Fire’.”

“And that was the last time?” Charles nodded vigorously. “Well, I think that is all; much obliged, Charles,” and the butler, much gratified by the coroner’s manner, descended hastily from the platform and slipped from the room.

The next witnesses, heard in rapid succession, were the Ogdens’ other servants; each corroborated Charles’ statement that they were either in the pantry or in the kitchen, and had not realized the house was on fire until Charles had called to them; they also stated that the smell of scorched cream on the kitchen range had probably concealed any smell of burning which might have drifted into the basement. As the last servant left the witness chair, the coroner called to the Morgue Master.

“Ask Miss Ethel Ogden to step here,” he directed, and Lois McLane looked eagerly toward the door as it opened and Ethel walked in. The coroner met her at the foot of the platform and assisted her to the witness chair.

In spite of her white face and wildly beating heart, Ethel was outwardly composed, and her clear voice could be heard at the far end of the room as she took the oath and answered the preliminary questions put to her by the coroner.

“Can you tell me, Miss Ogden,” began Penfield, after a brief silence, “who among the guests at the dinner last night first called ‘Fire’?”

Ethel shook her head. “The voice seemed to come from the direction of the drawing room.”

“Could you recognize it?”

“N-no; it was too hoarse, too discordant to be recognizable.”

“Who sat nearest the drawing room entrance?”

Ethel considered a moment. “I believe Mrs. Leonard McLane and Mr. Julian Barclay sat directly in front of the drawing room doors, but a huge centerpiece of flowers prevented my seeing that part of the table.”

The coroner turned in his chair and faced her squarely. “When did you last see Mr. James Patterson alive?” he asked.

“As he went up the staircase to the second floor,” Ethel’s voice quivered, and her eyes filled with tears. Jim Patterson had, through his unfortunately jealous disposition forfeited her friendship, but he had met his death bravely, while endeavoring to carry out her last request, and his memory should be sacred.

“I have been told that it was at your request that Mr. Patterson attempted to enter the burning room.” Coroner Penfield paused, then asked impressively, “Is that so?”

“Yes. And I bitterly regret—” she choked and broke down.

“I understand,” said Penfield sympathetically, and waited considerately for her to regain her composure. “And what did you ask Mr. Patterson to procure for you from the burning room?” He waited an appreciable moment for a reply, and not getting it, repeated his question more emphatically.

“I asked him to get something out of my desk in the den,” said Ethel at last, and both Coroner Penfield and Lois McLane took silent note of her unwilling almost sullen tone. “I could see from across the street that the fire seemed to be raging about the front of the room and judged that my desk was not in the direct line of fire. I started into the house, intending to go upstairs myself, but Mr. Patterson stopped me at the front door and—and—went instead. Oh, I wish he hadn’t,” she added. “I shall always reproach myself.”

“Miss Ogden,” Penfield touched her sympathetically on her arm to attract her attention from her bitter thoughts, “was Mr. Patterson successful —?”

“Successful?” she echoed, uncomprehendingly. “Why, he was killed.”

“Successful in procuring what you sent him for, I mean,” explained Penfield hurriedly.

“I found one of the articles I asked him to bring me in the desk this morning; the other was gone.”

“And you infer—?” persisted the coroner, as Ethel stopped.

“That Mr. Patterson picked up one article and, perhaps driven back by advancing flames, had not time to find the other.”

“What were these articles?”

Ethel stiffened at the question. It was the one she dreaded. Was her secret to be laid bare? Was Julian Barclay to know that she valued his ring and his miniature of her at so high a price that she had sent a man to his death to get them for her? So open a confession of her passionate attachment to him stung her proud and sensitive nature to the quick.

Coroner Penfield gave her no time to consider her answer.

“I must ask you to reply promptly,” he said brusquely, glancing significantly at the wall clock. “You are unnecessarily wasting the time of the court. Quickly now, what were these articles?”

“A ring and a miniature,” she answered confusedly.

“And which article did Mr. Patterson find?”

“The miniature, as the ring was still in the desk drawer.”

“Of whom was the miniature?”

“Of myself,” replied Ethel faintly. She did not look at Lois, and missed her sudden start and low-toned ejaculation.

“Have you recovered the miniature from among Mr. Patterson’s effects?” asked the coroner.

“Not yet; I—I fainted on hearing of Mr. Patterson’s death, and when I felt equal to making inquiries, I was told that Dr. McLane had turned over everything found in Mr. Patterson’s possession to the police. I have not seen Dr. McLane since learning this.”

“I see.” Coroner Penfield contemplated her thoughtfully. The delicate, refined beauty of her young face, her trim figure and stylish clothes all possessed unconscious appeal, and Penfield, seeing her effort at forced composure, altered his plans.

“I will not detain you farther,” he announced. “Look out for that bottom step,” and Ethel thankfully accepted his assistance, conscious that her knees were trembling under her. But her ordeal in the witness chair had been briefer than she had dared to hope, and a ghost of a smile touched her lips at sight of Lois McLane standing by the doorway.

The two friends left the court room together, but on the other side of the door Ethel halted involuntarily, for at their entrance Julian Barclay had turned from moody contemplation of the few pictures the room boasted, and approached them. He shook hands with Mrs. McLane, his gaze traveling over her shoulder to Ethel.

As their eyes met, Ethel almost cried out, there was such dumb agonizing appeal in his dark eyes. She leaned impulsively forward, but the words on her parted lips were checked by the entrance of the Morgue Master.

“You are wanted, Mr. Barclay,” he announced.

CHAPTER XVIII

THE UNKNOWN

WITH a muttered apology, which Ethel but half caught, Julian Barclay stepped by them and went immediately into the courtroom. The spectators had thinned out appreciably as the inquest continued, and but a handful of people heard the Morgue Master's slightly hoarse voice administer the oath to Barclay.

"Your full name?" inquired Coroner Penfield as Barclay seated himself in the witness chair.

"Julian Barclay."

"Your occupation?"

Barclay's fingers, which were beating a noiseless tattoo on the side of his chair, suddenly stiffened, but his voice was tranquil as he answered the coroner.

"I write," he said. "And spend most of my time knocking about the world looking for material."

"And your legal residence, Mr. Barclay?"

"I have none; I am not a voter," smiled Barclay. "Sometimes I winter in Cairo, sometimes in China."

"And your reasons for being in Washington this winter?"

"I came to visit my cousin, Mrs. Walter Ogden, and her husband. I have been with them nearly a month now."

There was a momentary silence as Coroner Penfield sorted the papers on his desk, then he turned again to Barclay. "At the dinner last night, Mr. Barclay, were you sitting with your back to the drawing room doors?"

"I was."

"Can you tell us who first gave the warning that the house was on fire?"

“Yes.” Barclay fingered his watch fob, and crossed his legs. “Yes. It was the Japanese, Yoshida Ito.”

Penfield, as well as the jury and the reporters, eyed him in surprise.

“A Japanese?” repeated Penfield. “Was he a guest at the dinner?”

“No. He poked his head through the portières before the drawing room doorway, and shouted ‘Fire.’”

“Is this Yoshida Ito a servant?” asked Penfield, picking up a list of names from among his papers.

“No.”

“Then if he was neither a guest nor a servant, what was he doing in the Ogden house?” demanded the coroner sternly.

“I don’t know,” responded Barclay, his bewilderment written in his expression and gesture. “I found him in the house the night before the fire, and chased him out.”

“Was this Japanese the burglar of whom Charles, the butler, spoke in his testimony?”

“I presume so.”

“Do you think this Ito set fire to the house?”

“Such is my theory,” returned Barclay. “He evidently fired the house with the intention of stealing valuables he could not get the night before.”

The coroner looked incredulous. “If he set the room on fire with any such intention, why should he warn Mr. Ogden and his guests?”

“I’m afraid I can’t answer that,” said Barclay slowly. “But you should recollect that the cleverest criminals are sometimes guilty of inconsistent actions.”

“I am quite aware of that,” acknowledged the coroner dryly. “Have you other evidence to bear out your theory?”

“Only that, on rushing to the portières intending to pass through them into the drawing room, I found the folding doors behind the portières closed and locked.”

“Locked!” echoed Penfield.

“Yes,” impatiently. “The Jap evidently called his warning, locked us in, and secreted himself somewhere, intending to remain hidden until everyone was out of the house—and he could steal at his leisure.”

“With the house on fire?” Penfield concealed a smile behind his hand.

“It does not take long to steal with the coast clear. The fire was on the second floor, remember,” argued Barclay. “He evidently locked the drawing room door to force Ogden and his guests to seek egress from the room by the hall, and thus minimize the risk he ran of being discovered by a chance encounter, which might have occurred had some of the guests fled through the drawing room.”

“It is an ingenious theory,” commented Penfield slowly. “Where were you during the fire?”

“Searching for Ito.”

“And did you find him?”

“No; I could find absolutely no trace of him,” observing Penfield’s expression, Barclay added hastily, “The Jap saw me, saw that I recognized him, and, I believe, gave up his well arranged plan and bolted, escaping unseen in the confusion.”

“That may be so,” Penfield silently contemplated Barclay for a short moment. “Did anyone else see the Jap?” he inquired more briskly.

“I don’t know; they have not spoken of it to me.”

“Why have you not told all this to Mr. Ogden?”

“For two reasons,” Barclay spoke with deliberation. “Mr. Ogden told me he had no time to listen to my theories this morning, and I received notification soon after that I was to testify here this afternoon. I have not seen Mr. Ogden to talk to in the interval.”

“When did you last see Mr. James Patterson alive?” and the repeatedly asked question stirred the jury to greater attention.

“In the rush from the dining room into the hall.”

“What, not again?”

“No,” replied Barclay. “I believe Patterson assisted the ladies in reaching the street, but after opening the front door to admit the firemen, I rushed into the drawing room and finding no sign of Ito there unlocked the dining room door, passed through there, thinking the Jap might be trying to steal the silver, and then rushed upstairs by the back way.”

“Were you the first to find Mr. Patterson’s body?” inquired Penfield.

“Yes. I stumbled across it as I was coming down from my fruitless search for Ito.”

“Exactly how was the body lying when you found it?”

“Face down,” answered Barclay, demonstrating with his hands to illustrate his meaning, “in this position. Not recognizing Patterson, I turned him partly over to see who it was, and to render what aid I could. I thought he had been overcome by smoke.”

“You say you did not recognize Patterson at once; was there no light in the hall?”

“Yes, but the hall was filled with smoke and I could not see clearly. Secondly,” added Barclay dryly, “one man in a dress suit is very much like another, and especially when lying on his back.”

“Exactly where did you find Patterson’s body?” Penfield asked, handing Barclay a photograph of the hall. “This photograph was taken this morning.”

Barclay studied it with interest. “I found Patterson right here,” indicating the spot, and Coroner Penfield marked it with his pencil.

“Ah, yes, right under the hall light,” he said. “You say you thought Patterson overcome by the smoke; did you find no trace of blood from the bullet wound in his back?”

“I have already explained that I could see but dimly in the smoke-filled hall,” answered Barclay impatiently. “And Dr. McLane can tell you that the wound bled superficially.”

The coroner turned again to consult the notes made by the deputy coroner. “You state that you found Patterson by stumbling over him. Did you thus accidentally change the position of his body?”

“I think not. Stumble was more a figure of speech. I regret that I stepped on his hand at first, and the feeling of soft flesh giving under my weight caused me to drop on my knees, and I found his body right in front of me.”

“Which way was his head lying?”

“Toward me.”

“Was Patterson holding anything in his hands?” asked Penfield.

“Not a thing.” And Barclay’s gaze did not shift before the coroner’s penetrating look.

“I think that is all,” announced Penfield. “Stay a moment, are you quite sure that none of the other guests saw this Japanese, Yoshida Ito?”

“They did not mention it to me after the fire,” replied Barclay, pausing at the edge of the platform. “It may not be of any consequence, but I saw Ito talking to James Patterson before the dinner in front of the Ogden residence.”

“Indeed?” Penfield regarded Barclay attentively. “And what were Patterson and Ito discussing?”

“I did not overhear their conversation,” Barclay hesitated. “I only mention the meeting because you seemed to want corroboration of my having seen Ito around the Ogden premises, and because——”

“Well?” The interrogation shot from Penfield as Barclay paused.

“Because I was surprised at seeing James Patterson conversing with a Japanese when I was aware of his well-known animosity to that nation.”

“Did the conversation appear to be of a friendly character?”

“Apparently so. Patterson did most of the talking.”

“And what became of the Japanese?”

“He disappeared up the street.”

“Did Patterson speak of meeting the Japanese on entering the house?”

“Not to me,” Barclay moved restlessly. “We talked of other topics.”

“Just one more question,” Penfield rose. “Did Patterson see Ito when the Japanese poked his head inside the portières and shouted, ‘Fire’?”

“He might easily have seen him,” exclaimed Barclay. “The drawing room doorway was directly behind Mrs. Leonard McLane; and Patterson and I sat on either side of her.”

“So that he could have seen the Japanese as readily as you?” Barclay nodded. “Thank you, Mr. Barclay, that is all,” and Barclay hastened from the room. Coroner Penfield leaned over and whispered a few words to the deputy coroner, and they were still talking when the Morgue Master showed Leonard McLane to the witness stand and administered the oath to him.

“Can you tell me, Dr. McLane, if you saw a Japanese, named Yoshida Ito in the Ogden house last night?” inquired Penfield, having previously asked him his name, occupation, and length of residence in Washington.

“I don’t believe I did,” answered McLane thoughtfully. “Great confusion prevailed however, and the smoke was dense at times; men, whom I took to be firemen, passed me on the staircase and in the upper hall, but I cannot swear to their identity.”

“Have you ever heard the name of Yoshida Ito before?”

“Yes,” and after a pause, McLane added, “In connection with the mysterious murder of my cousin, Dwight Tilghman. The inquest at Atlanta brought a verdict of guilty against him for that crime, but so far, the Japanese has escaped arrest.”

“Of course.” Penfield colored with mortification. “Ito’s name struck me as familiar, but I had for the moment forgotten where I had heard it.

“When did you last see James Patterson alive?”

“When he rushed past me in the lower hall. I ran upstairs a few minutes later, but the smoke was so dense the men about me were like shadows, and I could not distinguish one from the other.”

“When did you first hear of James Patterson’s death?”

“On my way through the house to open windows. I came across Julian Barclay bending over a man lying on the floor. He informed me that it was James Patterson, and that he had been overcome by the smoke.”

“Was Mr. Barclay kneeling by the body when you first saw him?”

“Yes.”

“What was he doing?”

McLane shot a questioning look at the coroner’s expressionless face. “Barclay appeared to be testing Patterson’s pulse when I reached him,” he answered.

“How was the body lying?”

“Partly on one side; the head, one hand tossed above it, lay toward the back stairs, and the feet pointed toward the burning room.”

“Were Patterson’s hands open or closed?”

“Open,” McLane stopped, then continued more slowly. “Judging from his position I should say that Patterson had first fallen on his knees and then plunged forward on his face, his hands looked as if he had braced them to break his fall.”

“Mr. Barclay testified that he had turned the body over to see who it was,” put in the coroner quickly.

“So he had, but only partly to one side; Patterson’s legs were still doubled up under him.”

“Was there much blood on Patterson’s clothes and about the floor where he lay?”

“No, very little; the bullet penetrated a vital point under the shoulder blade, and the wound bled internally.”

“How long should you say Patterson lived after being shot?”

“Possibly three minutes; not longer.”

“How soon after the extinguishing of the fire did you find Mr. Barclay bending over Patterson’s body?”

“Almost immediately—say three or four minutes. The whole fire,” added McLane, “from the time of its discovery until it was extinguished, only lasted twenty-five minutes.”

“Quick work,” commented the coroner.

“It would have been extinguished quicker but for the discharge of the cartridges,” explained McLane, “And also it had gained frightful headway

before we awoke to the fact that the house was on fire.”

“Did you find any bullets in the walls, Doctor, and examine them?”

“I pried out several, and also picked up some brass shells.” McLane took them from his pocket and passed them over to the coroner. “They are for rifles, and are thirty-eight caliber.”

“Thanks.” Penfield added them to the ones left by Walter Ogden. “You took charge of Patterson’s body, did you not?”

“I did, until the arrival of the police.”

“Did you turn over Patterson’s personal effects to the police also?”

“I did.”

“Was there a miniature of Miss Ethel Ogden among his belongings?”

“A miniature of Miss Ogden?” repeated McLane, blankly. “No. I gave Detective Mitchell all I found in Patterson’s pockets; a leather wallet, a bunch of keys, gold cigarette case, watch and fob. I feel sure I would have remembered a miniature if it had been with the other things.”

Penfield scribbled a line and passed the folded note to the Morgue Master, then he again addressed Leonard McLane.

“We won’t detain you longer, Doctor,” and hardly waiting for McLane to vacate the chair, he called the deputy coroner to the stand. The preliminaries were quickly gone through with, and then the coroner took the witness.

“You performed the autopsy on James Patterson, did you not?” he asked.

“I did; in the presence of the Morgue Master and Dr. Leonard McLane.”

“And what was the cause of death, Dr. Mayo?”

The deputy coroner held up an anatomical chart and traced a line on it with the reverse end of his pencil.

“James Patterson was struck by a bullet under the shoulder blade which penetrated a vital point, and he died probably within three to five minutes of the time he was struck.”

“You probed for the bullet?”

“I did,” Dr. Mayo laid down the chart and took a small piece of lead from his pocket. “It was shot from a thirty-two revolver.”

The deputy coroner’s words acted as a live wire upon the few reporters present, while men sitting in the back of the court room, crowded forward to vacant front seats, eager curiosity stirring each and all. The deputy coroner’s words promised a sensation, and they did not mean to miss one word of future proceedings.

“You contend then that James Patterson was killed by a bullet from a thirty-two caliber revolver, Doctor Mayo?” asked Penfield.

“I do.”

“Thank you, that is all,” and Mayo returned to his desk, while the Morgue Master took his place in the witness chair and corroborated his testimony.

“Recall Mr. Walter Ogden,” directed Penfield, as the Morgue Master stepped down from the platform, and a second later Ogden was once again in the witness chair.

“Mr. Ogden,” began Penfield. “You testified regarding cartridges for your rifle; why did you not mention that you also kept cartridges to fit a thirty-two caliber revolver in your desk in the den?”

“Because I don’t own a revolver,” declared Ogden. “And I had only thirty-eight caliber rifle cartridges in my desk. I am speaking on oath,” he added, seeing Penfield’s dubious expression.

“Then probably a revolver cartridge got accidentally slipped among your rifle cartridges,” suggested the coroner.

“No, it didn’t,” retorted Ogden. “The two unopened boxes contained thirty-eight caliber rifle cartridges which the shop was late in delivering, and I did not take them to Maine with me. In fact, my wife never untied the bundle but placed it just as it came from the shop in my desk drawer. She is in the next room and can verify my statement.”

“You are excused,” announced Penfield, curtly, and turning, ordered the Morgue Master to bring in Mrs. Ogden.

Although plainly agitated over her first appearance at an inquest, Mrs. Ogden was concise in her answers to the coroner's questions, assuring him that the package of cartridges had never had the seal on the boxes broken, and that they had remained for several months in her husband's desk, forgotten by both until the unfortunate fire of the night before.

Mrs. Ogden was followed on the stand by Detective Mitchell.

"Did Dr. Leonard McLane turn over to you James Patterson's personal effects when you reached the Ogden residence last night?" inquired Penfield.

"He did, sir, and here they are," Mitchell took from his pocket a gold watch and fob, a cigarette case, a bill folder, and a bunch of keys and handed them to the coroner, who examined each article before passing it on to the jury.

"Is this all?" he asked.

"Every single article," declared Mitchell. "Dr. McLane and I searched Mr. Patterson's pockets and that was all we found."

"You are sure a miniature of Miss Ethel Ogden was not among Patterson's belongings?"

"I am positive it was not," stated Mitchell. "I would not have overlooked a miniature."

"Did you examine the vicinity where Patterson's body was found?"

"I did; the body was not moved until after I reached the house."

"Did you see a miniature lying in the hall?"

"I did not," Mitchell stroked his chin thoughtfully. "I don't believe it could have been carried off if Mr. Patterson dropped it when he fell, because Dr. McLane stationed firemen at either end of the hall with instructions to let no one pass until the police arrived. If the miniature was in the hall either he or I would have found it. These two firemen are just outside."

"Wait," as the detective rose—"Did you examine any of the bullets and brass shells which were exploded by the fire?"

“I did, sir; they were all thirty-eight caliber, and for use in a rifle.”

“You found none of thirty-two caliber?”

“None, sir.”

“That is all.” Penfield closed his memorandum book with a snap, and directed the attendance of the first fireman, who testified that no one had been permitted in the hall in the neighborhood of Patterson’s body until it had been removed. He stated that even from the doorway of the den it had been impossible to see to the end of the back hall. His mate testified to the same effect, but on Penfield’s persistent questioning, admitted that he had seen a Japanese, but whether it was down in the front hall, or upstairs near the burning room he could not recollect.

On the dismissal of the last witness Coroner Penfield arose and addressed the jury.

“Evidence goes to prove that James Patterson was killed by a bullet fired from a thirty-two caliber revolver,” he said. “Evidence also goes to prove that all bullets discharged from the cartridges ignited by the fire were of thirty-eight caliber and for use in rifles. A reliable witness has told you of the presence in the Ogden residence of a Japanese, Yoshida Ito, a fugitive from justice, already charged with murder.

“These are the facts,” Penfield paused, then resumed. “But in considering the evidence you must bear in mind that it is within possibility that a thirty-two caliber revolver cartridge was accidentally packed in the box of thirty-eight caliber rifle cartridges.

“It is for you, gentlemen of the jury, to decide if James Patterson was killed by the accidental discharge of a box of thirty-eight caliber rifle cartridges, which might have contained one thirty-two caliber revolver cartridge, or whether he was shot by a Japanese burglar carrying a thirty-two caliber revolver with murderous intent.”

As the coroner ceased speaking the jury filed out of the room, and for a time nothing was heard but the rustle of paper and scratching of pens as the reporters hurriedly arranged their copy. At the end of an hour the jury was back in the room, and signs of past dissensions were indicated in each man’s flushed countenance as they faced the coroner, who had risen at their entrance.

“Gentlemen of the jury,” Penfield’s sharp voice broke the stillness. “What is your verdict?”

“We find,” answered the foreman, and paused to clear his throat. “We find that Representative James Patterson came to his death in the city of Washington, in the residence of Walter Ogden, by a bullet fired from a thirty-two caliber revolver in the hands of a person or persons unknown.”

CHAPTER XIX

UNEXPECTED EVIDENCE

THERE was an uncomfortable silence in the Ogdens' drawing room, which no one cared to break, and Charles, the butler, his equilibrium not fully restored since his appearance at the inquest that afternoon, rattled the cups and saucers on his silver tray as he passed the after-dinner coffee in a way which set Mrs. Ogden's teeth on edge.

"There, there, run along," she exclaimed in an annoyed aside and dropping her usual dignified manner of addressing her servants. "And whatever you do, Charles, *don't* rattle the silver in the dining room. Small noises," she added, addressing Professor Norcross, who sat not far from her, "small noises are more upsetting than big ones."

"On the same principle that human nature can face undaunted the emergencies of life, and succumb to every day trivial annoyances," answered the professor, stirring his coffee. "You must be worn out, Mrs. Ogden, with all that you have been through during the past twenty-four hours."

His sympathetic tone brought tears to her eyes. "Isn't it awful?" she moaned. "The fire was bad enough, but now—murder! Oh, Walter, why did you ever rent so unlucky a house?"

Ogden threw down the magazine he had been glancing over. "A tactless speech, Jane," and he frowned at his wife. "Sorry, Norcross."

"That I own this house is incidental," put in Norcross quickly, as Mrs. Ogden colored in confusion. "You haven't hurt my feelings a bit. I have no association with this house; I merely bought it as an investment, and to keep my legal residence in Washington."

"I spoke hastily," admitted Mrs. Ogden. "It is really we who are unlucky; no," correcting herself, "everything ran smoothly until Julian Barclay appeared, and since his arrival things have gone at sixes and sevens. He seems to attract bad luck——"

“Yes?” Norcross looked at her inquiringly, waiting for her to complete the sentence, but Mrs. Ogden’s active mind had gone off at a tangent and she ruminated in silence, a silence unbroken by her two companions.

“I suppose we are forced to believe that poor James Patterson was murdered,” she stated suddenly. “But I think it was horrid of the jury not to bring in a verdict convicting the Japanese, Ito; and to say Jim was killed by a person, or persons, unknown—why”—drawing herself erect. “We might infer from that that one of us was guilty!”

“We are likely to be pestered by detectives,” grumbled Ogden, rising and moving restlessly about the room. “I’m beginning to think the packers, in putting up those cartridges, slipped one of the thirty-two caliber among the others, and Jim was accidentally shot after all.”

“The element of chance predominates in that theory,” argued Norcross, rising as Ethel Ogden came into the room. “Chance that the revolver cartridge was among the others, chance that Jim Patterson stood exactly where he could be hit by that *one* cartridge. No, Ogden, I would have believed your theory also, if there had been another thirty-two caliber bullet found among those scattered about the premises. As it is——”

“As it is?” echoed Ethel, bending eagerly forward. “You think——”

“The jury found the only verdict it could—an open one——”

“But everything proves the Japanese must be guilty,” retorted Ethel warmly.

“There is no direct evidence against him,” broke in Ogden. “You know”—he stopped abruptly and glanced about the room, then approached his wife and their guests. “It strikes me as singular that Julian Barclay is always the person to see the Jap, Ito, and no one else ever meets him.”

“I have,” announced Ethel calmly.

“You?” Mrs. Ogden nearly dropped her coffee cup. “When?”

“Where did you see him?” demanded Walter Ogden, almost in the same breath.

“The night before last when Ito came to steal the silver,” answered Ethel, and she looked challengingly at Professor Norcross, who was

following each word with careful attention. Could she depend on him to take his proper cue and not divulge too much? “Professor Norcross and I both saw him,” she supplemented, “in his flight from the house.”

“Yes,” added Norcross. “I heard Ito open the pantry window and came down to investigate, met Miss Ogden in the hall, and we watched Ito’s hasty exit.”

“Well, upon my word!” ejaculated Mrs. Ogden. “And I slept peacefully through all the excitement, and this is the first I hear of your share in it, Ethel. I must say you are not very communicative—is she, Julian?” twisting about to include her cousin in the conversation. Barclay, who had loitered in the dining room to smoke his cigar, advanced farther into the room.

“Not very communicative,” he responded absently. “What were you discussing?”

“Cabbages,” retorted Ogden, whose temper was getting out of hand. The fire, Patterson’s tragic death; a sleepless night, unpropitious conditions of the stock market, the developments at the inquest had all had their effect on his surly disposition, and Barclay’s urbane manner proved not only a source of annoyance, but the last straw.

“Cabbages? Very good things in their line, Ogden,” answered Barclay, with unruffled good humor. “And possibly more profitable to cultivate than investing in Pacific trading ships.” He turned to Norcross, apparently oblivious of Ogden’s scowl. “I see by the newspapers that Japan and Russia plan to negotiate the new loan to China. Where will American interests and American invested capital be if the ‘Yankees of the East’ steal a march on us in China?”

Norcross looked grave. “It may mean the closing of the ‘open door’ in the Orient,” he said. “And to think that the United States was the first to open Japan’s eyes to the world——”

“The flesh, and the devil,” supplemented Barclay skeptically. “Japan has learned the bad along with the good, and we are wilfully blind to the situation developing in the Far East.”

“You talk like Patterson,” complained Ogden. “Poor devil!” he added, as an afterthought. “Patterson was as rabid on the Japanese question, Norcross, as your friend, Carter Calhoun.”

Norcross caught but the mention of Calhoun's name. He had intercepted a look exchanged between Ethel Ogden and Julian Barclay—a look on Barclay's part whose meaning bore but one interpretation, and which had brought a touch of color to Ethel's white cheeks. Until that moment Ethel had ignored Barclay's proximity, her eyes and hands fully occupied with a small piece of embroidery. Professor Norcross was conscious of a growing distrust of Julian Barclay—what made him so laggard a lover, for that he worshiped Ethel was plain to the observant professor, unless undesirable entanglements prevented open courtship? Suddenly aware that his stare at Barclay had become a glare of indignation, Norcross roused himself.

“Speaking of Calhoun,” he remarked. “I hear he is on his way to Washington.”

“The devil he is!” Ogden set down his coffee cup with a bang which imperiled the Dresden china and drew a protest from his wife. “With Calhoun around we will never hear the end of the Japanese question.”

“Is Calhoun really coming?” asked Barclay, turning with some abruptness to Norcross. “Or is it simply a rumor?”

The professor's reply was lost as Charles announced from the doorway: “Mr. Takasaki.”

The Japanese attaché appeared almost simultaneously with the announcement of his name, and Mrs. Ogden and her husband greeted him cordially.

“I came to ask for the health of you,” explained Takasaki, bowing low over Ethel's hand. “The fire and the death of the honorable Mr. Patterson was of the most dreadful.”

“Do sit here,” Mrs. Ogden patted the sofa, and Takasaki bowing gravely to Barclay and Professor Norcross, stepped past them and sat down by his hostess. “We feel Mr. Patterson's death awfully; everyone does who knew him.”

“Mr. Patterson was a man of strong friendships,” began Norcross.

“And stronger enemies,” finished Barclay, softly, meeting the professor's penetrating gaze for but a moment.

“True,” agreed Norcross. “The Pattersons have a quarrelsome trait. Patterson’s sister once told me that she always kept alive her brother’s animosities.”

“The hateful woman!” broke in Mrs. Ogden, with more vehemence than the occasion seemed to require, and at her husband’s quick frown she modified her tone. “It’s a wonder Henrietta Patterson didn’t ruin her brother’s political career.”

“You knew Miss Patterson then?” asked Barclay.

“Yes, when visiting Ethel’s mother,” indicating the girl, and Barclay for the first time that evening addressed Ethel directly.

“Did you know Miss Patterson intimately?” he inquired.

“No, only slightly,” Ethel broke off her three-cornered conversation with Takasaki and Walter Ogden. “Miss Patterson was a recluse, and went very little into society. She died in Paris, last winter.”

Takasaki’s twinkling black eyes shot from one to the other, and seizing the slight pause following Ethel’s last remark, he turned to his hostess.

“My wife and I, we so sorry for the break-up of your dinner the most delightful,” he began. “We hope for your honorable presence soon with us.”

Mrs. Ogden beamed with pleasure, and launched into a brisk conversation with Takasaki in which the other men joined. From the depths of her large Empire chair, Ethel listened to Takasaki’s soft monotonous voice, the deeper intonations of Barclay and Norcross, and the heavy bass of Ogden, and a certain quality in their tones and their mannerisms impressed her. Outwardly perfectly friendly in their intercourse, there seemed to the listening girl, an under-current of distrust, of watchfulness totally lacking in past meetings between the four men. If mere suspicion of an alien hand having killed James Patterson could raise a barrier between the polished, educated Japanese gentleman and American men of his own class what would follow in the event of racial war; a war of yellow against white? Ethel caught her breath sharply, and drew her hand across her eyes as if dispelling a horrible vision.

East is East, and West is West,
And never the twain shall meet——

The quotation flashed into her mind, and abruptly she plunged into the conversation, only to discover that Maru Takasaki had been patiently waiting to bid her good night, and a trifle confused by her absent-mindedness, she shook hands with Barclay by mistake, attempted to laugh off her embarrassment, and failed miserably, while acutely conscious of the grasp of his strong, cool fingers.

“Good night,” he said, reluctantly releasing her hand. “Tomorrow it will be ‘good-by.’”

Ethel’s fingers closed spasmodically over Takasaki’s hand. Julian Barclay leaving—and so soon! During the past few hectic days she had imagined every eventuality except that.

“You leave now?” questioned Takasaki, not fully grasping Barclay’s meaning.

“I’ll walk your way for a block or two,” he answered. “Anything I can do for you, Cousin Jane?”

“Yes, stop at the druggist and get me a book of stamps,” Mrs. Ogden followed the two men into the hallway, her face beaming with smiles. Barclay’s abrupt announcement of his departure had not only surprised but delighted her; and inwardly she hoped that Professor Norcross would follow his example. She was tired of entertaining guests, and she wanted the house to herself, the better to arrange new plans for the future. At that moment a trip to Atlantic City was looming large on her mental horizon. In that ocean-swept haven she could quietly wait for the sensation caused by the murder of James Patterson in her own house, to die out, and return in time to enjoy the Easter season in Washington. In fact, such a procedure would be in excellent taste, and the canceling of her many social engagements out of respect to the memory of James Patterson would also be a wise move. The request for stamps was therefore, an outcome of her thoughts; notes must be written at once to friends and acquaintances, and dispatched before morning.

“Come into the library, Ethel,” she called, after seeing the front door close behind Takasaki and Barclay. “Oh, I didn’t know you were just behind me,” lowering her voice.

“I am on my way to bed,” explained Ethel.

“Oh!” Mrs. Ogden’s face fell. Having once jumped to a decision she despised putting off action. But Ethel looked spent and weary, and reluctantly she gave up her plans for the evening. “Run along,” she said. “I wanted you to write letters to Mrs. Van Alstyne and Mrs. Warner canceling my luncheon and dinner engagements, but it doesn’t matter.”

Ethel was quick to detect the discontent in Mrs. Ogden’s voice.

“Certainly I will write them for you,” she announced. “It will take no time at all.”

“I have a better plan,” broke in Norcross who, with Ogden, stood just behind them. “Let me write the notes at your dictation, Mrs. Ogden, and then your cousin can get the sleep she really needs.”

“What’s the matter with writing them yourself, Jane?” demanded Ogden. “You never developed pen paralysis until you found a secretary fashionable.”

Mrs. Ogden turned her back on her husband. “Of course Ethel must go to bed,” and she smiled kindly at her. “If you will help me, Professor——”

“I shall be delighted”—Norcross looked back as he followed Mrs. Ogden and her husband into the library, to wave his hand to Ethel who responded similarly as she went up the staircase.

But on reaching the next floor Ethel did not go at once to her bedroom. Almost against her will her feet carried her to the den, and for the third time since the fire she went over each article left in the room.

By direction of the fire chief, nothing had been touched or moved. All furniture had been completely or partially destroyed except her metal typewriting desk, and after inspecting the *débris* about her, she sat down before her desk and methodically took out its contents. Her miniature was not there.

At last Ethel sat back in her chair and closed her eyes, endeavoring to recall each action of the day before. No, she had not taken the miniature away; she had put it in the top drawer of her desk just before luncheon, and there it must have remained until carried away by James Patterson. But what had become of it after he had secured it? Had the murderer picked it up in his hasty flight? Or had Julian Barclay found and pocketed it on

discovering Patterson's dead body? Ethel shook her head; no, Barclay would have spoken of it—But would he? He had, if he found it, only gotten back his own property.

"Beg pardon!" said a voice from the doorway, and Ethel started violently. "Miss Ogden, is it not?" Ethel looked at the well-dressed man in the doorway and nodded. "I did not mean to startle you, Miss Ogden. I have been watching you for several minutes."

"Indeed!" Ethel flushed with indignation.

"I thought you saw me," hastily. "I am Mitchell, from the central office," displaying his badge. "Have you found any trace of your miniature?"

"No," Ethel mollified by the detective's gentlemanly appearance and quiet manner, looked eagerly toward him. "Have you searched for it?"

"Yes, but I can't find it high or low," admitted Mitchell. He came closer to her. "I believe the man who has that miniature killed Patterson."

Ethel recoiled. "No!" she declared vehemently, and Mitchell looked at her oddly. "It must be somewhere around, dropped in some crevice or crack." She bent over the wreck of a chair and fumbled about, more anxious to conceal her expression from Mitchell's inquiring gaze than in the hopes of finding anything.

"Charles, the butler, has just admitted that before the fire chief gave orders to have everything left just as it was, he carried some of the *débris* down into the basement," volunteered Mitchell. "It's just possible your miniature may be in it."

"Oh, let us go and see," Ethel sprang impulsively for the door and collided with Professor Norcross. "Excuse me!"

"It was my fault," Norcross laughed as he helped her regain her balance, then his eyes lighted on the detective. "Charles brought me word that you wished to see me, Mitchell."

"I did, sir." Mitchell stepped out into the hall. "I called to ask if you have a revolver."

“I have,” responded Norcross, and turned at the sound of footsteps, and a second later Barclay joined the small group.

“Asking for revolvers, Mitchell?” he inquired coolly. “I have one,” and simultaneously the two men went to their respective rooms, leaving Ethel staring in troubled silence at the detective.

Before she could ask the question Mitchell felt coming, Norcross was back, revolver in hand. Mitchell took it, examined it critically, selected a shell from its breech, snapped it shut and returned it to Norcross just as Barclay rejoined them. His revolver was likewise subjected to a prolonged examination, and a cartridge extracted, marked, and slipped into the detective’s pocket.

“Thanks,” said Mitchell, handing the revolver back to Barclay. “That is all I wished, I won’t detain you longer.”

“Oh, wait.” Ethel without a glance at Norcross and Barclay, followed Mitchell down the back hall. “Let us go and examine the *débris* which you said was downstairs.”

“Certainly,” and Mitchell made way for her to precede him. In the basement they found Charles just closing the house.

“The *débris*, is it?” he exclaimed on Mitchell stating what they wished. “Sure, it’s all here,” and Ethel, regardless of her white gown, dropped on her knees beside the bucket of trash and ashes. Dumping the pail on a newspaper spread out by the attentive Charles, Ethel ran her fingers through the mass, but without results—there was no trace of her miniature.

“What’s this?” Mitchell, searching with her, pulled out a piece of white flannel, and rising examined the dark stains on it under the light. Suddenly he raised the flannel and sniffed at it.

“Powder stains,” he exclaimed, thrusting the oily, dirty cloth under Ethel’s nose. “Where did you get this piece of flannel, Charles?” as the butler returned from a trip to the kitchen.

“Oh, that?” inspecting the flannel. “Sure, Mr. Julian Barclay used that to clean his revolver this mornin’—you wouldn’t be wantin’ me to leave a dhirty bit like that in his room, Miss Ethel, would ye?” turning to her.

But Ethel had fled.

CHAPTER XX

ELUSIVE CLEWS

IT was barely nine o'clock in the morning when Leonard McLane reached his office in response to an urgent telephone call, and the one occupant of his office rose to greet him with marked impatience, which he vainly tried to conceal under cordiality.

"It was good of you to hurry down," said Colonel Carter Calhoun following him into his private office. "I was sorry to cut short your breakfast hour."

"That was all right," responded McLane, pushing a chair up to his desk. "You rang off before I could ask you to breakfast with me, Colonel."

"Thanks." Calhoun dragged his chair forward, close to McLane. "I went at once from the Union Station to see the Secretary of War and while breakfasting with him, telephoned you from his residence. I want to thank you for wiring me of Dwight Tilghman's murder—it was a shock, a very great shock—and now to be met with the news of James Patterson's murder," Calhoun sighed. "It looks badly, very badly—and no trace of the murderer."

"I see you use the singular tense," commented McLane. "You believe, then, Colonel, that one man committed the two crimes?"

"I prefer to reserve my theories until I've heard your facts." And McLane smiled covertly at his caution.

"Have you seen the morning newspaper and its account of the Patterson inquest?" he asked.

"Yes."

"Does it not seem possible that James Patterson, blinded by the smoke from the burning room, unexpectedly encountered this Yoshida Ito, who might have been in the Ogden house only to steal, and instead killed

Patterson, an outspoken enemy of his country, and escaped unseen in the smoke and confusion?" asked McLane thoughtfully.

"That did occur to me," acknowledged Calhoun. "And your theory is borne out by the loss of the miniature, which I see in the newspaper article is reported mysteriously missing. Patterson may have taken it from the burning room and dropped it on meeting the Jap, who may have stolen it after killing him." Calhoun pursed up his lips and looked meditatively at McLane. "It strikes me that Miss Ogden must have attached unusual importance to that miniature to have asked a man to risk his life to get it for her out of a burning room. Was it a particularly fine work of art?"

"I don't know; I've never seen it."

"Too bad," muttered Calhoun. "Is Miss Ethel Ogden closely related to Walter Ogden?"

"Third or fourth cousin, I believe," McLane moved restlessly; he was not pleasantly impressed with Carter Calhoun. "Miss Ogden is a charming, lovable girl, the soul of honor," he added warmly.

"Ah, indeed; I hope to meet her soon," Calhoun settled himself more comfortably in his chair. "Professor Norcross, you've met him of course, has been kind enough to keep me informed of several matters relating to Tilghman's death, and wrote me that she was very beautiful. Who's in your front office?" he added, with some abruptness, and McLane stared at his keen hearing; he himself had not detected footsteps in the next room.

"I imagine it is Dr. Horace Shively," he said, rising hurriedly. "He was to call here about this time"—stopping with his hand on the doorknob. "He was on the train when Tilghman was murdered and first detected the use of oxalic acid."

"Oh! Do you know him well?"

"No, only slightly. He had a good practice in Newport, but ill health forced him to retire, and having a comfortable fortune he spends much of his time traveling." Turning back to the door McLane opened it, and found his expected visitor standing with his back to him looking out of the window. "How are you, Doctor?" he exclaimed cordially, and Shively wheeled about. "Come into my private office," added McLane, after they had shaken hands; "Colonel Calhoun is anxious to meet you, we were

discussing Tilghman's murder while waiting for you." And he stepped aside to let Shively pass him.

Calhoun rose on their entrance and bowed gravely to Shively as McLane introduced them. "Take my seat," he said, and dropped into another chair and sat with his back to the light. "I have traveled east, Dr. Shively, to secure data about the murder of my friend, Dwight Tilghman."

"I am glad I am here," answered Shively, tilting back in his chair to make room for McLane to reach his desk. "I wanted to come before, but was detained by business; however I've sifted out the evidence extracted at the inquest at Atlanta."

"And your conclusions?" demanded Calhoun.

"I at first thought the Japanese, Ito, guilty, but now I believe a fellow traveler, Julian Barclay, poisoned Tilghman," responded Shively.

"Julian Barclay? Humph!" Calhoun clasped and unclasped his long, strong fingers. "He was mentioned in the newspapers as having been the first to find Jim Patterson's dead body—and now you say you suspect him of having some connection with Tilghman's murder. Humph!" McLane, who had started at the mention of Julian Barclay's name, sat silent, studying the men, and debated in his own mind how much and how little he should tell them.

"Your reasons, Dr. Shively, for thinking Barclay guilty of poisoning Tilghman," demanded Calhoun, breaking his silence.

"I have been in communication with a porter who has made out a sworn statement of having seen Julian Barclay leave the train and go toward the station entrance, and then bolt suddenly back into his Pullman car, with every indication of a desire to conceal himself. I have also found out through the Pinkertons', whom I employed, that none of the few passengers traveling north in Barclay's Pullman remained in that car while the train was in the Atlanta station."

"Hah! Then Barclay had the car to himself," Calhoun stared at Shively. "And unobserved he could do as he wished without fear of detection."

"And also, let me state just here, that if innocent, Barclay could not prove an alibi if no passengers were in his car while the train was in

Atlanta,” interposed McLane.

“He gave no alibi in his deposition,” retorted Shively. “That first directed my suspicion toward him. He must have committed the crime immediately on his return to the train, for Norcross and I got back from eating a light lunch in the station and stood in the vestibule of the smoking car until just before the train started, when we went back to our own section for a brief stay. And the conductor was standing in the vestibule of the car when we left it,” he added.

“With you and Norcross there and later the conductor it would have been impossible for a criminal to sneak on board your end of the smoking car,” commented Calhoun. “But a car has two entrances—what about the other?”

“Oh, the porter was there.”

“Sure?”

“Yes. I saw him standing on the lower step of the forward vestibule; anyone passing into the smoker from that end would have attracted his attention, and railroad officials assured me they could place reliance on the porter’s word and efficiency.”

McLane started to speak, then thinking better of it, sat silent contemplating his two companions.

“Did you hear no sound inside the car?” asked Calhoun.

“No. Norcross was telling me of a trip to South America as I sat below him on the step of the vestibule. We neither of us heard a sound from the interior of the car.”

“By sound, I mean a cry for help, or raised voices quarreling,” persisted Calhoun, looking directly at Shively.

“I heard none,” declared Shively positively. “And I am sure we would have heard had Tilghman been quarreling with anyone, for most of the windows were raised and screened.”

“But the noises of a railroad station might have drowned even raised voices,” objected McLane.

“I think not,” Shively pulled his chair nearer. “Norcross and I conversed in our ordinary tones, and heard each other without difficulty.”

“Then with you and Norcross at one vestibule and the porter at the other, and no sound from the interior of the car, I think it can safely be assumed that Tilghman was poisoned between the time the train first pulled into the Atlanta station and your return to the smoking car from your luncheon, Shively,” argued McLane. “How long a time elapsed while you were at luncheon?”

“Let me see—about twenty-five minutes, I imagine.”

“And how long was the train detained at Atlanta?”

“Two hours; but passengers commenced returning fully half an hour before the train started north,” Shively paused. “The mystery surrounding this crime has had a powerful attraction for me, and I have of my own volition employed Pinkerton detectives. They report that the hunt has narrowed down to two men—Yoshida Ito and Julian Barclay.”

“What is the evidence against the Jap, Ito?” asked McLane.

“Sifted down it amounts to little,” admitted Shively slowly. “Ito and Tilghman had a fisticuff shortly before we reached Atlanta; Tilghman compared the Jap to a yellow negro; and Ito on being questioned after the discovery of the crime, gave as his alibi that he was at the public library in Atlanta at the time the crime was committed. However, the hour’s difference in central and eastern time nullifies that alibi—he may have committed the crime and still have been at the library.”

“Then the chief evidence against the Jap is the question of time,” said McLane with growing impatience. “You also contend that Ito took offense at an implied insult given thirty or forty minutes before the train reached Atlanta. Now, I myself do not believe that crime was ever committed on impulse. It was too well planned and devilish in its ingenuity.”

“That is no argument against a Japanese having been the criminal,” said Calhoun dryly. “They are the most silent, relentless people in the world. To me the plot smacks of the East, and is more far reaching than we yet imagine, and embraces the murder of James Patterson.”

“What!” ejaculated Shively. “You think the two crimes have a bearing on each other?”

“I do.”

“You surprise me,” muttered Shively, looking dazed. “I saw Patterson in the Atlanta station for a second on my way to the lunchroom. He told Norcross and me that he had decided to take the midnight express to Washington as that would give him several hours more in Atlanta, and he would reach Washington but a few hours later than if he took the train we were on.”

McLane sat forward in his chair. “Did Patterson by chance encounter Julian Barclay in the station?” he asked.

“I couldn’t tell you,” replied Shively.

“It was more than coincidence which brought Tilghman, Ito, James Patterson, and Julian Barclay together, perhaps unknown to each other, in that station,—it was Fate,” said Calhoun solemnly. “In sifting out one crime we will clear up both.”

“Heavens! Tilghman’s death is mysterious enough without having another murder hinging on it,” exclaimed Shively impatiently. “There is one interesting point which has not been brought out. Tilghman, after his scuffle with the Jap, borrowed a flask from Julian Barclay.”

McLane’s hand closed with some force over his chair arm. “How did you make that discovery?” he asked.

“The brakeman who passed through the smoker just after the scuffle, saw Barclay hand a flask to Tilghman. Unfortunately the man was hurt in an accident, and did not appear at the inquest,” Shively paused, then resumed more quietly. “I sent Barclay back to the empty smoker after removing Tilghman’s body, and he thus had ample opportunity to recover his flask and remove all trace of his crime.”

“But what motive had he in poisoning Tilghman?” demanded McLane excitedly.

“The loss of a large sum of money to Tilghman during a game of cards the night before the murder.”

Calhoun shook his head. "No, too thin," he said curtly. "A deeper motive than that lies behind the murder. Tilghman was coming to Washington on a special mission, and he had with him valuable state documents, and their possession cost him his life."

"I examined Tilghman's personal effects and luggage," exclaimed Shively in bewilderment. "And I found no sign of their having been disturbed or searched, nor did I see any valuable papers."

Calhoun smiled enigmatically. "Did you not? Then the murderer must have secured the documents and left no trace of having done so. The loss of these documents may do the United States irreparable harm, may, in fact, precipitate war between this country and—Japan."

"Then in Heaven's name, let us find the Jap, Ito," cried McLane, springing to his feet.

"Finding Julian Barclay would lead to the same result," protested Shively. "They are in collusion."

Calhoun looked at him oddly. "Not a bad idea," he said, rising. "I must be going, McLane; I have to see Chief Connor of the Secret Service. Where are you stopping, Doctor?" turning to Shively, who had also risen.

"At the New Willard," Shively extended his hand, and Calhoun's strong clasp made his fingers tingle.

"One more question, Doctor, before I go," as he spoke Calhoun turned back from the door held open by McLane. "Do you recall whether the shade of the window by which Tilghman sat was pulled down?"

"It was."

"Thanks," and Calhoun joined McLane in the corridor.

CHAPTER XXI

THE STILL, SMALL VOICE

CHARLES, the butler, stared in dismay at the untasted breakfast sitting temptingly before Walter Ogden. Not a dish had been touched, and twenty minutes had elapsed since he brought them in, hot from the kitchen. The perturbed butler took a hesitating step toward Ogden but a glimpse of his face behind the morning paper, and its forbidding expression caused Charles to retreat on tip-toe, his warning about a cold breakfast unspoken. Once before he had incautiously interrupted Ogden at just such a moment, and had fled before the storm provoked by his temerity.

Charles had left the room but a bare five minutes when Ogden threw down his newspaper, poured out a cup of coffee, drank it almost in one gulp, and leaving his breakfast uneaten, walked heavily away from the table. His destination was his wife's bedroom, and he found her sitting before the mahogany dressing table arranging her hair, with an absorption as to detail which admitted no hurry.

"I won't be very long," exclaimed Mrs. Ogden, catching sight of her husband's reflection in the mirror. "Go down and get your breakfast; don't wait for me,—I can't be any quicker than I can."

Mrs. Ogden could not break herself of the last phrase; it was invariably a red rag to her husband, whose impatient disposition chafed at being kept waiting, even for an infinitesimal second. He did not retreat as Mrs. Ogden hoped he would, but instead advanced into the bedroom.

"Send your maid away," he directed, scowling at the pretty French woman, and Mrs. Ogden with a resigned expression directed Celeste to wait in her own room until she rang for her. When the door had closed behind the maid, Ogden jerked a chair forward and planted it by the dressing table.

"What do you think of the papers?" he demanded.

"The papers?" repeated Mrs. Ogden. "I haven't had time to read them; well, you needn't be provoked," offended by Ogden's impatient snort. "It's

your own fault; if you didn't insist on my breakfasting downstairs, I could read the papers in bed."

"Here is the *Post*," Ogden thrust the newspaper into her hand. "Read this account of the inquest," and at the word "inquest" his wife seized the paper with avidity, but her reading of the article was delayed by a search for her eyeglasses which had misplaced themselves, according to Mrs. Ogden. Thoroughly exasperated, Ogden tumbled the puffs and hairpins about the dressing table until he drew a wail from Mrs. Ogden, who had finally discovered the missing glasses under her pillow. But the lure of the newspaper averted any lengthened argument, and Mrs. Ogden read the entire article before her husband again addressed her.

"What do you make of it?" he asked as she lowered the paper.

"I don't know exactly what to think," she answered. "I wish I had been permitted to sit in the courtroom and listen to the other witnesses testify."

"That is neither here nor there," interrupted Ogden, rudely. "Have you seen this miniature of which Ethel speaks?"

"No, never," Mrs. Ogden reread a paragraph in the paper. "Strange she never showed it to me!"

"And the ring"—Ogden rumbled his heavy white hair until it stood upright. "Was the ring given to her by James Patterson or Julian Barclay?"

"I haven't the faintest idea."

"Seems to me," Ogden rose abruptly, "it's time you found out what is taking place in this house," and he banged out of the room before his astonished wife could question his meaning.

Mrs. Ogden contemplated her reflection in the mirror in indecision; she was more perturbed than she cared to admit even to herself. Completing her dressing with no sign of haste, she summoned her maid and ordered her breakfast served in her bedroom, and between dainty bites of hot toast and marmalade again read the newspaper account of the inquest; but she did not linger over the particular paragraphs which had so excited her husband, instead concentrating her attention on Julian Barclay's testimony. At last throwing the paper aside, she wrote out the *menu* for the day, the orders for the grocer and the market man, and dispatched them to her cook by Celeste,

and with the relief occasioned by having completed her morning's work, she went in search of Ethel.

A faint "Come in" answered Mrs. Ogden's determined rap on Ethel's bedroom door, but she stopped abruptly just over the threshold on beholding the room in darkness.

"Bless me! Why don't you pull up the shades, Ethel?" she asked. "Do you know it's nearly noon?" And not waiting for a reply, she hurried across the room and pushed aside the blinds. "Brr! every window open!" she ejaculated, shivering. "And the steam heat turned off. Ethel, you are incorrigible! Do you want to have pneumonia?"

"No such luck!" muttered Ethel, and Mrs. Ogden, busily turning on the cock of the steam radiator missed the remark. "Do you want me for anything, Cousin Jane?" throwing back the bedcovers as she spoke.

"Just to chat with you," Mrs. Ogden ensconced herself in a big chair, first taking the precaution to slip on Ethel's sweater which lay on a near-by sofa. "My goodness, Ethel, I don't believe you slept a wink last night!" getting a good look at her as she moved toward her bureau.

"I couldn't sleep," acknowledged Ethel. "That is why I stayed in bed this morning." She paused to gather up her underclothes and returned to her bed, on which she perched. "Nothing exciting has occurred, has there?"

In spite of Ethel's effort to keep her voice indifferent, a trained ear would have caught the undertone of pent-up anxiety and fear; a fear of herself, of Julian Barclay, and of Detective Mitchell, which had kept her a prisoner in her room. Her night had been a night of horrors. Her faith in Julian Barclay had been shaken to its foundations by the discovery of the powder-stained flannel and Charles' unintentionally incriminating remark—Julian Barclay had occasion to clean his revolver the morning after James Patterson had been murdered by a shot from a revolver; and Barclay had surrendered that self-same revolver to the detective cleaned and each chamber containing a loaded cartridge.

"Coincidences," Ethel had told herself. "All coincidences," but the mere word brought little comfort as she twisted and turned on her pillow. Detective Mitchell did not look like a man who would place confidence in coincidences; and Ethel, toward daylight, had fallen into fitful slumber, in

which dreams of Julian Barclay, handcuffed, standing in the prisoner's pen while she, Ethel, testified against him, haunted her. The nightmare had seemed so realistic that she awoke cold with fright, but with one resolve firmly taken; for weal or for woe she would befriend Julian Barclay; and until he, himself, confessed his guilt she would believe him innocent.

Mrs. Ogden's sudden descent on her bedroom had aroused her dormant fear of Mitchell; had he acted precipitously after his discovery of the powder-stained flannel, and had Mrs. Ogden appeared to break the news of Julian Barclay's arrest to her?

"No more excitements here, thank Heaven!" exclaimed Mrs. Ogden, having taken her time to make herself comfortable. "My nervous system won't stand any more cyclonic outbreaks. I've been spending the morning reading accounts of the inquest; here, glance at the *Post*," flinging the newspaper across the bed, and Ethel, but half dressed, perused the article with feverish haste, and she, like Mrs. Ogden, lingered longest over Julian Barclay's testimony.

"Well, what do you think of it?" asked Mrs. Ogden finally, unconsciously repeating her husband's question to her earlier in the morning.

"I wonder what the Japanese, Yoshida Ito, and James Patterson were discussing," replied Ethel, laying down the paper and resuming her dressing.

"You think they met?"

"Julian Barclay states so, according to this article," and Ethel glanced curiously at the older woman.

Mrs. Ogden shrugged her shoulders. "As Ito is still a fugitive from justice and poor Jim dead, we are not likely to know what they talked about, nor can Julian's statement of the meeting be confirmed."

"You doubt Julian's testimony?" and Mrs. Ogden had the grace to blush under Ethel's scorn. "You, his own cousin?"

"Well, my dear," she began, moving uneasily. "Julian has sometimes, eh, prevaricated. I remember as a boy he used to tell the most abominable stories to get out of going to church, and I—I—have reason to fear the

habit's grown on him,—of prevarication, I mean,” she added confusedly. “Have you ever caught him in an, eh, evasion?”

It was the one thing in which Ethel had caught Barclay in, and she winced at the question. “Oh, pshaw! what is an evasion?” she asked with assumed lightness. “We are all guilty of it, and you remember the boy who said ‘a lie is an abomination of the Lord, but a very present help in time of trouble’.”

Instead of smiling, Mrs. Ogden sighed. “Some people attract trouble,” she said gloomily. “Julian is one of them.”

Ethel selected a silk waist from the bureau drawer with care. “Has Julian spent many years in the Far East?”

“I don’t know how long he was out there,” answered Mrs. Ogden. “We haven’t met for years until this winter. Julian has traveled ever since the death of Cousin Julian Barclay, senior—he adopted him, you know.”

“No, I wasn’t aware of it,” Ethel dressed more slowly; she had tried before, but unsuccessfully, to get Mrs. Ogden to discuss Julian Barclay, and she was determined to learn something of him now that Mrs. Ogden was at last in a communicative mood.

“Yes, Cousin Julian left him all his money as well as his name——”

“Then Julian’s father was——?”

“William, Cousin William,” Mrs. Ogden added quickly. “Both Julian’s parents died while he was young, and he was brought up by Cousin Julian, the most eccentric, cantankerous old wretch!” Mrs. Ogden paused breathlessly. “No one grieved when he died, and his will just about saved young Julian from—What do you want, Celeste?” she asked abruptly as the Frenchwoman appeared.

“Mrs. McLane is downstairs, Madame.”

Ethel paused, conscious-smitten. “Oh, I asked Lois to lunch with me, thinking you were going to the Van Alstynes’ today, Cousin Jane, and I never thought of it again until this minute.”

“I am glad you did, I like Lois McLane,” answered Mrs. Ogden. “Ask her to come upstairs to Miss Ethel’s room, Celeste.” She waited until the

maid had disappeared, then turned to Ethel. "What about this miniature business? You never told me you had one of yourself."

"I—I—meant to," stammered Ethel, taken by surprise. "I will some day."

"Who made it?" Mrs. Ogden was not to be put off.

"The artist? I don't recall his name," Ethel brushed a stray curl into place. "The miniature was a—a surprise to me, Cousin Jane."

"Humph! Jim Patterson was always doing the unexpected," Mrs. Ogden, deterred by Ethel's manner from too close questioning, was trying by indirect means to elicit information. "Did he give you the ring, too?"

"No."

Mrs. Ogden left her chair and faced Ethel. "Did Julian Barclay give you the ring?" she demanded, looking straight at her, but evasion was far from Ethel's mind.

"He did," she said simply. Her eyes, however, told more than she knew, and Mrs. Ogden suddenly saw her through a mist of tears.

"What have I done?" she stammered, laying her hand almost imploringly on the girl's shoulder. "God forgive me for ever asking Julian Barclay here!" and turning she stumbled blindly from the room, and passing Lois McLane in the hall without a word of greeting, made her way into her bedroom and flung herself on her lounge.

Lois stopped to look after Mrs. Ogden in bewilderment; it was the first time she had known her to be guilty of rudeness; then she continued more slowly to Ethel's bedroom.

Ethel was still standing where Mrs. Ogden had left her, and her face lighted with relief at sight of Lois.

"I'm so glad you've come," she said, clinging to Lois as they embraced. "I am frightened, Lois, frightened," and a sob broke from her.

Lois' arms closed about her lovingly. "Come and tell me all about it," she coaxed; and Ethel, her natural reserve giving way to her longing for comfort and help, poured her hopes and fears into Lois' sympathetic ears.

“Let me understand clearly, Ethel, the reasons you have for thinking Julian guilty of Dwight Tilghman’s death?” Lois’ expression had grown graver and graver as Ethel’s account had progressed. “They were both from California; both on the same train; they played cards the night before the murder and Julian lost a large sum of money to Dwight which was strangely missing after his death; Dwight remained alone in the smoker while the train was in Atlanta and was there poisoned. Julian, among the men who might have poisoned Dwight, is the only one who cannot give an alibi; and your mother passing along the train-shed, saw a hand wearing a peculiar ring, holding a small paper aloft in a suspicious position, and this ring——”

“Is here,” springing to her feet Ethel took the ring and a letter from her bureau drawer. “See, they are identical,” spreading out the sketch of the hand sent by her mother. “And appearances lead me to believe that Julian gave me the ring that it might not be found in his possession——”

“Because it might be incriminating evidence?” finished Lois. “Do you not think it just possible that Julian gave it to you because he wanted you to have something of his?” Ethel flushed and glanced up eagerly, hopefully. “Have you other reasons for thinking Julian connected with Dwight’s death?”

“Yes,” Ethel hesitated; then plunged ahead with her story. “The night I saw Ito dash out of the house with Julian in pursuit of him, I heard Julian call to Ito in a guarded voice, ‘Ito, I have no more money to spare.’” Ethel paused again. “It may be that this Ito may have seen Julian poison Dwight Tilghman and be blackmailing him.”

Lois looked at her pityingly. “It may be,” she repeated mechanically. “I——” A discreet knock on the door interrupted her.

“The mail, Miss Ethel,” announced Charles from the hall, and Ethel hastened over to the door, returning to Lois an instant later with a letter.

“Go on, Lois, I am listening,” she urged, tearing open the envelope. “What is this?” her voice changing as her eyes fell on a torn and ragged photograph.

It was the upper half of a man’s face, and as Ethel studied the fine eyes, wavy black hair and straight nose, an exclamation escaped her. “Why it might be Julian, taken years ago, before his hair turned gray at the temples.”

Lois looked at the photograph attentively, then sat bolt upright. "I've seen that before," she announced excitedly. "Jim Patterson received it during the dinner just before the fire; and in opening the envelope the picture fell into my lap, face uppermost, and but that he wore a beard in the photograph I should have known instantly that it was Julian Barclay."

"Really?" Ethel stared perplexedly at the torn photograph and then examined the envelope. "Why should this scrap have been sent to me? There is no name on the envelope, no card or message, and the address is typewritten."

"I can't imagine," Lois rubbed her hands excitedly together. "Jim said that he had ordered the letter forwarded to him as it was important."

"Did Julian see Jim receive the letter?"

"Yes, and the picture as well; for he caught the photograph as it slid out of my lap."

"Oh!" Ethel covered her face, then dropped her hand disclosing such misery that Lois cried out. "Hush! Lois, before dinner, I found Julian and Jim quarreling, and Jim threatened to expose Julian—for what I don't know. Perhaps this photograph had something to do with the exposure—it was evidently taken years ago."

"True. And Julian saw the photograph, saw exposure imminent and _____"

"Shot Jim," completed Ethel, with forced calmness. "So I reasoned it out last night. I did not then know of the existence of this photograph, but I knew of the quarrel, Jim's threat of exposure, and that Julian cleaned his revolver the morning after the murder."

Lois' eyes opened to their widest. "Heaven!" she exclaimed aghast. "And Julian Barclay was the first to find Jim Patterson. My husband saw him bending over his dead body—and no one else was in the vicinity."

"It all dovetails," admitted Ethel, and her eyes were indescribably sad. "What more likely than that Julian took his revolver intending to use it in the capture of the Jap, Ito; met Jim unexpectedly, and under cover of the smoke and fusillade of shots, which drowned his, gave way to temptation and killed Jim."

“It is too horrible!” Lois’ gesture was eloquent. “And yet jealous men have committed crime since the days of Cain, and, God knows, Julian had reason to hate Jim Patterson”—she hesitated, but one look at Ethel decided her, and the information she had come that day to give her remained unspoken. “Ethel, dear”—impulsively she clasped her hands. “What can I say to you? How comfort you?”

Ethel tightened her grip of Lois’ hands, then dropped them slowly. “I told you I reasoned out all the evidence against Julian—I did not say I *believed* Julian a murderer.”

“Ethel!” Lois’ eyes were shining. “I pray God that your loyalty and faith are not misplaced.”

There was a brief silence as Ethel, with shaking fingers, completed her toilet, but her interview with Lois had strengthened her; she had lost the feeling of being alone and helpless; she knew that she could depend on Lois in any crisis.

“We had better go downstairs?” she suggested. “The household is so disorganized that I don’t know whether Charles will think to send us word when luncheon is ready.” She paused long enough to replace Barclay’s ring, the sketch, and the photograph in her bureau and take the drawer key, then accompanied Lois downstairs.

Ogden was standing in the large entrance hall, and he greeted their appearance with a grunt of approval.

“Your Cousin Jane has a very ill-regulated appetite,” he said, after shaking hands with Lois. “She never knows when it’s time for luncheon or dinner. Have you seen her this morning, Ethel?” and a penetrating look, of which his cousin was totally unaware, accompanied the question.

“Yes,” answered Ethel. “Cousin Jane came into my room for a few minutes this morning.”

“Any idea where she is now?”

“No; but I can look for her,” and Ethel slipped into the drawing room, only to find Professor Norcross the sole occupant of it.

“Don’t let me disturb you,” she exclaimed, as he dropped his newspaper on seeing her. “I’m looking for Mrs. Ogden to tell her that luncheon is

ready.”

“Let me find her for you——?”

“No, don’t trouble.” But Norcross stepped after her into the hall. “I imagine Cousin Jane is in the library,” and leaving the professor greeting Lois McLane and Walter Ogden, she entered the library. Her sudden entrance caused a man standing at the farther end of the room to dart unseen behind a tall screen.

Ethel reached the center of the large library before she became aware that Julian Barclay, and not Mrs. Ogden, was stretched on the large leather sofa, sound asleep. Ethel drew back, intending flight, but an overwhelming desire to see Barclay, to study his expression as he lay asleep, mastered her, and step by step she crept nearer until she stood at the head of the sofa, looking down at him.

Barclay showed the effect of sleepless nights. His eyes seemed more sunken, or the shadows under his eyelashes gave them that appearance, while deeper lines about his mouth and a graying of the black hair over the temples were indelible marks of strain and suffering. His dreams did not seem to be of the pleasantest, judging by the restless movement of his head, and the twitching of his hands.

Out in the hall Ogden waited with unconcealed impatience for his other guests and his wife to assemble for luncheon. Nor had Charles put in an appearance, although he had repeatedly rung the bell. Finally Lois could stand his nervous, almost furtive glances about the hall no longer.

“I’ll go and see what’s keeping Ethel,” she volunteered, edging toward the library door.

“It’s a pretty how-de-do if one guest has to seek another,” grumbled Ogden. “Go with her, Norcross, and see she doesn’t vamoose the way Ethel appears to have done.”

Norcross laughed as he crossed the hall and pulled back the portières, but both he and Lois stopped short just over the threshold at sight of the tableau confronting them in the sun-flooded room.

Ethel, love and a great compassion lighting her face, was stooping over Julian Barclay, who lay apparently asleep on the sofa. Suddenly Barclay

tossed his hand above his head and his fingers touched Ethel's cool palm resting on his pillow. The contact evidently fitted into his dream, for he smiled contentedly as his grasp tightened on her hand.

"Ethel!" he called, and as she bent further over him, his smile faded into a frown, the lines in his face deepened, and he writhed as if in pain, his lips moving, but at first no words came.

"God help me!" he groaned. "I killed Patterson."

A scream, terrible in its agony, broke from Ethel and awoke Barclay from his slumbers and Lois and Norcross from their stupor. It was the professor who caught Ethel as she reeled backward, and assisted her to a chair.

Barclay, but half awake, sat staring in growing horror at the handcuffs dangling from his wrists, while Detective Mitchell, who had slipped from behind a screen some seconds before, gazed with satisfaction at his prisoner.

"I already had evidence enough to secure this warrant," he said, producing the document. "But I'm obliged to you, Mr. Barclay, for calling out that you killed Patterson—and before witnesses, too."

Barclay's gaze roved around the little group, lingering longest on Ethel, who sat with her face buried in her hands, and his expression brought stinging tears to Lois' eyes.

"Did I talk in my sleep?" he questioned, with dry lips.

Lois nodded, speech was impossible for her. Mitchell broke the painful silence.

"You said: 'God help me, I killed Patterson'," he announced.

Barclay rose stiffly, and the jingle of the handcuffs caused Ethel to look at him. He moved like an old man.

"Well, so I did kill Patterson," he admitted slowly. "But not James Patterson."

CHAPTER XXII

THE CONFESSION

JULIAN BARCLAY'S confession staggered his hearers, who gazed at him in amazement too great for words.

"I don't get your meaning," stammered Mitchell. "Explain yourself."

Before Barclay could comply with his request, the portières were dragged aside and Walter Ogden strode into the room. He came to an abrupt stop as his eyes lighted on Barclay standing handcuffed, the central figure of the little group. Ogden hardly seemed aware of the others, his gaze being focused on Barclay and the handcuffs. Great beads of perspiration appeared on his forehead.

"What's the meaning of this?" he demanded. "What deviltry are you up to?" and he glared at them all.

Mitchell took the question to himself, and an angry sparkle lit his eyes. "Don't interfere with the administration of the law," he snapped. "I've just arrested your cousin, Mr. Julian Barclay, for the murder of James Patterson."

"Of which I am entirely innocent," declared Barclay, facing the detective with something of his habitual poise and self-command.

"That remains to be proved," exclaimed Mitchell skeptically. "I am still awaiting an explanation of your cryptic remark that you killed Patterson and not James Patterson."

Barclay cleared his throat, and not looking at Ethel, addressed them inclusively.

"Fifteen years ago I accidentally shot and killed Dr. Paul Patterson, with whom I roomed in Baltimore while a student at Johns Hopkins University," he said. "I was acquitted by the grand jury."

"After three trials." The comment slipped from Walter Ogden, and too late, he regretted the words.

“After three trials,” repeated Barclay slowly. “Quite true, but I was acquitted, and cannot be tried again for that offense.”

“I don’t recall any such case,” muttered Mitchell. “How did you come to kill this Paul Patterson?”

Barclay did not reply at once, and his labored breathing indicated the strain he was under. “From a child I was imaginative, highly strung, nervous,” he began. “As I grew older I gained self-control, and when I entered Johns Hopkins University I was as normal as any student. I was very ambitious, and during my last year overstudy and the tension under which I was living brought on somnambulism.”

“Oh!” Ethel, who was hanging on his words, was unaware that she had spoken, but from that moment she was Barclay’s only audience, and his voice deepened with emotion as he rehearsed old memories and lived through old scenes.

“I knew that as a boy I often talked in my sleep when unduly excited by the day’s events,” he continued. “But I was never aware that I ever walked in my sleep, and Dr. Patterson, on discovering that fact, never told me. One night he inadvertently awoke me, and the revolver I had picked up from his desk in the library, went off without my volition”—Barclay shivered, lifted his manacled hands as if to shut out a vision, and dropped them impotently. “When fully awake I found Paul Patterson lying dead across the desk, and the housekeeper crying: ‘Murder,’ as she ran through the house. My arrest followed.”

“I am beginning to remember the case,” interrupted Mitchell excitedly. “But the student’s name was not Barclay—it was——”

“Julian Meredith,” answered Barclay. “Shortly after my acquittal at the hands of the grand jury, my mother’s cousin left me his fortune with the proviso that I drop my last name and legally assume his, which I did.”

“Wait,” Mitchell held up an imperative hand, and Barclay paused. “Did not the proof of your somnambulistic state rest on a letter written by Dr. Paul Patterson and begun by him just before you shot him, in which he mentioned your sleep-walking propensities, and that you were at that moment walking about in his library, sound asleep?”

“That is correct,” acknowledged Barclay.

“And this letter was secured by the housekeeper who, instead of turning it over to the police, told its contents to Dr. Patterson’s *fiancée* who, in revenge for the killing of her lover, bribed the housekeeper to withhold the letter,” added Mitchell.

“Which the housekeeper did,” said Barclay, “until conscience made her confess to the police during my third trial.”

“And the name of Dr. Paul Patterson’s *fiancée* was——” Mitchell paused, and Barclay filled in the remainder of the sentence.

“Henrietta Patterson, a distant cousin.”

“And this Miss Henrietta Patterson was the only sister of James Patterson,” finished Mitchell. “And James Patterson died by your hand two nights ago.”

“He did not,” declared Barclay vehemently. “As God is my witness, I never knowingly raised my hand against any member of the Patterson family. You can prove no motive for such a crime.”

“You’ve just supplied me with one,” returned Mitchell. “Before I had only evidence of guilt to go on, but now I’m positive of the motive. Henrietta Patterson avenged her lover’s death by almost sending you to the gallows, and you, in turn, avenged the suffering she had caused you, by murdering her brother.”

“A specious argument, nothing more,” scoffed Barclay. “You have absolutely no proof against me.”

Mitchell looked about him. “Suppose we sit down,” he said, drawing up a chair. “Now we can talk more comfortably. Mr. Barclay, why did you carry a revolver the night of the fire?”

“I carried my revolver to use in case of encountering the Jap, Ito, for whom I was searching.”

“Did you meet this Ito after securing your revolver?”

“I did not.”

“Then at whom did you discharge your revolver?”

No answer.

“Did you discharge the revolver at James Patterson?” persisted Mitchell, and this time Barclay’s denial was prompt and forceful.

“I did not,” he declared. “I did not discharge it *at* anyone.”

“Mr. Barclay,” Mitchell slipped his hand inside a pocket and produced a rag, and at sight of it Ethel shivered. “Charles, the butler, swears that you used this powder-stained flannel to clean your revolver the morning after Patterson’s murder—and he was killed by a thirty-two revolver bullet, such as you use in your revolver.”

“I did not know that Patterson was killed by a thirty-two caliber revolver bullet until after the inquest,” retorted Barclay. “I thought, as did everyone else, that he had been killed by the explosion of Ogden’s rifle cartridges, and I cleaned that revolver *before* the inquest.”

Mitchell shook his head. “That fact does not help you,” he argued. “It only goes to show that you knew before the others that Patterson was killed by a thirty-two caliber bullet and that you cleaned your revolver so that the bullet could not be said to have been fired from your revolver. And you, with your medical knowledge and past experience in a murder trial, knew that the probing of the wound would establish the fact that Patterson had been shot by a thirty-two caliber bullet. You were simply forehanded in cleaning your revolver.”

Before Mitchell had finished speaking Ethel was on her feet, her eyes flashing, and she turned and addressed her companions, indignation in tone and gesture.

“In his heckling of Mr. Barclay, the detective has forgotten to inquire at whom Mr. Barclay fired,” she said, and as Barclay looked up at her his haggard face was transformed.

“Thanks,” he exclaimed, springing to his feet. “As I reached the back hall on my return from my fruitless search for Ito, I made out dimly a figure advancing head down, half crouching under the hall light. Thinking it might be Ito overcome by the smoke, I raised my revolver just as the fusillade of shots rang out, and instinctively I pulled the trigger of my revolver, supposing I was attacked.”

“Ah, then you contend that you *accidentally* killed James Patterson,” asked Mitchell incredulously. “It strikes me that you are working the

accident plea rather fine.”

“I have not used it in this instance,” declared Barclay hotly. “I did not shoot James Patterson.”

“Then the man advancing under the light was not Patterson?”

“Yes, it was,” admitted Barclay. “But you will all recall that Patterson was shot in the back; whereas, when I fired that revolver I stood directly in front of him.”

Silence followed Barclay’s statement. Norcross was the first to speak.

“Did you observe anyone standing down the hall behind Patterson?” he asked.

“No, the dense smoke was drifting toward me, and I could not see down the hall,” was Barclay’s answer, and Norcross looked his disappointment.

“Will you kindly tell us, Mr. Barclay,” began Mitchell, “if your bullet did not go into Mr. Patterson, exactly where it did go.” He waited, and then added significantly. “The walls and ceilings in every direction on the second floor have been examined by experts in search of thirty-two caliber bullets which might have been imbedded in them; and while we have found numerous thirty-eight caliber bullets, none have been located in the neighborhood where Mr. Patterson’s body was found. And every bullet that has been found in other parts of the halls and rooms has been a thirty-eight caliber bullet. Where did your revolver bullet go?”

“Out of the hall window,” retorted Barclay. His words caused a sensation. “Come upstairs and I will show you,” he urged.

“Yes, come,” echoed Ethel, and taking Lois’ arm, she led the way to the second floor back hall, Mitchell marching stolidly by Barclay’s side, and the latter had no opportunity to whisper a word of the gratitude overflowing his heart and soul to the girl who, among them all, was the only one to champion his cause.

On reaching the back hall Barclay moved down toward the servants’ staircase. “I stood here,” he said. “Norcross, just crouch down under the light and balance yourself as if you were going to topple forward on your face; yes, that’s about right, now, hold the position—steady”—Barclay raised his right arm, hand closed as if he grasped a revolver butt. “See, the

window at the curve of the hall is just in line—the bullet passed directly through it.”

“Without breaking the glass?” asked Mitchell, lifting his eyebrows.

“The window was open,” answered Barclay. “And the current of air coming from there lifted the smoke so that I could see a man’s figure crouching where Norcross is—Thanks,” he added as Norcross rose. “Now, I hope you are satisfied, Mitchell?”

But Mitchell looked unconvinced. “It’s pretty thin,” he grumbled. “You’ve got to produce that bullet from somewhere in this neighborhood before I’ll believe your bullet did not go into Patterson’s body.”

“It’s a poor rule that doesn’t work both ways,” exclaimed Ethel, who had loitered behind for a second. “If Mr. Barclay’s bullet entered Mr. Patterson’s body, Mr. Mitchell, what became of the bullet which struck this safe—see the mark—and ricocheted from its bullet-proof surface. That bullet, if it did not strike Mr. Patterson in the back, had to go somewhere—now, where is it?”

The men stared at her in dumbfounded surprise, then simultaneously they wheeled about and gazed at the uninjured, unmarked wall paper down the hallway, and when they turned back to Ethel, their faces were as blank as the wall.

“Ethel, you’ve struck the nail on the head,” shouted Ogden loudly. “Now, Mitchell, take off those handcuffs and apologize to Mr. Barclay.”

Mitchell, with a bad grace, did the former but not the latter. “I have two bullets to trace now, instead of one,” he said. “But that does not exonerate you, Mr. Barclay; and you will have to accompany me to headquarters. I take it you will come peaceably?” dangling the handcuffs suggestively before returning them to his pocket.

“Certainly.” Barclay looked as if years had been taken from him. “And my cousin, Mr. Walter Ogden, will go surety for me, if you desire it.”

Ogden dropped the cigar he was lighting. “No,” he said, his face red from the exertion of stooping. “I am not a property owner in the district.”

“But I am,” put in Norcross. “I own this house, Mitchell, and if anything is wanted, call on me.”

Barclay paused to wring the professor's hand, and when he turned back to the others Ethel and Lois were nowhere in sight. "You must come with me at once, Mr. Barclay," insisted Mitchell at his elbow.

"Just a minute"—Barclay tore a leaf from his memorandum book, and scribbled:

ETHEL:

I must go at once to Detective Headquarters. I go with a greater courage, a newer, happier faith in human nature, inspired by you—the most loyal friend a man ever had. My life—my love are yours. I pray God that soon I can stand before you cleared of all suspicion, and ask the question which honor forbids while I am under a cloud.

JULIAN.

Barclay folded the note and addressed it, then catching up with Norcross and Ogden, and with Mitchell at his heels, hastened into the lower hall. Charles, much agitated, met them at the foot of the staircase, and before he could speak, Barclay thrust the note into his hand with a Treasury bill.

"Take this note at once to Miss Ethel," he directed.

"Yes, sor," promised Charles. "Mr. Ogden, luncheon is served, sor."

"Well, thank Heaven for small mercies!" ejaculated Ogden. "Come on in, Norcross."

CHAPTER XXIII

THE MIDNIGHT VISITOR

THE loud imperative ringing of the front door-bell reached Walter Ogden's ears, and making a sign to Maru Takasaki commanding silence, he tip-toed softly across the library and listened behind the portières. It was some moments before Charles appeared, struggling into his coat.

"Sure, be aisy," Ogden heard him mutter, as the bell pealed again. Reaching the front door the butler pulled it open with some force, but the sight of a tall well-dressed man standing in the vestibule checked his inclination to be impertinent.

"No, sor, Mither Ogden is not home," the butler's loud voice reached Ogden. "And Mrs. Ogden is sick in bed; no, nothin' serious, sor, just enough to have Dr. McLane."

"Can I see Miss Ethel Ogden?" and at the sound of the visitor's voice Ogden started violently.

"No, sor, Miss Ogden has retired for the night," answered Charles, and thinking to forestall further questions, he added: "And Professor Norcross is dinin' at the Cosmos Club, and Mither Barclay ain't returned since luncheon. Shall I tell them who called, sor?"

"Colonel Carter Calhoun," was the reply. "I will call tomorrow. Good night."

"Good night, sor," Charles watched Calhoun go down the steps and enter a taxicab, then closed the door. "Sure, he's an ilegant gintleman," he said aloud, garrulousness having grown upon him. "I'll remember him."

"And so will I," Ogden's involuntary whisper reached no ears but his own.

Ogden found his solitary guest sitting where he had left him. Neither of the men spoke until Ogden had resumed his old seat.

“That was Carter Calhoun,” announced Ogden, but the name aroused no apparent interest in the expressionless face and manner of his companion. “He’s coming again.”

“When?”

“Tomorrow.”

“So,” Takasaki thought a minute, picked up a small writing pad and using his gold pencil, jotted down a number of figures, tore off the sheet and handed it to his companion. Ogden’s eyebrows went up as he read the numerals and the sign before them, then crushing the scrap of paper in his hand, tossed it into the open fire on the hearth. Shifting his position slightly, Takasaki contemplated Ogden at his leisure by aid of the movable standing lamp, the only electric light turned on in the room. The seconds had become minutes before Takasaki spoke.

“Tonight is fair,” he said. “Tomorrow may be stormy.”

Ogden stirred as if aroused from a hypnotic trance. “Probabilities indicate a fair night,” he muttered.

Takasaki looked about the comfortable room, then rose slowly to his feet. “I no keep you longer,” he said, shaking hands. “You so good to see me.”

“I’ll go with you to the door,” and Ogden also rose.

“It not necessary,” protested Takasaki politely. “You have much to do—I know way out.”

But paying no heed to his protest Ogden accompanied the Japanese attaché to the front door, and, had Charles been loitering in the next room or the floor above, he would not have guessed their presence. They moved like shadows across the hall.

Ogden closed the door upon Takasaki with care that it should not slam, then walking heavily over to the pantry he called to Charles.

“Comin’, sor, comin’,” came the answer, and the butler arrived in breathless haste.

“Have Mr. Barclay and Professor Norcross returned?”

“No, sor,” Charles came a step nearer. “Mr. Barclay telephoned an hour back, sor, to say he’d be in about midnight, sor; but not to wait up for him, because, sor, he still has the housekey Mrs. Ogden gave him the night of the charity ball.”

“Very well,” Ogden hesitated. “When Professor Norcross returns tell him that I have gone to my room.”

“Yes, sor.”

“Charles,” the butler stopped on his way downstairs. “Close the house now, and after Professor Norcross gets here, go to bed.”

“Very good, sor,” and Charles at once started on his rounds of locking doors and windows, while Ogden went straight to his wife’s bedroom. Ethel met him at the door, a finger on her lip.

“Cousin Jane has just fallen asleep,” she whispered, stepping into the hall and drawing to the door. “Dr. McLane says it was only a nervous breakdown, and that she will be all right tomorrow.”

“Tomorrow?” echoed Ogden. “Good. Go to bed, child; you look as if you need a night’s rest,” then he added as Ethel hesitated, “I’ll sit up with Cousin Jane and be on hand if she requires anything.”

“Be sure and call me if I can be of assistance,” Ethel took a step down the hall and then returned. “Have you heard anything from Julian?”

“Charles said he telephoned that he would be back about midnight,” answered Ogden impatiently. “Probably the police put him through the third degree, and found they hadn’t enough evidence to hold him.”

Ethel’s fervidly whispered “Thank God!” was too low to reach her cousin’s ears, and with a lighter heart than she had known in many hours, she went to her bedroom, but before starting to retire, she read again and yet again Julian Barclay’s hastily scrawled note brought to her by Charles before luncheon.

For his size Walter Ogden was remarkably light on his feet, and his restless pacing to and fro never disturbed the sleeper on the bed. Many minutes dragged themselves away before Ogden dropped wearily into his wife’s favorite chair. But a veritable demon of unrest drove him out of its comfortable depths before he had been there ten minutes, and he was

passing the door when footsteps in the hall reached him and he recognized Norcross' voice speaking to Charles. Before he could make up his mind to go out and speak to the professor he heard him close his bedroom door.

Crossing over to the hearth, on which burned a small fire lighted by Ethel to take the chill off the room, Ogden drew first one document out of his pocket and then another, tossing them in succession into the blaze. "I've got to do it," he muttered between clenched teeth, and the firelight showed the dogged determination of his set, stern face. "Barclay, well, Barclay's got to"—he closed his outspread hands slowly, forcefully, and turning about, again sat down, this time nearer the fire and where his gaze would not fall on his wife, still sleeping peacefully. Sleep, however, was far from Ogden's eyes as he sat brooding over the fire. So great was his absorption that he never heard Julian Barclay, his footsteps lagging and weary, pass down the hall to his bedroom.

Once in his bedroom Barclay threw his coat and waistcoat on the nearest chair, kicked off his shoes, and flinging himself on the bed drew up the outer sheet and quilt, and was soon asleep, the heavy dreamless sleep of utter exhaustion.

No sound broke the stillness except Barclay's even breathing, and the moonlight flooding his bedroom fell softly across the bed where he slept. A movement of the bedclothes caused a ripple in the moonlight, then a shadow appeared, a shadow which moved ever nearer Barclay's head until a hand was outlined on the white pillow. The groping fingers, with touch as delicate as a woman's, at last found the object they sought, but the soft sign of triumph which came from the side of the high four-post bedstead was premature.

Barclay felt the breaking of the cord which held Ethel's miniature suspended around his neck, and throwing out his hands, his fingers closed on a human wrist which tore and writhed in his grip. Struggling to retain his hold and sit up at the same instant, Barclay was horrified to hear Ethel's voice raised in a scream of terror.

"Help, Julian, for God's sake, help!"

The hand was torn from his grasp as his fingers relaxed their hold, and Barclay, forgetting all else, rushed to Ethel's aid. He stopped bewildered in

the hall; there was no sign of Ethel, and half crazed at the thought of her in peril, he ran madly down the staircase, her voice, fainter now, guiding his footsteps. As he bounded down stairs he collided with a man racing upward, and the contact brought them both to the floor. Through the blinding stars produced by his head coming in violent contact with the sharp edge of the newel post, Barclay glimpsed Yoshida Ito just staggering to his feet, and made a futile grab at him. The agile Japanese avoided his hand and fled upward, two steps at a time. Barclay was quick to follow, his fury lending wings to his feet, and one idea obsessing him—the Japanese had frightened, perhaps injured Ethel before he could get there to save her.

As he ran upward Barclay became dimly conscious that others were keeping step with him. Who they were he never stopped to see; a stinging pain in the back of his head and warm blood trickling down his back dazed his senses. Another pajama-clad figure appeared in one of the doorways as Barclay sped down the second floor hall, and stared aghast at him.

“Don’t stop, don’t stop,” Barclay panted. “Hurry, Norcross, he’s just ahead of you; there, jump for him.”

The Japanese, apparently confused by the chase, had lost his bearings and cut back on his tracks, and a second later he and Norcross went to the floor, locked in each other’s arms. Barclay, struggling to lend his aid to Norcross, bent over the fighting men, but which was which was more than his failing sight could distinguish. A strong hand pulled him back, and Mitchell, with the aid of Dr. McLane, dragged the men apart.

Barclay leaned weakly against the wall and stared at the writhing Japanese, at the panting professor, and last at Walter Ogden. His eyes were certainly deceiving him. With difficulty he checked an hysterical laugh.

“Mitchell, you fool,” he gasped. “You’ve put the handcuffs on the wrong man.”

Carter Calhoun, standing in the background, advanced and laid his hand on Barclay’s swaying shoulder.

“The handcuffs are where they belong, Barclay—on the wrists of Richard Norcross, naturalist, murderer, and ventriloquist.”

CHAPTER XXIV

THE ROAD TO HAPPINESS

Too thunderstruck to move or speak, the little group in the hall stared at Norcross, down whose white face great drops of perspiration were stealing, then their regard was transferred to the Japanese, Yoshida Ito, whose rough handling in the fight with the professor was attested by the closing of one eye and a bleeding lip. He looked far more the criminal than the learned professor, and a cry of protest broke from Ethel, who stood fully dressed behind Leonard McLane.

“You must be mistaken,” she stammered, addressing Colonel Calhoun. “Oh, say you have made some mistake.”

“That would be to defeat the ends of justice,” he said gravely. “Richard Norcross murdered Dwight Tilghman and James Patterson.”

“You have no proof to substantiate your charge,” retorted Norcross, speaking for the first time. “And I deny it absolutely.”

“Of course,” ironically, and Calhoun turned to Ito. “I have a witness here who saw you drop Barclay’s flask under the train at Atlanta, just after Tilghman drank the poisoned brandy from it. Speak up, Ito.”

The Japanese stepped forward into the center of the group.

“It is true,” he began, without a trace of foreign accent. “I picked up the flask immediately afterwards, and had its contents tested on reaching Washington.”

Norcross faced them undauntedly. “Will you gentlemen, Americans all, take the word of a renegade Japanese, a lying treacherous murderer, against me, an American in good repute, a naturalist of some renown?” Silence answered him, and he continued more rapidly. “I was with Dr. Horace Shively during the whole time the train was in Atlanta—if you accuse me of the crime—you must accuse him also.”

“You were talking to Shively the whole time you were standing on the vestibule of the smoker, while he sat on the lower step with his back to you,” corrected Calhoun. “And while giving him a description of a South American trip, you, using your powers of ventriloquism to carry on your tale unbroken, which made him think you were still standing right behind him, slipped inside the open door of the smoker——”

“Wait,” interrupted Ito, seeing that Norcross was about to speak. “Tilghman was sitting right at the end of the car, but a step or two inside the open door.”

“And Tilghman obligingly permitted me to drop the oxalic acid inside the small mouthpiece of the flask,” broke in Norcross scornfully.

“No. You crept up behind him and dropped the powder into the wide silver cup of the flask, which Tilghman held in his hand, and out of which he was intermittently sipping brandy while sitting with his eyes closed.”

“Indeed? And why was I not seen doing all this by the people in the car on the next track?”

“Because the window shade was down,” was Ito’s prompt reply. “It was in the cup that the chemist found the dregs containing oxalic acid.”

“So!” Norcross smiled bitterly. “You have learned your lesson well from your master, Carter Calhoun,” and there was no mistaking the fury which blazed in the professor’s eyes as he turned on his chief accuser. “Your fantastic statement that I am a ventriloquist is without foundation and is a lie.”

For answer Calhoun took a worn magazine cutting from his pocket.

“Your past condemns you,” he said sternly. “Our brain plays us queer tricks at times. In talking of your South American trip to Dr. Shively while in the act of poisoning Dwight Tilghman you gave the clew to his murder. I have a retentive memory, and the mention of your South American trip recalled a magazine article, published many years ago, recounting your adventures in the wildest part of the Amazon—and in that article you made mention of your mimicry of the human voice and of bird calls, and spoke of once extricating yourself from a dangerous situation among a hostile tribe by the use of ventriloquism, of which you said you were a past master.”

“Bosh!” But Norcross’ lips were trembling. “All manufactured out of whole cloth.”

“No,” Calhoun handed the clipping to Mitchell. “After talking with Dr. Shively this morning I went to the Congressional Library, and there found the magazine on file, and was permitted to take this clipping from one of the copies. Out of your own mouth, Norcross, you are condemned.”

Leonard McLane stepped forward. “If additional evidence is needed,” he said. “I can testify that Ethel Ogden and I were attending Mrs. Ogden in her bedroom when we apparently heard Ethel’s voice from the hall crying: ‘Help, Julian, for God’s sake, help!’ We heard the voice continue down the hall, and all the while Ethel stood facing me, absolutely silent.”

Ethel, who had kept in the background, advanced to Barclay’s side. She avoided looking at Norcross. “Did you, Julian, the night you chased this Japanese,” indicating Ito, “out into the back yard, say to him, ‘Ito, I tell you I have no more money to spare?’”

Barclay looked at her in blank amazement. “No, I never made such a remark,” he protested. “I did not catch up with Ito.”

“That is true,” confirmed the Japanese. “I have never exchanged a word with Mr. Barclay since our meeting in the train.”

Ethel looked accusingly at Norcross. “You were at my side—by using ventriloquism you made me think that Julian Barclay was in collusion with Ito, then accused of the murder of Dwight Tilghman.”

The professor’s eyes fell before her passionate indignation, and when he looked up he addressed Colonel Calhoun exclusively.

“I did all that you accuse me of,” he said coldly, and his hearers gathered closer about him. “The Japanese are good paymasters.” He looked at Walter Ogden. “You have found them so—” with insolent meaning.

“No.” Ogden drew himself erect. “Although Takasaki tried to bribe me earlier tonight to engineer a Congressional lobby to prevent passage of the bills for universal military service. Most of my fortune is invested in Eastern trade, and has been practically swept away by the ruining of our Pacific shipping. The Japanese are aware of my financial straits, and brought pressure to bear to make me accept their offer.” Ogden cleared his

throat. "I had but one alternative—to apply to my wife's cousin and our guest, Julian Barclay, to loan me ready money to tide me over the next few months. My wife had a heart attack a little after one o'clock this morning and I telephoned for Dr. McLane. My wife's condition—" he gulped and broke down.

"I shall be very glad to assist you financially," volunteered Barclay; then addressing Norcross, "What was your object in poisoning Dwight Tilghman? You appeared the best of friends on the train."

"I killed him because he had stolen important documents from a Japanese Secret Service agent, Mr. Soto, in San Francisco"—a low cry of astonishment broke from Ethel. "I had to recover the documents before Tilghman returned them to the Secretary of War," added Norcross sullenly.

"But I was too quick for you," put in Ito. "A cipher dispatch from Colonel Calhoun told me of Tilghman's mission east and of the rumor that the Japanese were trailing him. I boarded the train the morning of Tilghman's murder, and tried to speak to him, but he at first took me for an enemy. I approached him in the smoker, and during our scuffle slipped a note in his hand."

"I saw you do it," exclaimed Barclay.

Ito nodded. "Tilghman, taken by surprise, was somewhat clumsy. He evidently regarded the warning from Calhoun as genuine, but not willing to trust a Japanese wholly, he slipped the documents into your pocket, Mr. Barclay, for safe keeping, when borrowing your flask...."

"My pocket?" Barclay stared at Ito blankly. "I found no documents _____"

"But only a miniature," supplemented Ito. "The documents are concealed behind Miss Ogden's miniature, which was painted without her knowledge by a Japanese artist, Soto, a member of their Secret Service on duty in Washington until recently, who admired Miss Ogden extravagantly, but who did not hesitate to use her beauty to shield his efforts to smuggle documents out of the United States."

"I don't know how you secured your information," said Norcross scowling at Ito; "but it is correct. The United States Secret Service got wind of our activities, and it was next to impossible to pass written data out of the

country; therefore Soto, who spent the past year posing as a guest at the Japanese Embassy, conceived the idea of secreting the documents inside the gold miniature case which held the portrait of Miss Ogden, painted surreptitiously by him. When the miniature was stolen from Soto by Tilghman I was engaged to get it back. I had traveled before with Tilghman, and we were the best of friends——”

“And you were aware of his having no sense of taste,” suggested McLane.

“I was; and I used oxalic acid because its symptoms are similar to those produced by heart disease,” explained Norcross, no touch of feeling in his voice. “Thinking Tilghman’s death would be attributed to heart failure, I removed the flask—for if it had been found, it might have been tested and suspicion aroused of foul play. Frankly, if I had realized that Tilghman’s death would be instantly investigated by Dr. Shively, I would have left Barclay’s flask to incriminate him. Instead, I flung it under the car, thinking the train would crush it beyond recognition when we moved out of Atlanta.”

Ethel shuddered at the cold-blooded confession, and they all stared at Norcross, whose defiant manner repelled the faintest spark of sympathy.

“Well, you are a cool one!” Detective Mitchell looked at his prisoner in amazement. “Was it just the desire to kill, or had you some grudge against James Patterson which made you murder him?”

Norcross glared at his questioner. “It was not murder,” he protested, “but chance. I overheard Miss Ogden ask James Patterson to get her miniature out of the burning room.”

“Did you know I had your miniature?” gasped Ethel.

“No, but not finding it among Tilghman’s effects, which I searched under Dr. Shively’s intelligent supervision,” with an evil smile, “I was desperate, and any miniature of you interested me. I decided to take a look at this miniature; bolted up the staircase, and accidentally ran against Patterson, knocking a photograph out of his hand. We both stooped for it and managed between us to tear it, the upper half remaining in my grasp,” he stopped and bowed to Ethel, mockingly, “I sent it to you,” then continued to the others. “Patterson cursed me and ran on, first into Ogden’s bedroom and then into the burning room.”

“So he beat you to it,” commented Mitchell.

Norcross shrugged his shoulders. “What need for me to enter the burning room when Patterson would obligingly rescue what I wanted? I waited in Ogden’s bedroom, but being half-blinded by the smoke, Patterson slipped by me unseen, and my intention of jerking the miniature out of his hand and disappearing was frustrated. Since Tilghman’s death I have always gone armed for any emergency, and catching a glimpse of Patterson as he raced out of the door, I fired my revolver at him.”

“Ah!” ejaculated Mitchell turning to look at the safe before which they were standing.

“I missed, the blinding smoke spoiling my aim,” finished Norcross. “As you know, the bullet struck the safe, ricocheted down the hall and hit Patterson in a vital spot. When I reached the hall I made out Patterson lying on the floor and another man stooping over him, a man who helped himself to the miniature and the torn photograph which Patterson dropped in his fall.” Norcross’ eyes traveled suggestively toward Barclay.

“Yes, I took them,” admitted Barclay.

“Curse you for a meddlesome fool!” exclaimed Norcross, and his eyes were venomous. “I knew your history, and did everything to manufacture evidence against you; but you crossed me at every turn.”

“Why didn’t you speak of this sooner, Julian?” asked Ogden, breaking his long silence.

“Because I believed until after the inquest that James Patterson had been accidentally killed by the discharge of one of Ogden’s cartridges,” answered Barclay. “That I took from him a miniature which I considered mine, and a torn half of my own photograph, I believed no one’s business but mine, and held my tongue about them. It never dawned on me that Patterson was killed on account of the miniature,” he paused and added wearily, “I wanted to help in investigating Tilghman’s death, but handicapped by my past, I dared not do so openly. You see, I had lost money heavily to Tilghman the night before the murder; I had loaned him my flask, and the poison had been administered in brandy; and I had no alibi—these, I knew, would prove damning facts against a man who had already been tried for murder.”

“And acquitted,” added Ethel. Barclay brightened at sound of her clear confident voice.

“I did go to see Dr. McLane,” he went on, “to tell him what little I knew of Tilghman’s death and my suspicions, and McLane——”

“Recognized you almost at once,” said the surgeon quietly. “There were not so many honor men in the senior class at Johns Hopkins University that I should not have recollected you, Barclay, even if I was only a freshman when you were there. And your trial absorbed my attention. Also,” he spoke with growing earnestness, “I have always regretted that you did not pursue your profession, for which as a student, you showed so brilliant an aptitude.”

“I owe you a great deal, McLane,” Barclay’s tone was husky. “Some day, perhaps——” he broke off abruptly.

Norcross smiled scornfully. “People do not desire a physician with sleep-walking propensities,” he sneered brutally. “I am hardly surprised you became a wanderer in other lands. And you”——swinging on the Japanese——“for you there will be no land of refuge—the Japanese never pardon a traitor.”

The man addressed laughed softly. “My Japanese is but skin deep and removable,” he said, rubbing off some of his make-up. “My somewhat Oriental cast of features enabled me to take this disguise on numerous occasions, as the United States Secret Service, to which I belong, believes in fighting the devil with fire.”

Barclay listened to him with eyes almost starting from his head. “You fooled me completely,” he stammered. “Why did you draw the design of my flask on the table cloth in the dining car?”

“Because I desired to test you and find out if you had a guilty knowledge of Tilghman’s death,” was the answer. “I had seen you loan him your flask at the time he slipped the miniature in your pocket. I was also behind you when you started from the station and saw you bolt back to the train at sight of James Patterson, but believing Tilghman was watchful and would be on guard, I went to the public library, and thus gave you, Professor, a chance to poison him,” and the Secret Service operative glared at Norcross.

“In avoiding James Patterson I acted on impulse,” explained Barclay, breaking the pause. “I had not seen him for years. I have never outgrown the horror of having accidentally killed Paul Patterson, and the sight of his cousin brought back the whole tragedy, and not feeling like meeting people, I went back to my car,” he stopped and again addressed the man called Ito. “I saw a flask I mistook for mine on the desk in the library at the Japanese Embassy the night of the reception.”

“I watched you take the flask, and realized that you had made a mistake,” said the Secret Service operative. “I was detailed with several plain clothes policemen to watch the cloaks and wraps, as is frequently done at large semi-public receptions, and went in my Japanese disguise. When you saw me, I disappeared into the library, and on your entrance slipped into the conservatory and watched you from there.”

“Why in the world didn’t you come and ask me for the miniature, if you knew I had it?” demanded Barclay.

“Because I was aware that Norcross, whom I strongly suspected, did not know you had the miniature. By bribing Charles, the butler, I had the run of the house, and on the night of your dinner, Ogden, I was busy searching Norcross’ bedroom for incriminating papers when I detected smoke and rushed downstairs to warn you and your guests that the house was on fire.”

“But why did you close and lock the drawing room doors after shouting ‘Fire’?” asked McLane, before Ogden could speak.

“I slammed the doors shut to avoid meeting Barclay and being arrested on the charge of murdering Tilghman,” retorted Ito dryly. “I did not know there was a snap lock on the drawing room doors until afterward. The fire had gained headway, as I stopped to turn in a fire alarm before warning you; and not wishing to be known then under my rightful name of Jack Gilmore, United States Secret Service operative, I disappeared. Investigation has proved that the fire started from defective electric wires, and was not connived by you, Norcross”—Gilmore, alias Ito, faced the professor directly. “I was morally certain that you had murdered Tilghman, but had not real proof against you, as you were apparently with Shively while the train was at Atlanta; so I decided to use the miniature as a decoy to trap you into a confession of guilt. But that even would have failed had not Colonel Calhoun proved you an accomplished ventriloquist.”

Barclay felt his throat tenderly. "Norcross stole the miniature from me just now——"

"And I have it." The Secret Service operative laid the miniature in Calhoun's hand.

"Well done, Gilmore," he exclaimed, examining the miniature. "I am sorry to break so beautiful a painting of you, Miss Ogden——"

"Oh, please do," begged Ethel. "It is too associated with murder and treachery for me ever to want to look at it again."

There was a faint tinkle of broken glass and ivory as Calhoun ground his heel into the miniature, and gathering up the gold frame and its broken contents, he withdrew from behind the ivory many sheets of folded rice paper on which were fine writing and cabalistic signs.

"The Secretary of War will sleep easier in his bed than he has for many nights," he said. "God!" He swung on Norcross, one hand lifted menacingly. "Murder I can understand, but treachery and treason—you!"—in gathering fury—"What shall I call you——"

"The nameless man," was the bitter retort. "Why should I show loyalty to a country whose people repudiated my mother because she married a 'yellow' man."

"Your father, then——" Calhoun stepped back, astounded.

"Was a Japanese, yes. And I was educated partly in this country and partly in Japan. I inherited my mother's white skin and facial characteristics, *only*," with emphasis. "While in Japan I assume my father's name; while I am an American naturalist, I use my mother's maiden name."

Calhoun looked at him for a long moment in silence. "A hybrid! You and your kind are the future problem of the United States," he said solemnly. "Take your prisoner, Mitchell."

With ashen face the man they had known as Richard Norcross stepped between them as they lined up against the wall, and ignoring their presence, he walked steadily down the staircase, Mitchell by his side, and into the waiting police automobile.

As the footsteps of the departing men echoed through the silent house, Barclay moved gropingly toward Ethel; then the false strength, which had fought off physical weakness, deserted him, and without word or sound he went crashing to the floor.

Five hours later Barclay opened his eyes, and at first too dazed to move, lay in bed gazing in bewilderment at Leonard McLane taking a quiet snooze in a near-by chair. Gradually Barclay pieced together the events of the night which culminated in the arrest of the murderer and the solution of the mysteries surrounding the death of Dwight Tilghman and James Patterson. A light footstep and the swish of a skirt caused him to turn as quickly as his bandaged head permitted, but the sight of Ethel Ogden repaid him for the excruciating pain that followed the movement.

“How is Julian, Doctor?” asked Ethel. Her low voice brought McLane to his feet and he smiled sleepily at her.

“You caught me napping,” he admitted. “How did you leave Mrs. Ogden?”

“Very much better; the trained nurse says she has rallied wonderfully,” Ethel tip-toed into the room. “It was so fortunate that Cousin Walter got you immediately on the telephone, on discovering Cousin Jane’s condition.”

“I was sitting up talking to Mitchell and Carter Calhoun,” explained McLane, “We were threshing out the problems of the two tragedies. Calhoun, who called here earlier in the evening, was longing to see you and ask about the miniature, as well as talk with Norcross, with whom he has had a more or less scientific correspondence for a number of years, and he suggested that I bring him and Mitchell with me. He argued that you would undoubtedly be up if your cousin was ill. They were waiting downstairs talking to Gilmore, alias Ito, when Julian Barclay made his spectacular run downstairs.”

“Don’t!” Ethel shaded her eyes. “He must have hurt himself seriously when he struck his head against the newel post.”

“Nonsense, Ethel, men have tough skulls,” smiled McLane. “Barclay lost a great deal of blood while we stood talking in the hall, and that is mainly responsible for his loss of consciousness. I assure you he is——”

“Quite recovered,” said Barclay, and at the sound of his weak voice McLane hastened to the bed, leaving Ethel to follow more slowly.

“Well, I can’t pronounce you quite recovered,” he said, feeling Barclay’s pulse and examining the bandages. “But you are getting along satisfactorily. Come and see for yourself, Ethel,” making room for her, but she approached only as far as the foot of the bed. McLane, his eyes twinkling, was about to speak again when a tap sounded at the side of the open door, and Charles looked in.

“If ye please, sor, Mither Ogden do be axin’ for ye, Doctor,” he announced. “And he’s in the divil of a hurry.”

McLane smiled. “I’ll come at once,” he paused at the door, and Ethel, walking at his heels, stopped herself just in time from bumping into him. “Please wait, Ethel, and find out if Barclay needs any beef tea or coffee,” he said, and slipped away; the quick-witted Irish servant hastening after him, conveniently blind to Ethel’s beckoning finger.

Slowly, shyly Ethel approached the bed. “Would you care for some bouillon?” she asked. Barclay watched her with passionate, longing eyes.

“What did you say?” He raised his bandaged head. “I can’t possibly hear you at that distance,” he protested, and her heart beating with maddening rapidity, Ethel drew nearer, step by step, until she reached his side.

“Would you like something?” she asked faintly, not meeting his eyes.

“Yes—you.” Barclay looked at her pleadingly, his voice deserting him. He reached up and imprisoned her hand, and as her fingers nestled in his broad palm a ring fell out of her grasp. “My ring?” he said, catching it up in his other hand.

“Yes. I was bringing it back to you——”

“Ethel!” Barclay’s face grew ghastly, as hope and happiness died away.

“Only to ask you to explain this sketch.” Ethel was stammering badly as she held her mother’s drawing before Barclay’s eyes. “Mother saw your hand, or what we thought your hand, wearing that ring, through the Pullman car window at the Atlanta station just at the time Dwight Tilghman was poisoned—and—and——”

Barclay looked at the sketch with dawning comprehension. “Will you hand me my tobacco pouch and the small book by it,” indicating a table by the bed. Ethel quickly laid the two articles in his outstretched hand, and tearing out a cigarette paper, Barclay held it in exactly the position indicated in the sketch. “It might very well be mistaken for a paper containing a powder,” he said. “When traveling about I make my own cigarettes, but in cities I buy them already made. I recall now starting to smoke on my return to the Pullman, but awoke from my preoccupation to realize that I must not smoke in that car, so I tipped up the paper at that angle to pour the tobacco back into my pouch just at the moment your mother saw me.”

“She didn’t see you, only your hand,” explained Ethel. “And it seemed so mysterious——”

“You told no one——” Ethel shook her head, and the look that leaped into Barclay’s eyes repaid her. “I owe you everything,” he said, his voice shaking with emotion. “If Mitchell had heard of your mother’s sketch, I might have had great difficulty in convincing him of my innocence.” Barclay shivered. “All this has brought back so vividly the death of Paul Patterson——”

“Hush! you must not think of it,” and Ethel laid a tender hand on his eyes. He drew it down and kissed it lingeringly.

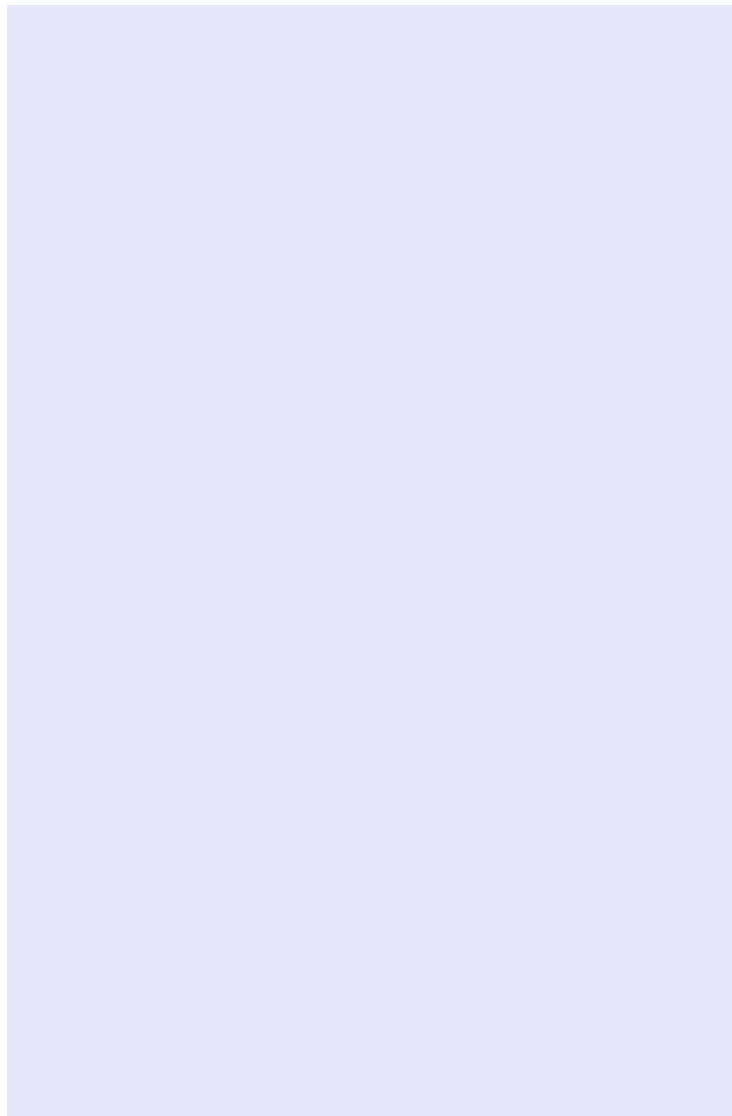
“Perhaps you will teach me to forget,” he said wistfully. “Paul Patterson was a splendid fellow, working his way along and building up a fine practice. He would not marry Henrietta Patterson until he could support her in comfort, having a horror of being thought a fortune hunter. They had planned a spring wedding—and six weeks before it Fate and I stepped in”——Barclay closed his eyes. “I had one interview with Henrietta Patterson, and it will live in my memory always.”

“These are morbid fancies,” protested Ethel warmly. “You are not fair to yourself, Julian. You are too young a man to have your whole life blasted by

an accident, no matter how tragic, which was the direct result of overstudy and ill-health. Will you promise me to think only of the future?"

"I will do anything—everything for you," exclaimed Barclay passionately; then, with desperate courage, "My darling, I have so little to offer you except my love that it seems utter presumption on my part to entreat you to marry me. Answer me, Ethel, here and now," and seizing her hand he looked up into her eyes.

The carmine deepened in Ethel's pale cheeks, but her gaze did not falter, and stooping nearer as she read those half imperious but imploring eyes, her smiling lips met his. With a low cry of unutterable joy, Barclay's arms closed around her, and his voice, clear and tender, murmured: "My loyal sweetheart!"



Transcriber's Notes:

On page 10, withdawn has been changed to withdrawn.

On page 43, ridiculously has been changed to ridiculously.

On page 52, increduously has been changed to incredulously.

On page 64, drop light has been changed to droplight.

On page 68, Odgen has been changed to Ogden.

On page 104, unincumbered has been changed to unencumbered.

On page 175, insiduously has been changed to insidiously.

On page 212, fom has been changed to from.

On page 265, near-by has been changed to near-by.

On page 283, sleepwalking has been changed to sleep-walking.

On page 291, tiptoed has been changed to tip-toed.

On page 294, becace has been changed to because.

Minor changes have been made silently to make punctuation uniform.

All other spelling, dialect and hyphenation has been left as typeset.

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MAN ***

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